

## To Update Mailing Address in Banner

Each student should have both a “Mailing” address and a “Permanent” address showing in their student portal.

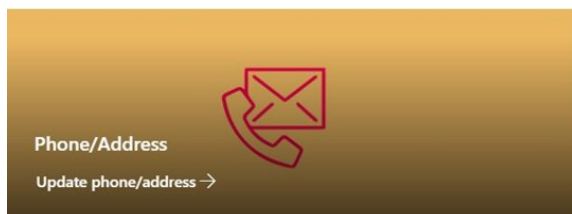
“Mailing” address is used for transcripts, cheques (for refunds), and other official documents that may be sent via post mail. Mailing addresses should always be a valid Canadian address.

“Permanent” address is where you lived prior to coming to Loyalist and show where you are from originally. Generally, this is the address used in our convocation booklets at time of graduation.

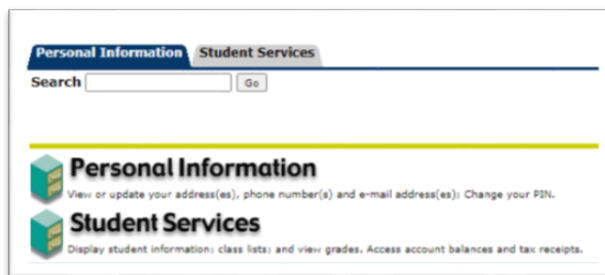
1. Log in to the myLoyalist portal and select **Students** on the red menu bar then **My Information** on the blue menu bar.



2. Click on the **Phone/Address** icon.



3. Click **Personal Information**.



4. Update Address(es) and Phone(s)

**\*\*\*Make sure you update your mailing address\*\*\***

5. Click on **current** address and enter your end date at that address (today's date), click submit

Update Address(es) and Phone(s) - Update/Insert

To End an old address:  
Enter a date in the "Until This Date" field and then click submit.

When Inserting a new address, the following fields must be filled in

- Valid From This Date
- Address Line 1
- City
- Province
- Postal Code

If you are entering a non-Canadian address, Nation is also required. Note: non-Canadian addresses should only be entered for "Permanent" address

Mailing

Valid From This Date:MM/DD/YYYY 07/26/2014

Until This Date:MM/DD/YYYY 05/22/2020

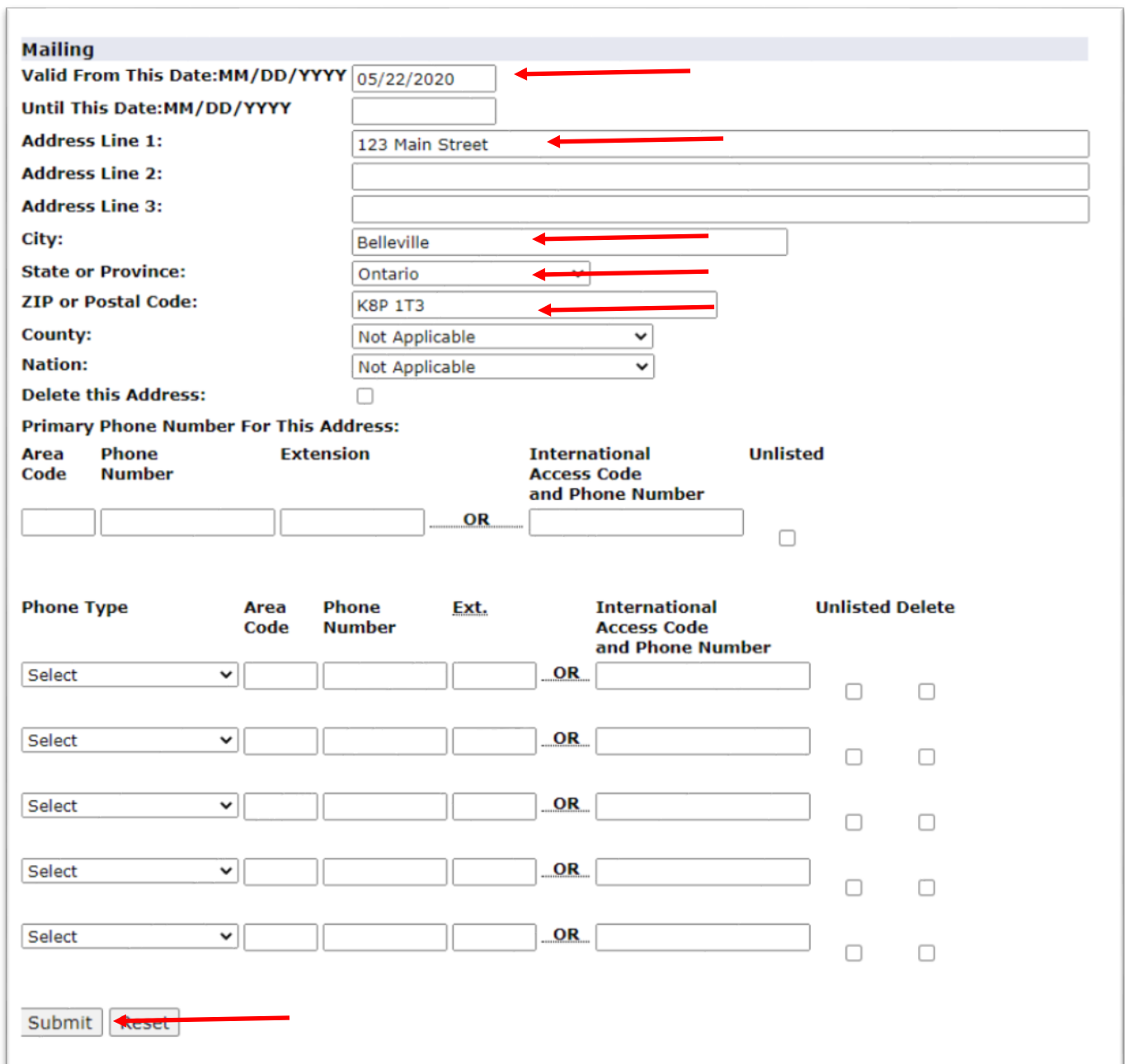
6. Select **Mailing** from the drop down menu and click submit



Type of Address to Insert: **Mailing** ▼

Submit

7. Enter current date and Canadian Address, click submit



**Mailing**

Valid From This Date:MM/DD/YYYY

Until This Date:MM/DD/YYYY

Address Line 1:

Address Line 2:

Address Line 3:

City:

State or Province:

ZIP or Postal Code:

County:

Nation:

Delete this Address: ☐

Primary Phone Number For This Address:

| Area Code            | Phone Number         | Extension            | OR | International Access Code and Phone Number | Unlisted                 |
|----------------------|----------------------|----------------------|----|--------------------------------------------|--------------------------|
| <input type="text"/> | <input type="text"/> | <input type="text"/> | OR | <input type="text"/>                       | <input type="checkbox"/> |

| Phone Type | Area Code            | Phone Number         | Ext.                 | OR | International Access Code and Phone Number | Unlisted                 | Delete                   |
|------------|----------------------|----------------------|----------------------|----|--------------------------------------------|--------------------------|--------------------------|
| Select ▼   | <input type="text"/> | <input type="text"/> | <input type="text"/> | OR | <input type="text"/>                       | <input type="checkbox"/> | <input type="checkbox"/> |
| Select ▼   | <input type="text"/> | <input type="text"/> | <input type="text"/> | OR | <input type="text"/>                       | <input type="checkbox"/> | <input type="checkbox"/> |
| Select ▼   | <input type="text"/> | <input type="text"/> | <input type="text"/> | OR | <input type="text"/>                       | <input type="checkbox"/> | <input type="checkbox"/> |
| Select ▼   | <input type="text"/> | <input type="text"/> | <input type="text"/> | OR | <input type="text"/>                       | <input type="checkbox"/> | <input type="checkbox"/> |
| Select ▼   | <input type="text"/> | <input type="text"/> | <input type="text"/> | OR | <input type="text"/>                       | <input type="checkbox"/> | <input type="checkbox"/> |

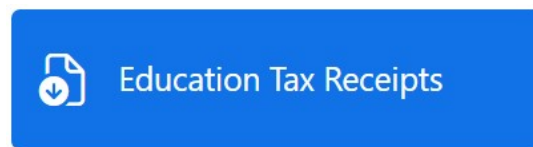
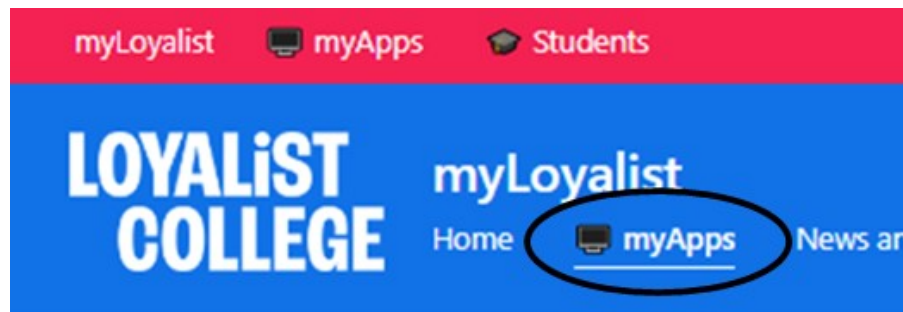
Submit Reset

If you have issues please contact [servicedesk@loyalistcollege.com](mailto:servicedesk@loyalistcollege.com)

## To Update SIN

The Canada Revenue Agency (CRA) requires post-secondary institutions to include each students' Social Insurance Number (SIN) on the T2202 (Tuition and Education Certificate). More information is available on the [Government of Canada's website](#).

Loyalist College has created a secure page on the myLoyalist portal where students can provide their SIN and access tax details. To navigate to the page, log in to the [myLoyalist](#) portal, select **myApps** then the **Education Tax Receipts** icon.



If your SIN is not on file, you will be prompted to provide it. This page also provide links to your Education Tax Forms (T2202 and T4A).

A screenshot of a web form for entering a Social Insurance Number (SIN). At the top, it says 'Please Enter the 9 digit SIN number below.' Below this is a row of three input boxes followed by a 'Submit' button. Below the input fields is a graphic of a SIN card. The card has the Canadian flag and the text 'Human Resources Development Canada' and 'Développement des ressources humaines Canada'. It also displays 'SOCIAL INSURANCE NUMBER' and 'NUMÉRO D'ASSURANCE SOCIALE' with the placeholder '000 000 000' and a field for 'FIRST NAME, LAST NAME'.

To learn more, visit the [Tax Tips and Information](#) page.

## **Your LCIT Student Identification (ID) Card**

Your LCIT Student ID card is an official student identification card; it is an essential document while studying at LCIT as it is required to write tests and exams, access campus services , and obtain off-campus discounts.

### **Importance of Student ID Card**

- You must display your student ID card on your desk while writing tests and exams. An ID will not be issued on the day of an exam.
- Your Student ID card must be shown to staff when requested.
- To protect your personal information your Student ID must be presented to staff with whom you wish to meet to discuss anything pertaining to your academics or student status.
- Your Student ID is required when borrowing books and devices.
- Your student ID is a required document to get transit and other discounts.

Note: You should never surrender your student ID to another student or staff member.

### **How to acquire your Student ID card**

#### **For New Students:**

New students can apply for Student ID cards by following the steps below.

#### **Apply Online**

1. Login into [www.services.tbcollege.com](http://www.services.tbcollege.com)  
**Username:** [STUDENT ID NUMBER]  
**Password:** Same as the Moodle password
2. Select "ID Card" from the top of the screen or the dashboard.

#### **Upload photo**

1. Upload a recent digital photo  
Specification:
  - ( a ) The photo must be a close-up of your head and shoulders with a direct view of your face.
  - ( b ) Dimensions size: 1000x1000 pixels on white background.
  - ( c ) Photo file must be either JPEG or PNG
2. If the photo does not meet the requirement, you will receive an email noting the reason and to resubmit a new photo.

Please note: It takes 3-5 business days of processing time, and you will receive an email regarding the status of your request.

Please note that if your photo does not meet the requirements, it will cause a delay in your ID request.

### **When to pick up ID Card**

1. Once approved you will receive an email notifying you that you can pick up your ID card from the college reception desk.

2. Students must present their LOA/current enrolment letter to pick up their ID card.

## **For Returning Students – Renewing Student ID Card:**

To apply for an ID Card in-person:

1. Students must come to the front desk during regular hours of operation, Monday to Saturday, between 8:00 am and 5:00 pm to request an ID card.
2. Students must present/show their LOA and physical photo ID (such as their driver's license or passport) to verify identity.
3. Picture will be taken on campus and the ID will be issued after the verification of the required documents.

## **How to Replace Student ID Card**

Students who have lost their student ID card can request a replacement during the student ID issuance hours. After week 13 of the academic term students will only be allowed 1 ID replacement.

There is a fee for ID card replacements.

The replacement fee for the first time is \$ 20 and the fee doubles with subsequent replacements for example (\$20, 40, 80....). The replacement fee carries over from one semester to the next. That is, if you are requesting a third replacement in your third semester, but you had two replacements in your second semester, the third replacement ID card will cost \$80.00 (this does not include a re-issued card).

To replace your Student ID card, please complete this form, and go to the front desk between regular office hours. The request can be made from 8 am to 7 pm.

### **Form:**

Please [click here](#) to fill in the form.

## **Renewing an Expired Student ID**

The ID card must be renewed annually on the anniversary date of the first date of issue.

Students must present their expired ID card to reissue a new ID Card. There is no charge to replace an expired Student ID if you present the expired card. If you do not have the expired card, you will be charged for the replacement card in accordance with the replacement fee schedule noted above.



[Français](#)

## Occupational Health and Safety Act

R.S.O. 1990, CHAPTER O.1

**Consolidation Period:** From June 8, 2023 to the [e-Laws currency date](#).

Last amendment: [2023, c. 9, Sched. 29, s. 14](#).

Legislative History: [ + ]

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#### **Definitions**

##### **1 (1) In this Act,**

“Board” means the Ontario Labour Relations Board; (“Commission”)

“Building Code” means any version of the *Ontario Building Code* that was in force at any time since it was made under the *Building Code Act, 1974*, the *Building Code Act* of the Revised Statutes of Ontario, 1980, the *Building Code Act* of the Revised Statutes of Ontario, 1990, the *Building Code Act, 1992* or a successor to the *Building Code Act, 1992*; (“code du bâtiment”)

“certified member” means a committee member who is certified under section 7.6; (“membre agréé”)

“Chief Prevention Officer” means the Chief Prevention Officer appointed under subsection 22.3 (1); (“directeur général de la prévention”)

“committee” means a joint health and safety committee established under this Act; (“comité”)

“competent person” means a person who,

(a) is qualified because of knowledge, training and experience to organize the work and its performance,

(b) is familiar with this Act and the regulations that apply to the work, and

(c) has knowledge of any potential or actual danger to health or safety in the workplace; (“personne compétente”)

“construction” includes erection, alteration, repair, dismantling, demolition, structural maintenance, painting, land clearing, earth moving, grading, excavating, trenching, digging, boring, drilling, blasting, or concreting, the installation of any machinery or plant, and any work or undertaking in connection with a project but does not include any work or undertaking underground in a mine; (“construction”)

“constructor” means a person who undertakes a project for an owner and includes an owner who undertakes all or part of a project by himself or by more than one employer; (“constructeur”)

“Deputy Minister” means the Deputy Minister of Labour; (“sous-ministre”)

“designated substance” means a biological, chemical or physical agent or combination thereof prescribed as a designated substance to which the exposure of a worker is prohibited, regulated, restricted, limited or controlled; (“substance désignée”)

“Director” means an inspector under this Act who is appointed as a Director for the purposes of this Act; (“directeur”)

“employer” means a person who employs one or more workers or contracts for the services of one or more workers and includes a contractor or subcontractor who performs work or supplies services and a contractor or subcontractor who undertakes with an owner, constructor, contractor or subcontractor to perform work or supply services; (“employeur”)

“engineer” means, subject to any prescribed requirements or restrictions, a person who is licensed as a professional engineer or who holds a limited licence under the *Professional Engineers Act*; (“ingénieur”)

“factory” means,

(a) a building or place other than a mine, mining plant or place where homework is carried on, where,

(i) any manufacturing process or assembling in connection with the manufacturing of any goods or products is carried on,

(ii) in preparing, inspecting, manufacturing, finishing, repairing, warehousing, cleaning or adapting for hire or sale any substance, article or thing, energy is,

(A) used to work any machinery or device, or

(B) modified in any manner,

(iii) any work is performed by way of trade or for the purposes of gain in or incidental to the making of any goods, substance, article or thing or part thereof,

(iv) any work is performed by way of trade or for the purposes of gain in or incidental to the altering, demolishing, repairing, maintaining, ornamenting, finishing, storing, cleaning, washing or adapting for sale of any goods, substance, article or thing, or

(v) aircraft, locomotives or vehicles used for private or public transport are maintained,

(b) a laundry including a laundry operated in conjunction with,

(i) a public or private hospital,

(ii) a hotel, or

(iii) a public or private institution for religious, charitable or educational purposes, and

(c) a logging operation; (“usine”)

- “hazardous material” means a biological or chemical agent named or described in the regulations as a hazardous material; (“matériau dangereux”)
- “hazardous physical agent” means a physical agent named or described in the regulations as a hazardous physical agent; (“agent physique dangereux”)
- “health and safety management system” means a coordinated system of procedures, processes and other measures that is designed to be implemented by employers in order to promote continuous improvement in occupational health and safety; (“système de gestion de la santé et de la sécurité”)
- “health and safety representative” means a health and safety representative selected under this Act; (“délégué à la santé et à la sécurité”)
- “homework” means the doing of any work in the manufacture, preparation, improvement, repair, alteration, assembly or completion of any article or thing or any part thereof by a person for wages in premises occupied primarily as living accommodation; (“travail à domicile”)
- “industrial establishment” means an office building, factory, arena, shop or office, and any land, buildings and structures appertaining thereto; (“établissement industriel”)
- “inspector” means an inspector appointed for the purposes of this Act and includes a Director; (“inspecteur”)
- “labour relations officer” means a labour relations officer appointed under the *Labour Relations Act, 1995*; (“agent des relations de travail”)
- “licensee” means a person who holds a licence under Part III of the *Crown Forest Sustainability Act, 1994*; (“titulaire d’un permis”)
- “logging” means the operation of felling or trimming trees for commercial or industrial purposes or for the clearing of land, and includes the measuring, storing, transporting or floating of logs, the maintenance of haul roads, scarification, the carrying out of planned burns and the practice of silviculture; (“exploitation forestière”)
- “mine” means any work or undertaking for the purpose of opening up, proving, removing or extracting any metallic or non-metallic mineral or mineral-bearing substance, rock, earth, clay, sand or gravel; (“mine”)
- “mining plant” means any roasting or smelting furnace, concentrator, mill or place used for or in connection with washing, crushing, grinding, sifting, reducing, leaching, roasting, smelting, refining, treating or research on any substance mentioned in the definition of “mine”; (“installation minière”)
- “Minister” means the Minister of Labour; (“ministre”)
- “Ministry” means the Ministry of Labour; (“ministère”)
- “occupational illness” means a condition that results from exposure in a workplace to a physical, chemical or biological agent to the extent that the normal physiological mechanisms are affected and the health of the worker is impaired thereby and includes an occupational disease for which a worker is entitled to benefits under the *Workplace Safety and Insurance Act, 1997*; (“maladie professionnelle”)
- “Office of the Employer Adviser” means the office continued under subsection 176 (2) of the *Workplace Safety and Insurance Act, 1997*; (“Bureau des conseillers des employeurs”)
- “Office of the Worker Adviser” means the office continued under subsection 176 (1) of the *Workplace Safety and Insurance Act, 1997*; (“Bureau des conseillers des travailleurs”)
- “owner” includes a trustee, receiver, mortgagee in possession, tenant, lessee, or occupier of any lands or premises used or to be used as a workplace, and a person who acts for or on behalf of an owner as an agent or delegate; (“propriétaire”)
- “prescribed” means prescribed by a regulation made under this Act; (“prescrit”)
- “professional engineer of the Ministry” means a person employed by the Ministry and who is licensed as a professional engineer under the *Professional Engineers Act*; (“ingénieur du ministère”)
- “project” means a construction project, whether public or private, including,

- (a) the construction of a building, bridge, structure, industrial establishment, mining plant, shaft, tunnel, caisson, trench, excavation, highway, railway, street, runway, parking lot, cofferdam, conduit, sewer, watermain, service connection, telegraph, telephone or electrical cable, pipe line, duct or well, or any combination thereof,
- (b) the moving of a building or structure, and
- (c) any work or undertaking, or any lands or appurtenances used in connection with construction; ("chantier")

"regulations" means the regulations made under this Act; ("règlements")

"shop" means a building, booth or stall or a part of such building, booth or stall where goods are handled, exposed or offered for sale or where services are offered for sale; ("magasin")

"supervisor" means a person who has charge of a workplace or authority over a worker; ("superviseur")

"trade union" means a trade union as defined in the *Labour Relations Act, 1995* that has the status of exclusive bargaining agent under that Act in respect of any bargaining unit or units in a workplace and includes an organization representing workers or persons to whom this Act applies where such organization has exclusive bargaining rights under any other Act in respect of such workers or persons; ("syndicat")

"worker" means any of the following, but does not include an inmate of a correctional institution or like institution or facility who participates inside the institution or facility in a work project or rehabilitation program:

1. A person who performs work or supplies services for monetary compensation.
2. A secondary school student who performs work or supplies services for no monetary compensation under a work experience program authorized by the school board that operates the school in which the student is enrolled.
3. A person who performs work or supplies services for no monetary compensation under a program approved by a college of applied arts and technology, university, private career college or other post-secondary institution.

**Note: On a day to be named by proclamation of the Lieutenant Governor, paragraph 3 of the definition of "worker" in subsection 1 (1) of the Act is amended by striking out "private career college" and substituting "career college". (See: 2023, c. 9, Sched. 29, s. 14)**

4. REPEALED: 2017, c. 22, Sched. 1, s. 71 (2).

5. Such other persons as may be prescribed who perform work or supply services to an employer for no monetary compensation; ("travailleur")

"workplace" means any land, premises, location or thing at, upon, in or near which a worker works; ("lieu de travail")

"workplace harassment" means,

- (a) engaging in a course of vexatious comment or conduct against a worker in a workplace that is known or ought reasonably to be known to be unwelcome, or
- (b) workplace sexual harassment; ("harcèlement au travail")

"workplace sexual harassment" means,

- (a) engaging in a course of vexatious comment or conduct against a worker in a workplace because of sex, sexual orientation, gender identity or gender expression, where the course of comment or conduct is known or ought reasonably to be known to be unwelcome, or
- (b) making a sexual solicitation or advance where the person making the solicitation or advance is in a position to confer, grant or deny a benefit or advancement to the worker and the person knows or ought reasonably to know that the solicitation or advance is unwelcome; ("harcèlement sexuel au travail")

"workplace violence" means,

- (a) the exercise of physical force by a person against a worker, in a workplace, that causes or could cause physical injury to the worker,
- (b) an attempt to exercise physical force against a worker, in a workplace, that could cause physical injury to the worker,

- (c) a statement or behaviour that it is reasonable for a worker to interpret as a threat to exercise physical force against the worker, in a workplace, that could cause physical injury to the worker. ("violence au travail") R.S.O. 1990, c. O.1, s. 1 (1); 1993, c. 27, Sched.; 1994, c. 24, s. 35; 1994, c. 25, s. 83 (1); 1997, c. 16, s. 2 (1-3); 1998, c. 8, s. 49; 2009, c. 23, s. 1; 2009, c. 33, Sched. 20, s. 3 (1); 2011, c. 11, s. 1; 2014, c. 10, Sched. 4, s. 1; 2016, c. 2, Sched. 4, s. 1 (1, 2); 2016, c. 37, Sched. 16, s. 1; 2017, c. 22, Sched. 1, s. 71; 2021, c. 34, Sched. 15, s. 1 (1-3).

#### **Ship under repair**

- (2) For the purposes of this Act and the regulations, a ship being manufactured or under repair shall be deemed to be a project. R.S.O. 1990, c. O.1, s. 1 (2).

#### **Limitation**

- (3) An owner does not become a constructor by virtue only of the fact that the owner has engaged an architect, engineer or other person solely to oversee quality control at a project. R.S.O. 1990, c. O.1, s. 1 (3); 2021, c. 34, Sched. 15, s. 1 (4).

#### **Workplace harassment**

- (4) A reasonable action taken by an employer or supervisor relating to the management and direction of workers or the workplace is not workplace harassment. 2016, c. 2, Sched. 4, s. 1 (3).

#### **Section Amendments with date in force (d/m/y) [ + ]**

### **PART I APPLICATION**

#### **Crown and other Acts**

##### **Crown**

- 2** (1) This Act binds the Crown and applies to an employee in the service of the Crown or an agency, board, commission or corporation that exercises any function assigned or delegated to it by the Crown.

##### **Other Acts**

- (2) Despite anything in any general or special Act, the provisions of this Act and the regulations prevail. R.S.O. 1990, c. O.1, s. 2.

#### **Private residences, farming, teaching**

##### **Private residences**

- 3** (1) This Act does not apply to work performed by the owner or occupant or a servant of the owner or occupant to, in or about a private residence or the lands and appurtenances used in connection therewith.

##### **Farming operations**

- (2) Except as is prescribed and subject to the conditions and limitations prescribed, this Act or a Part thereof does not apply to farming operations.

##### **Teachers, etc.**

- (3) Except as is prescribed and subject to the conditions and limitations prescribed, this Act or a Part thereof does not apply to,

- (a) a person who is employed as a teacher as defined in the *Education Act*; or
- (b) a person who is employed as a member or teaching assistant of the academic staff of a university or a related institution. R.S.O. 1990, c. O.1, s. 3.

#### **Self-employed persons**

- 4** Subsection 25 (1), clauses 26 (1) (c), (e), (f) and (g), subsection 33 (1) and sections 37, 38, 39, 40, 41, 51, 52, 54, 57, 59, 60, 61, 62, 66, 67, 68 and 69, and the regulations in relation thereto, apply with necessary modifications to a self-employed person. 2001, c. 9, Sched. I, s. 3 (1); 2019, c. 14, Sched. 13, s. 1.

**Section Amendments with date in force (d/m/y) [ + ]****PART II  
ADMINISTRATION****Administration of Act**

**4.1** (1) The Minister is responsible for the administration of this Act. 2011, c. 11, s. 2.

**Powers of Minister**

(2) In administering this Act, the Minister's powers and duties include the following:

1. To promote occupational health and safety and to promote the prevention of workplace injuries and occupational diseases.
2. To promote public awareness of occupational health and safety.
3. To educate employers, workers and other persons about occupational health and safety.
4. To foster a commitment to occupational health and safety among employers, workers and others.
5. To make grants, in such amounts and on such terms as the Minister considers advisable, to support occupational health and safety. 2011, c. 11, s. 2.

**Duty to consider**

(3) In administering this Act, the Minister shall consider advice that is provided to the Minister under this Act. 2011, c. 11, s. 2.

**Section Amendments with date in force (d/m/y) [ + ]****Delegation of powers**

**5** Where under this Act or the regulations any power or duty is granted to or vested in the Minister or the Deputy Minister, the Minister or Deputy Minister may in writing delegate that power or duty from time to time to any employee in the Ministry subject to such limitations, restrictions, conditions and requirements as the Minister or Deputy Minister may set out in the delegation. R.S.O. 1990, c. O.1, s. 5; 2006, c. 35, Sched. C, s. 93 (1).

**Section Amendments with date in force (d/m/y) [ + ]****Appointment of inspectors and Directors**

**6** (1) Such persons as may be necessary to administer and enforce this Act and the regulations may be appointed as inspectors by the Deputy Minister and the Deputy Minister may designate one or more of the inspectors as a Director or Directors.

**Director may act as inspector**

(2) A Director may exercise any of the powers or perform any of the duties of an inspector under this Act or the regulations. R.S.O. 1990, c. O.1, s. 6.

**Certificate of appointment**

**7** (1) The Deputy Minister shall issue a certificate of appointment, bearing his or her signature or a facsimile thereof, to every inspector.

**Production of certificate**

(2) Every inspector, in the exercise of any powers or duties under this Act, shall produce his or her certificate of appointment upon request. R.S.O. 1990, c. O.1, s. 7.

**Standards – training programs**

**7.1** (1) The Chief Prevention Officer may establish standards for training programs required under this Act or the regulations. 2011, c. 11, s. 3.

**Approval — training program**

(2) The Chief Prevention Officer may approve a training program that is established before or after this subsection comes into force if the training program meets the standards established under subsection (1). 2011, c. 11, s. 3.

**Section Amendments with date in force (d/m/y) [ + ]****Standards – persons who provide training**

**7.2** (1) The Chief Prevention Officer may establish standards that a person shall meet in order to become an approved training provider. 2011, c. 11, s. 3.

**Approval – persons who provide training**

(2) The Chief Prevention Officer may approve a person who meets the standards described in subsection (1) as a training provider with respect to one or more approved training programs. 2011, c. 11, s. 3.

**Section Amendments with date in force (d/m/y) [ + ]****Amendment of standard**

**7.3** (1) The Chief Prevention Officer may amend a standard established under subsection 7.1 (1) or 7.2 (1). 2011, c. 11, s. 3.

**Publication of standards**

(2) The Chief Prevention Officer shall publish the standards established under subsections 7.1 (1) and 7.2 (1) promptly after establishing or amending them. 2011, c. 11, s. 3.

**Section Amendments with date in force (d/m/y) [ + ]****Validity of approval**

**7.4** (1) An approval given under subsection 7.1 (2) or 7.2 (2) is valid for the period that the Chief Prevention Officer specifies in the approval. 2011, c. 11, s. 3.

**Revocation, etc., of approval**

(2) The Chief Prevention Officer may revoke or amend an approval given under subsection 7.1 (2) or 7.2 (2). 2011, c. 11, s. 3.

**Information to be provided to Chief Prevention Officer**

(3) The Chief Prevention Officer may require any person who is seeking an approval or is the subject of an approval under subsection 7.1 (2) or 7.2 (2) to provide the Chief Prevention Officer with whatever information, records or accounts he or she may require pertaining to the approval and the Chief Prevention Officer may make such inquiries and examinations as he or she considers necessary. 2011, c. 11, s. 3.

**Section Amendments with date in force (d/m/y) [ + ]****Collection and use of training information**

**7.5** (1) The Chief Prevention Officer may collect information about a worker's successful completion of an approved training program for the purpose of maintaining a record of workers who have successfully completed approved training programs. 2011, c. 11, s. 3.

**Disclosure by training provider**

(2) The Chief Prevention Officer may require an approved training provider to disclose to him or her the information described in subsection (1). 2011, c. 11, s. 3.

**Same**

(3) The Chief Prevention Officer may specify the time at which, and the form in which, the information shall be provided. 2011, c. 11, s. 3.

**Disclosure by Chief Prevention Officer**

(4) The Chief Prevention Officer may disclose information collected under subsection (1) to any person, including but not limited to a current or potential employer of a worker, if the worker consents to the disclosure. 2011, c. 11, s. 3.

**Section Amendments with date in force (d/m/y) [ + ]****Certification of members**

**7.6** (1) The Chief Prevention Officer may,

- (a) establish training and other requirements that a committee member shall fulfil in order to become a certified member; and
- (b) certify a committee member who fulfils the requirements described in clause (a). 2011, c. 11, s. 4.

**Transition**

(2) A person who is certified under paragraph 5 of subsection 4 (1) of the *Workplace Safety and Insurance Act, 1997* on the date section 20 of the *Occupational Health and Safety Statute Law Amendment Act, 2011* comes into force is deemed to be certified under this section. 2011, c. 11, s. 4.

**Amendment**

(3) The Chief Prevention Officer may amend training and other requirements established under clause (1) (a). 2019, c. 9, Sched. 10, s. 1.

**Conditions**

(4) The Chief Prevention Officer may establish conditions that a committee member certified under clause (1) (b) must meet in order to maintain their certification. 2019, c. 9, Sched. 10, s. 1.

**Validity of certification**

(5) A certification granted under clause (1) (b) is valid for the period that the Chief Prevention Officer specifies in the certification. 2019, c. 9, Sched. 10, s. 1.

**Revocation, etc., of certification**

(6) The Chief Prevention Officer may revoke or amend a certification granted under clause (1) (b). 2019, c. 9, Sched. 10, s. 1.

**Section Amendments with date in force (d/m/y) [ + ]****Accreditation of health and safety management systems**

**7.6.1** (1) The Chief Prevention Officer may accredit a health and safety management system if the system meets any applicable standards established under subsection (2). 2016, c. 37, Sched. 16, s. 2.

**Standards**

(2) The Chief Prevention Officer may establish standards that a health and safety management system must meet in order to become an accredited health and safety management system. 2016, c. 37, Sched. 16, s. 2.

**Amendment**

(3) The Chief Prevention Officer may amend standards established under subsection (2). 2016, c. 37, Sched. 16, s. 2.

**Section Amendments with date in force (d/m/y) [ + ]****Recognition of employers**

**7.6.2** (1) The Chief Prevention Officer may give recognition to an employer in respect of one or more of its workplaces, upon the employer's application, if,

- (a) the employer satisfies the Chief Prevention Officer that it is a certified user of an accredited health and safety management system in its workplace or workplaces; and

(b) the employer meets any applicable criteria established under subsection (2). 2016, c. 37, Sched. 16, s. 2.

**Criteria**

(2) The Chief Prevention Officer may establish criteria that an employer must meet for the purposes of clause (1) (b). 2016, c. 37, Sched. 16, s. 2.

**Amendment**

(3) The Chief Prevention Officer may amend criteria established under subsection (2). 2016, c. 37, Sched. 16, s. 2.

**Section Amendments with date in force (d/m/y) [ + ]****Validity of accreditations, recognitions**

**7.6.3** (1) An accreditation given under subsection 7.6.1 (1) or a recognition given under subsection 7.6.2 (1) is valid for the period that the Chief Prevention Officer specifies in the accreditation or recognition. 2016, c. 37, Sched. 16, s. 2.

**Revocation, etc., of accreditations, recognitions**

(2) The Chief Prevention Officer may revoke or amend an accreditation or recognition. 2016, c. 37, Sched. 16, s. 2.

**Section Amendments with date in force (d/m/y) [ + ]****Information re accreditations, recognitions**

**7.6.4** (1) The Chief Prevention Officer may require any person who is seeking an accreditation under subsection 7.6.1 (1) or recognition under subsection 7.6.2 (1), or who is the subject of an accreditation or recognition, to provide the Chief Prevention Officer with whatever information, records or accounts he or she may require pertaining to the accreditation or recognition and the Chief Prevention Officer may make such inquiries and examinations as he or she considers necessary. 2016, c. 37, Sched. 16, s. 2.

**Disclosure by Director**

(2) A Director may communicate or allow to be communicated or disclosed any information that was collected under the authority of this Act or the regulations to the Chief Prevention Officer or to a delegate for the purposes of determining whether the employer should receive recognition or should keep such recognition. 2016, c. 37, Sched. 16, s. 2.

**Same**

(3) Any disclosure of personal information that is authorized under subsection (2) shall be deemed to be in compliance with clause 42 (1) (d) of the *Freedom of Information and Protection of Privacy Act*. 2016, c. 37, Sched. 16, s. 2.

**Section Amendments with date in force (d/m/y) [ + ]****Publication**

**7.6.5** (1) The Chief Prevention Officer may publish or otherwise make available to the public information relating to health and safety management systems accredited under subsection 7.6.1 (1) and employers given recognition under subsection 7.6.2 (1), including the names of the systems and employers. 2016, c. 37, Sched. 16, s. 2.

**Same**

(2) The Chief Prevention Officer shall publish the standards for accreditation of health and safety management systems and the criteria for recognition of employers promptly after establishing or amending them. 2016, c. 37, Sched. 16, s. 2.

**Section Amendments with date in force (d/m/y) [ + ]****Delegation**

**7.7** The Chief Prevention Officer may delegate, in writing, any of his or her powers or duties under subsections 7.1 (2) and 7.2 (2), sections 7.4 and 7.5, clause 7.6 (1) (b), subsections 7.6 (5) and (6), 7.6.1 (1) and 7.6.2 (1), sections 7.6.3 and 7.6.4 and subsection 7.6.5 (1) to any person, including any person outside the Ministry, subject to such limitations, restrictions, conditions and requirements as the Chief Prevention Officer may set out in the delegation. 2016, c. 37, Sched. 16, s. 3; 2019, c. 9, Sched. 10, s. 2.

**Section Amendments with date in force (d/m/y) [ + ]****Mandatory selection of health and safety representative**

**8** (1) At a project or other workplace where no committee is required under section 9 and where the number of workers regularly exceeds five, the constructor or employer shall cause the workers to select at least one health and safety representative from among the workers at the workplace who do not exercise managerial functions. R.S.O. 1990, c. O.1, s. 8 (1).

**Order appointing health and safety representatives**

(2) If no health and safety representative is required under subsection (1) and no committee is required under section 9 for a workplace, the Minister may, by order in writing, require a constructor or employer to cause the workers to select one or more health and safety representatives from among the workers at the workplace or part thereof who do not exercise managerial functions, and may provide in the order for the qualifications of such representatives. R.S.O. 1990, c. O.1, s. 8 (2).

**Idem**

(3) The Minister may from time to time give such directions as the Minister considers advisable concerning the carrying out of the functions of a health and safety representative. R.S.O. 1990, c. O.1, s. 8 (3).

**What Minister shall consider**

(4) In exercising the power conferred by subsection (2), the Minister shall consider the matters set out in subsection 9 (5). R.S.O. 1990, c. O.1, s. 8 (4).

**Selection of representatives**

(5) The selection of a health and safety representative shall be made by those workers who do not exercise managerial functions and who will be represented by the health and safety representative in the workplace, or the part or parts thereof, as the case may be, or, where there is a trade union or trade unions representing such workers, by the trade union or trade unions. R.S.O. 1990, c. O.1, s. 8 (5).

**Inspections**

(6) Unless otherwise required by the regulations or by an order by an inspector, a health and safety representative shall inspect the physical condition of the workplace at least once a month. R.S.O. 1990, c. O.1, s. 8 (6).

**Idem**

(7) If it is not practical to inspect the workplace at least once a month, the health and safety representative shall inspect the physical condition of the workplace at least once a year, inspecting at least a part of the workplace in each month. R.S.O. 1990, c. O.1, s. 8 (7).

**Schedule of inspections**

(8) The inspection required by subsection (7) shall be undertaken in accordance with a schedule agreed upon by the constructor or employer and the health and safety representative. R.S.O. 1990, c. O.1, s. 8 (8).

**Inspections**

(9) The constructor, employer and workers shall provide a health and safety representative with such information and assistance as the member may require for the purpose of carrying out an inspection of the workplace. R.S.O. 1990, c. O.1, s. 8 (9).

**Idem**

(10) A health and safety representative has power to identify situations that may be a source of danger or hazard to workers and to make recommendations or report his or her findings thereon to the employer, the workers and the trade union or trade unions representing the workers. R.S.O. 1990, c. O.1, s. 8 (10).

**Powers of representative**

(11) A health and safety representative has the power,

- (a) to obtain information from the constructor or employer concerning the conducting or taking of tests of any equipment, machine, device, article, thing, material or biological, chemical or physical agent in or about a workplace for the purpose of occupational health and safety;
- (b) to be consulted about, and be present at the beginning of, testing referred to in clause (a) conducted in or about the workplace if the representative believes his or her presence is required to ensure that valid testing procedures are used or to ensure that the test results are valid; and
- (c) to obtain information from the constructor or employer respecting,
  - (i) the identification of potential or existing hazards of materials, processes or equipment, and
  - (ii) health and safety experience and work practices and standards in similar or other industries of which the constructor or employer has knowledge. R.S.O. 1990, c. O.1, s. 8 (11).

#### **Response to recommendations**

(12) A constructor or employer who receives written recommendations from a health and safety representative shall respond in writing within twenty-one days. R.S.O. 1990, c. O.1, s. 8 (12).

#### **Idem**

(13) A response of a constructor or employer under subsection (12) shall contain a timetable for implementing the recommendations the constructor or employer agrees with and give reasons why the constructor or employer disagrees with any recommendations that the constructor or employer does not accept. R.S.O. 1990, c. O.1, s. 8 (13).

#### **Notice of accident, inspection by representative**

(14) Where a person is killed or critically injured at a workplace from any cause, the health and safety representative may, subject to subsection 51 (2), inspect the place where the accident occurred and any machine, device or thing, and shall report his or her findings in writing to a Director. R.S.O. 1990, c. O.1, s. 8 (14).

#### **Same**

(14.1) A health and safety representative may share with an inspector any of the findings made by the representative under subsection (14). 2021, c. 34, Sched. 15, s. 2.

#### **Entitlement to time from work**

(15) A health and safety representative is entitled to take such time from work as is necessary to carry out his or her duties under subsections (6) and (14) and the time so spent shall be deemed to be work time for which the representative shall be paid by his or her employer at the representative's regular or premium rate as may be proper. R.S.O. 1990, c. O.1, s. 8 (15).

#### **Additional powers of certain health and safety representatives**

(16) A health and safety representative or representatives of like nature appointed or selected under the provisions of a collective agreement or other agreement or arrangement between the constructor or the employer and the workers, has, in addition to his or her functions and powers under the provisions of the collective agreement or other agreement or arrangement, the functions and powers conferred upon a health and safety representative by this section. R.S.O. 1990, c. O.1, s. 8 (16).

#### **Section Amendments with date in force (d/m/y) [ + ]**

##### **Joint health and safety committee**

##### **Application**

9 (1) Subject to subsection (3), this section does not apply,

- (a) to a constructor at a project at which work is expected to last less than three months; or
- (b) to a prescribed employer or workplace or class of employers or workplaces. R.S.O. 1990, c. O.1, s. 9 (1).

##### **Joint health and safety committee**

(2) A joint health and safety committee is required,

- (a) at a workplace at which twenty or more workers are regularly employed;
- (b) at a workplace with respect to which an order to an employer is in effect under section 33; or
- (c) at a workplace, other than a construction project where fewer than twenty workers are regularly employed, with respect to which a regulation concerning designated substances applies. R.S.O. 1990, c. O.1, s. 9 (2).

**Minister's order**

(3) Despite subsections (1) and (2), the Minister may, by order in writing, require a constructor or an employer to establish and maintain one or more joint health and safety committees for a workplace or a part thereof, and may, in such order, provide for the composition, practice and procedure of any committee so established. R.S.O. 1990, c. O.1, s. 9 (3).

**Same**

(3.1) Despite subsections (1) and (2), the Minister may, by order in writing, permit a constructor or an employer to establish and maintain one joint health and safety committee for more than one workplace or parts thereof, and may, in the order, provide for the composition, practice and procedure of any committee so established. 1994, c. 27, s. 120 (1).

**Same**

(3.2) In an order under subsection (3.1), the Minister may,

- (a) provide that the members of a committee who represent workers may designate a worker at a workplace who is not a member of the committee to inspect the physical condition of the workplace under subsection 9 (23) and to exercise a committee member's rights and responsibilities under clause 43 (4) (a) and subsections 43 (7), (11) and (12); and
- (b) require the employer to provide training to the worker to enable the worker to adequately perform the tasks or exercise the rights and responsibilities delegated by the committee. 2001, c. 9, Sched. I, s. 3 (3).

**Same**

(3.3) If a worker is designated under clause (3.2) (a), the following apply:

1. The designated worker shall comply with this section as if the worker were a committee member while exercising a committee member's rights and responsibilities.
2. Subsections 9 (35) and 43 (13), section 55, clauses 62 (5) (a) and (b) and subsection 65 (1) apply to the designated worker as if the worker were a committee member while the worker exercises a committee member's rights and responsibilities.
3. The worker does not become a member of the committee as a result of the designation. 2001, c. 9, Sched. I, s. 3 (3).

**Establishment of committee**

(4) The constructor or employer shall cause a joint health and safety committee to be established and maintained at the workplace unless the Minister is satisfied that a committee of like nature or an arrangement, program or system in which the workers participate was, on the 1st day of October, 1979, established and maintained pursuant to a collective agreement or other agreement or arrangement and that such committee, arrangement, program or system provides benefits for the health and safety of the workers equal to, or greater than, the benefits to be derived under a committee established under this section. R.S.O. 1990, c. O.1, s. 9 (4); 1993, c. 27, Sched.

**What Minister shall consider**

(5) In exercising the power conferred by subsection (3) or (3.1), the Minister shall consider,

- (a) the nature of the work being done;
- (b) the request of a constructor, an employer, a group of the workers or the trade union or trade unions representing the workers in a workplace;
- (c) the frequency of illness or injury in the workplace or in the industry of which the constructor or employer is a part;
- (d) the existence of health and safety programs and procedures in the workplace and the effectiveness thereof; and

(e) such other matters as the Minister considers advisable. R.S.O. 1990, c. O.1, s. 9 (5); 1994, c. 27, s. 120 (2).

**Composition of committee**

(6) A committee shall consist of,

- (a) at least two persons, for a workplace where fewer than fifty workers are regularly employed; or
- (b) at least four persons or such greater number of people as may be prescribed, for a workplace where fifty or more workers are regularly employed. R.S.O. 1990, c. O.1, s. 9 (6).

**Idem**

(7) At least half the members of a committee shall be workers employed at the workplace who do not exercise managerial functions. R.S.O. 1990, c. O.1, s. 9 (7).

**Selection of members**

(8) The members of a committee who represent workers shall be selected by the workers they are to represent or, if a trade union or unions represent the workers, by the trade union or unions. R.S.O. 1990, c. O.1, s. 9 (8).

**Idem**

(9) The constructor or employer shall select the remaining members of a committee from among persons who exercise managerial functions for the constructor or employer and, to the extent possible, who do so at the workplace. R.S.O. 1990, c. O.1, s. 9 (9).

**Requirement for committee membership**

(10) A member of the committee who ceases to be employed at the workplace ceases to be a member of the committee. R.S.O. 1990, c. O.1, s. 9 (10).

**Committee to be co-chaired**

(11) Two of the members of a committee shall co-chair the committee, one of whom shall be selected by the members who represent workers and the other of whom shall be selected by the members who exercise managerial functions. R.S.O. 1990, c. O.1, s. 9 (11).

**Certification requirement**

(12) Unless otherwise prescribed, a constructor or employer shall ensure that at least one member of the committee representing the constructor or employer and at least one member representing workers are certified members. R.S.O. 1990, c. O.1, s. 9 (12).

**Idem**

(13) Subsection (12) does not apply with respect to a project where fewer than fifty workers are regularly employed or that is expected to last less than three months. R.S.O. 1990, c. O.1, s. 9 (13).

**Designation of member to be certified**

(14) If no member representing workers is a certified member, the workers or the trade unions who selected the members representing workers shall select from among them one or more who are to become certified. R.S.O. 1990, c. O.1, s. 9 (14).

**Designation of certified members**

(15) If there is more than one certified member representing workers, the workers or the trade unions who selected the members representing workers shall designate one or more certified members who then become solely entitled to exercise the rights and required to perform the duties under this Act of a certified member representing workers. R.S.O. 1990, c. O.1, s. 9 (15).

**Idem**

(16) If there is more than one certified member representing the constructor or employer, the constructor or employer shall designate one or more of them who then become solely entitled to exercise the rights and required to perform the duties under this Act of a certified member representing a constructor or an employer. R.S.O. 1990, c. O.1, s. 9 (16).

**Replacement of certified member**

(17) If a certified member resigns or is unable to act, the constructor or employer shall, within a reasonable time, take all steps necessary to ensure that the requirement set out in subsection (12) is met. R.S.O. 1990, c. O.1, s. 9 (17).

**Powers of committee**

(18) It is the function of a committee and it has power to,

- (a) identify situations that may be a source of danger or hazard to workers;
- (b) make recommendations to the constructor or employer and the workers for the improvement of the health and safety of workers;
- (c) recommend to the constructor or employer and the workers the establishment, maintenance and monitoring of programs, measures and procedures respecting the health or safety of workers;
- (d) obtain information from the constructor or employer respecting,
  - (i) the identification of potential or existing hazards of materials, processes or equipment, and
  - (ii) health and safety experience and work practices and standards in similar or other industries of which the constructor or employer has knowledge;
- (e) obtain information from the constructor or employer concerning the conducting or taking of tests of any equipment, machine, device, article, thing, material or biological, chemical or physical agent in or about a workplace for the purpose of occupational health and safety; and
- (f) be consulted about, and have a designated member representing workers be present at the beginning of, testing referred to in clause (e) conducted in or about the workplace if the designated member believes his or her presence is required to ensure that valid testing procedures are used or to ensure that the test results are valid. R.S.O. 1990, c. O.1, s. 9 (18).

**Idem**

(19) The members of the committee who represent workers shall designate one of them who is entitled to be present at the beginning of testing described in clause (18) (f). R.S.O. 1990, c. O.1, s. 9 (19).

**Powers of co-chairs**

(19.1) If the committee has failed to reach consensus about making recommendations under subsection (18) after attempting in good faith to do so, either co-chair of the committee has the power to make written recommendations to the constructor or employer. 2011, c. 11, s. 7 (1).

**Response to recommendations**

(20) A constructor or employer who receives written recommendations from a committee or co-chair shall respond in writing within twenty-one days. R.S.O. 1990, c. O.1, s. 9 (20); 2011, c. 11, s. 7 (2).

**Idem**

(21) A response of a constructor or employer under subsection (20) shall contain a timetable for implementing the recommendations the constructor or employer agrees with and give reasons why the constructor or employer disagrees with any recommendations that the constructor or employer does not accept. R.S.O. 1990, c. O.1, s. 9 (21).

**Minutes of proceedings**

(22) A committee shall maintain and keep minutes of its proceedings and make the same available for examination and review by an inspector. R.S.O. 1990, c. O.1, s. 9 (22).

**Inspections**

(23) Subject to subsection (24), the members of a committee who represent workers shall designate a member representing workers to inspect the physical condition of the workplace. R.S.O. 1990, c. O.1, s. 9 (23).

**Idem**

(24) If possible, the member designated under subsection (23) shall be a certified member. R.S.O. 1990, c. O.1, s. 9 (24).

**Idem**

(25) The members of a committee are not required to designate the same member to perform all inspections or to perform all of a particular inspection. R.S.O. 1990, c. O.1, s. 9 (25).

**Idem**

(26) Unless otherwise required by the regulations or by an order by an inspector, a member designated under subsection (23) shall inspect the physical condition of the workplace at least once a month. R.S.O. 1990, c. O.1, s. 9 (26).

**Idem**

(27) If it is not practical to inspect the workplace at least once a month, the member designated under subsection (23) shall inspect the physical condition of the workplace at least once a year, inspecting at least a part of the workplace in each month. R.S.O. 1990, c. O.1, s. 9 (27).

**Schedule of inspections**

(28) The inspection required by subsection (27) shall be undertaken in accordance with a schedule established by the committee. R.S.O. 1990, c. O.1, s. 9 (28).

**Inspections**

(29) The constructor, employer and the workers shall provide a member designated under subsection (23) with such information and assistance as the member may require for the purpose of carrying out an inspection of the workplace. R.S.O. 1990, c. O.1, s. 9 (29).

**Information reported to the committee**

(30) The member shall inform the committee of situations that may be a source of danger or hazard to workers and the committee shall consider such information within a reasonable period of time. R.S.O. 1990, c. O.1, s. 9 (30).

**Notice of accident, inspection by committee member**

(31) The members of a committee who represent workers shall designate one or more such members to investigate cases where a worker is killed or critically injured at a workplace from any cause and one of those members may, subject to subsection 51 (2), inspect the place where the accident occurred and any machine, device or thing, and shall report his or her findings to a Director and to the committee. R.S.O. 1990, c. O.1, s. 9 (31).

**Same**

(31.1) A member of a committee who is designated to investigate cases under subsection (31) may share with an inspector any of the findings made by the member under subsection (31). 2021, c. 34, Sched. 15, s. 3.

**Posting of names and work locations**

(32) A constructor or an employer required to establish a committee under this section shall post and keep posted at the workplace the names and work locations of the committee members in a conspicuous place or places where they are most likely to come to the attention of the workers. R.S.O. 1990, c. O.1, s. 9 (32).

**Meetings**

(33) A committee shall meet at least once every three months at the workplace and may be required to meet by order of the Minister. R.S.O. 1990, c. O.1, s. 9 (33).

**Entitlement to time from work**

(34) A member of a committee is entitled to,

- (a) one hour or such longer period of time as the committee determines is necessary to prepare for each committee meeting;

(b) such time as is necessary to attend meetings of the committee; and

(c) such time as is necessary to carry out the member's duties under subsections (26), (27) and (31). R.S.O. 1990, c. O.1, s. 9 (34).

**Entitlement to be paid**

(35) A member of a committee shall be deemed to be at work during the times described in subsection (34) and the member's employer shall pay the member for those times at the member's regular or premium rate as may be proper. R.S.O. 1990, c. O.1, s. 9 (35).

**Idem**

(36) A member of a committee shall be deemed to be at work while the member is fulfilling the requirements for becoming a certified member and the member's employer shall pay the member for the time spent at the member's regular or premium rate as may be proper. R.S.O. 1990, c. O.1, s. 9 (36); 1998, c. 8, s. 50 (1); 2011, c. 11, s. 7 (3).

**Exception**

(37) Subsection (36) does not apply with respect to workers who are paid by the Workplace Safety and Insurance Board for the time spent fulfilling the requirements for becoming certified. R.S.O. 1990, c. O.1, s. 9 (37); 1998, c. 8, s. 50 (2).

**Additional powers of certain committees**

(38) Any committee of a like nature to a committee established under this section in existence in a workplace under the provisions of a collective agreement or other agreement or arrangement between a constructor or an employer and the workers has, in addition to its functions and powers under the provisions of the collective agreement or other agreement or arrangement, the functions and powers conferred upon a committee by this section. R.S.O. 1990, c. O.1, s. 9 (38).

**Dispute resolution**

(39) Where a dispute arises as to the application of subsection (2), or the compliance or purported compliance therewith by a constructor or an employer, the dispute shall be decided by the Minister after consulting the constructor or the employer and the workers or the trade union or trade unions representing the workers. R.S.O. 1990, c. O.1, s. 9 (39).

**Section Amendments with date in force (d/m/y) [ + ]****Worker trades committee**

**10** (1) If a committee is required at a project, other than a project where fewer than fifty workers are regularly employed or that is expected to last less than three months, the committee shall establish a worker trades committee for the project.

**Committee membership**

(2) The members of a worker trades committee shall represent workers employed in each of the trades at the workplace.

**Selection of members**

(3) The members of a worker trades committee shall be selected by the workers employed in the trades the members are to represent or, if a trade union represents the workers, by the trade union.

**Function of worker trades committee**

(4) It is the function of a worker trades committee to inform the committee at the workplace of the health and safety concerns of the workers employed in the trades at the workplace.

**Entitlement to time from work**

(5) Subject to subsection (6), a member of a worker trades committee is entitled to such time from work as is necessary to attend meetings of the worker trades committee and the time so spent shall be deemed to be work time for which the member shall be paid by the employer at the member's regular or premium rate as may be proper.

**Committee to determine maximum entitlement**

(6) The committee for a workplace shall determine the maximum amount of time for which members of a worker trades committee for the workplace are entitled to be paid under subsection (5) for each meeting of the worker trades committee. R.S.O. 1990, c. O.1, s. 10.

**Consultation on industrial hygiene testing**

**11** (1) The constructor or employer at a workplace shall consult a health and safety representative or the committee with respect to proposed testing strategies for investigating industrial hygiene at the workplace.

**Information**

(2) The constructor or employer shall provide information to a health and safety representative or the committee concerning testing strategies to be used to investigate industrial hygiene at the workplace.

**Attendance at testing**

(3) A health and safety representative or a designated committee member representing workers at a workplace is entitled to be present at the beginning of testing conducted with respect to industrial hygiene at the workplace if the representative or member believes his or her presence is required to ensure that valid testing procedures are used or to ensure that the test results are valid.

**Designation of member**

(4) The committee members representing workers shall designate one of them for the purpose of subsection (3). R.S.O. 1990, c. O.1, s. 11.

**Summary to be furnished**

**12** (1) For workplaces to which the insurance plan established under the *Workplace Safety and Insurance Act, 1997* applies, the Workplace Safety and Insurance Board, upon the request of an employer, a worker, committee, health and safety representative or trade union, shall send to the employer, and to the worker, committee, health and safety representative or trade union requesting the information an annual summary of data relating to the employer in respect of the number of work accident fatalities, the number of lost work day cases, the number of lost work days, the number of non-fatal cases that required medical aid without lost work days, the incidence of occupational illnesses, the number of occupational injuries, and such other data as the Board may consider necessary or advisable. R.S.O. 1990, c. O.1, s. 12 (1); 1997, c. 16, s. 2 (4).

**Posting of copy of summary**

(2) Upon receipt of the annual summary, the employer shall cause a copy thereof to be posted in a conspicuous place or places at the workplace where it is most likely to come to the attention of the workers.

**Director to provide information**

(3) A Director shall, in accordance with the objects and purposes of this Act, ensure that persons and organizations concerned with the purposes of this Act are provided with information and advice pertaining to its administration and to the protection of the occupational health and occupational safety of workers generally. R.S.O. 1990, c. O.1, s. 12 (2, 3).

**Section Amendments with date in force (d/m/y) [ + ]**

**13** Repealed: 1997, c. 16, s. 2 (5).

**Section Amendments with date in force (d/m/y) [ + ]**

**14** Repealed: 1997, c. 16, s. 2 (6).

**Section Amendments with date in force (d/m/y) [ + ]**

**15** Repealed: 1997, c. 16, s. 2 (7).

**Section Amendments with date in force (d/m/y) [ + ]**

**16** Repealed: 1997, c. 16, s. 2 (8).

**Section Amendments with date in force (d/m/y) [ + ]**

**17** Repealed: 1997, c. 16, s. 2 (9).

**Section Amendments with date in force (d/m/y) [ + ]**

**18** Repealed: 1997, c. 16, s. 2 (10).

**Section Amendments with date in force (d/m/y) [ + ]**

**19** Repealed: 1997, c. 16, s. 2 (10).

**Section Amendments with date in force (d/m/y) [ + ]****Testimony in civil proceedings, etc.**

**20** (1) Except with the consent of the Board, no member of the Board, nor its registrar, nor any of its other officers, nor any of its clerks or servants shall be required to give testimony in any civil proceeding or in any proceeding before the Board or in any proceeding before any other tribunal respecting information obtained in the discharge of their duties or while acting within the scope of their employment under this Act.

**Non-disclosure**

(2) No information or material furnished to or received by a labour relations officer under this Act shall be disclosed except to the Board or as authorized by the Board. 1998, c. 8, s. 51.

**Section Amendments with date in force (d/m/y) [ + ]****Advisory committees**

**21** (1) The Minister may appoint committees, which are not committees as defined in subsection 1 (1), or persons to assist or advise the Minister on any matter arising under this Act or to inquire into and report to the Minister on any matter that the Minister considers advisable. R.S.O. 1990, c. O.1, s. 21 (1).

**Remuneration and expenses**

(2) Any person appointed under subsection (1) who is not a public servant within the meaning of the *Public Service of Ontario Act, 2006* may be paid such remuneration and expenses as may be from time to time fixed by the Lieutenant Governor in Council. R.S.O. 1990, c. O.1, s. 21 (2); 2006, c. 35, Sched. C, s. 93 (2).

**Section Amendments with date in force (d/m/y) [ + ]****Contribution to defray cost**

**22** (1) The Workplace Safety and Insurance Board shall require Schedule 1 and Schedule 2 employers under the *Workplace Safety and Insurance Act, 1997* to make payments to defray the cost of administering this Act and the regulations. The Lieutenant Governor in Council may fix the total payment to be made by all employers for that purpose.

**Same**

(2) The Workplace Safety and Insurance Board shall remit the money collected from employers under this section to the Minister of Finance. 1997, c. 16, s. 2 (11).

**Section Amendments with date in force (d/m/y) [ + ]****Powers under federal legislation**

**22.1** (1) If a regulation under the *Canada Labour Code* incorporates by reference all or part of this Act or the regulations made under it, the Board and any person having powers under this Act may exercise any powers conferred by the regulation under the *Canada Labour Code*. 2011, c. 1, Sched. 7, s. 2 (1).

**Same**

(2) If a regulation under section 44 of the *Nuclear Safety and Control Act* (Canada) requires an employer to whom this Act applies to comply with all or part of this Act or the regulations made under it, the Board and any person having powers under this Act may exercise any powers conferred by the regulation under the *Nuclear Safety and Control Act* (Canada). 2011, c. 1, Sched. 7, s. 2 (1).

**Section Amendments with date in force (d/m/y) [ + ]****PART II.1****PREVENTION COUNCIL, CHIEF PREVENTION OFFICER AND DESIGNATED ENTITIES****PREVENTION COUNCIL****Prevention Council**

**22.2** (1) The Minister shall establish a council to be known as the Prevention Council in English and Conseil de la prévention in French. 2011, c. 11, s. 8 (1).

**Composition**

(2) The Council shall be composed of such members as the Minister may appoint, and shall include representatives from each of the following groups:

1. Trade unions and provincial labour organizations.
2. Employers.
3. Non-unionized workers, the Workplace Safety and Insurance Board and persons with occupational health and safety expertise. 2011, c. 11, s. 8 (1).

**Same**

(3) In appointing members of the Council, the Minister shall ensure that,

- (a) an equal number of members are appointed to represent the groups described in paragraphs 1 and 2 of subsection (2); and
- (b) the group described in paragraph 3 of subsection (2) is represented by not more than one-third of the members of the Council. 2011, c. 11, s. 8 (1).

**Appointment of members**

(4) The members of the Council shall be appointed for such term as may be determined by the Minister. 2011, c. 11, s. 8 (1).

**Chair**

(5) The members of the Council shall choose a chair from among themselves by the date fixed by the Minister; if they fail to do so, the Minister shall designate a member as chair. 2011, c. 11, s. 8 (1).

**Same**

(6) Subsection (5) applies on the first appointment of members and thereafter whenever the office of chair is vacant. 2011, c. 11, s. 8 (1).

**Functions**

(7) The Council shall,

- (a) provide advice to the Minister on the appointment of a Chief Prevention Officer;
- (b) provide advice to the Chief Prevention Officer,
  - (i) on the prevention of workplace injuries and occupational diseases,
  - (ii) for the purposes of the provincial occupational health and safety strategy and the annual report under section 22.3, and

(iii) on any significant proposed changes to the funding and delivery of services for the prevention of workplace injuries and occupational diseases;

(c) provide advice on any other matter specified by the Minister; and

(d) perform such other functions as may be specified by the Minister. 2011, c. 11, s. 8 (1).

#### **Advice**

(8) For the purposes of subsection (7), any advice provided by the Council shall be communicated by the chair of the Council. 2011, c. 11, s. 8 (1).

#### **Remuneration and expenses**

(9) Any member of the Council who is not a public servant within the meaning of the *Public Service of Ontario Act, 2006* may be paid such remuneration and expenses as may be from time to time fixed by the Lieutenant Governor in Council. 2011, c. 11, s. 8 (1).

#### **Section Amendments with date in force (d/m/y) [ + ]**

### **CHIEF PREVENTION OFFICER**

#### **Chief Prevention Officer**

##### **Functions**

**22.3** (1) The Minister shall appoint a Chief Prevention Officer to,

- (a) develop a provincial occupational health and safety strategy;
- (b) prepare an annual report on occupational health and safety;
- (c) exercise any power or duty delegated to him or her by the Minister under this Act;
- (d) provide advice to the Minister on the prevention of workplace injuries and occupational diseases;
- (e) provide advice to the Minister on any proposed changes to the funding and delivery of services for the prevention of workplace injuries and occupational diseases;
- (f) provide advice to the Minister on the establishment of standards for designated entities under section 22.5;
- (g) exercise the powers and perform the duties with respect to training that are set out in sections 7.1 to 7.5;
- (h) exercise the powers and perform the duties set out in section 7.6;
- (h.1) exercise the powers and perform the duties with respect to accreditation of health and safety management systems and recognition of employers that are set out in sections 7.6.1 to 7.6.5;
- (i) exercise the powers and perform the duties set out in section 22.7; and
- (j) exercise such other powers and perform such other duties as may be assigned to the Chief Prevention Officer under this Act. 2011, c. 11, s. 8 (1); 2016, c. 37, Sched. 16, s. 4; 2019, c. 9, Sched. 10, s. 3.

#### **Appointment**

(2) The Chief Prevention Officer may be appointed for a term not exceeding five years and may be reappointed for successive terms not exceeding five years each. 2011, c. 11, s. 8 (1).

#### **Occupational health and safety strategy**

(3) The Chief Prevention Officer shall develop a written provincial occupational health and safety strategy that includes,

- (a) a statement of occupational health and safety goals;
- (b) key performance indicators for measuring the achievement of the goals; and
- (c) any other matter specified by the Minister. 2011, c. 11, s. 8 (1).

**Advice of Prevention Council**

(4) The Chief Prevention Officer shall consult with the Prevention Council and shall consider its advice in developing the strategy. 2011, c. 11, s. 8 (1).

**Strategy provided to Minister**

(5) The Chief Prevention Officer shall provide the strategy to the Minister on or before a day specified by the Minister. 2011, c. 11, s. 8 (1).

**Minister's approval**

(6) The Minister may approve the strategy or refer it back to the Chief Prevention Officer for further consideration. 2011, c. 11, s. 8 (1).

**Publication**

(7) After approving the strategy, the Minister shall publish it promptly. 2011, c. 11, s. 8 (1).

**Annual report**

(8) The Chief Prevention Officer shall provide an annual written report to the Minister on occupational health and safety that includes a measurement of the achievement of the goals established in the strategy, and that contains such other information as the Minister may require. 2011, c. 11, s. 8 (1).

**Advice of Prevention Council**

(9) The Chief Prevention Officer shall consult with the Prevention Council and shall consider its advice in developing the report. 2011, c. 11, s. 8 (1).

**Report provided to Minister**

(10) The Chief Prevention Officer shall provide the annual report to the Minister on or before a day specified by the Minister. 2011, c. 11, s. 8 (1).

**Publication**

(11) The Minister shall publish the Chief Prevention Officer's report promptly. 2011, c. 11, s. 8 (1).

**Section Amendments with date in force (d/m/y) [ + ]****CHANGES TO FUNDING AND DELIVERY OF SERVICES****If Minister proposes change**

**22.4** (1) If the Minister is considering a proposed change to the funding and delivery of services for the prevention of workplace injuries and occupational diseases, the Minister shall determine whether the proposed change would be a significant change. 2011, c. 11, s. 8 (1).

**If proposed change significant**

(2) If the Minister determines that the proposed change is significant, the Minister shall seek advice from the Chief Prevention Officer with respect to the proposed change. 2011, c. 11, s. 8 (1).

**If Chief Prevention Officer advising on change**

(3) If the Chief Prevention Officer is considering providing advice to the Minister concerning a proposed change to the funding and delivery of services for the prevention of workplace injuries and occupational diseases, the Chief Prevention Officer shall determine whether the proposed change would be a significant change. 2011, c. 11, s. 8 (1).

**Prevention Council endorsement**

(4) If the Minister asks the Chief Prevention Officer for advice under subsection (2) or if the Chief Prevention Officer determines under subsection (3) that a proposed change would be a significant change, the Chief Prevention Officer shall,

(a) ask the chair of the Prevention Council to state whether the Council endorses the proposed change; and

(b) include that statement in the advice to the Minister. 2011, c. 11, s. 8 (1).

**Matters to consider in determining if change is significant**

(5) The Minister and the Chief Prevention Officer shall consider such matters as may be prescribed when determining whether a proposed change to the funding and delivery of services for the prevention of workplace injuries and occupational diseases would be a significant change. 2011, c. 11, s. 8 (1).

**Regulation**

(6) On the recommendation of the Minister, the Lieutenant Governor in Council may make regulations prescribing matters to be considered when determining whether a proposed change to the funding and delivery of services for the prevention of workplace injuries and occupational diseases would be a significant change. 2011, c. 11, s. 8 (1).

**Same**

(7) Before recommending to the Lieutenant Governor in Council that a regulation be made under subsection (6), the Minister shall seek the advice of the Chief Prevention Officer and require the Chief Prevention Officer to seek the advice of the Prevention Council with respect to the matters to be prescribed. 2011, c. 11, s. 8 (1).

**Section Amendments with date in force (d/m/y) [ + ]****DESIGNATED ENTITIES****Eligible for grant**

**22.5** (1) An entity that is designated under this section is eligible for a grant from the Ministry. 2011, c. 11, s. 8 (2).

**Designation by Minister**

(2) The Minister may designate an entity as a safe workplace association or as a medical clinic or training centre specializing in occupational health and safety matters if the entity meets the standards established by the Minister. 2011, c. 11, s. 8 (2).

**Standards**

(3) The Minister may establish standards that an entity shall meet before it is eligible to be designated. 2011, c. 11, s. 8 (2).

**Same**

(4) The standards established under subsection (3) may address any matter the Minister considers appropriate, including governance, objectives, functions and operations. 2011, c. 11, s. 8 (2).

**Same**

(5) The Minister may establish different standards for associations, clinics or centres serving different industries or groups. 2011, c. 11, s. 8 (2).

**Duty to comply**

(6) A designated entity shall operate in accordance with the standards established under subsection (3) that apply to it, and in accordance with any other requirements imposed on it under section 22.6. 2011, c. 11, s. 8 (2).

**Amendment of standard**

(7) The Minister may amend a standard established under subsection (3). 2011, c. 11, s. 8 (2).

**Date for compliance with amended standard**

(8) If the Minister amends a standard established under subsection (3), the Minister shall establish a date by which designated entities to which the amended standard applies are required to comply with it. 2011, c. 11, s. 8 (2).

**Publication of standards**

(9) The Minister shall promptly publish,

- (a) the standards established under subsection (3); and
- (b) standards amended under subsection (7), together with the compliance date described in subsection (8). 2011, c. 11, s. 8 (2).

**Transition**

(10) When the Minister establishes and publishes standards under subsections (3) and (9) for the first time after the coming into force of subsection 8 (2) of the *Occupational Health and Safety Statute Law Amendment Act, 2011*, the Minister shall establish a date for the purposes of subsections (11) and (12) and shall publish it together with the standards. 2011, c. 11, s. 8 (2).

**Same**

(11) An entity that is designated as a safe workplace association or as a medical clinic or training centre specializing in occupational health and safety matters under section 6 of the *Workplace Safety and Insurance Act, 1997* on the date section 20 of the *Occupational Health and Safety Statute Law Amendment Act, 2011* comes into force is deemed to be designated for the purposes of this Act until the date established by the Minister under subsection (10). 2011, c. 11, s. 8 (2).

**Same**

(12) The standards that are in place under section 6 of the *Workplace Safety and Insurance Act, 1997* on the date section 20 of the *Occupational Health and Safety Statute Law Amendment Act, 2011* comes into force continue to apply, with necessary modifications, and are deemed to be standards for the purposes of this section, until the date established by the Minister under subsection (10). 2011, c. 11, s. 8 (2).

**Section Amendments with date in force (d/m/y) [ + ]****Effect of designation****Directions**

**22.6** (1) The Minister may direct a designated entity to take such actions as the Minister considers appropriate. 2011, c. 11, s. 8 (2).

**Government directives**

(2) In addition to the directions the Minister may issue under subsection (1), the Minister may direct an entity to comply with such government directives as the Minister specifies. 2011, c. 11, s. 8 (2).

**Failure to comply**

(3) If an entity has committed any failure described in paragraphs 1 to 3 of subsection 22.7 (3), the Minister may,

- (a) reduce or suspend grants to the entity while the non-compliance continues;
- (b) assume control of the entity and responsibility for its affairs and operations;
- (c) revoke the designation and cease to provide grants to the entity; or
- (d) take such other steps as he or she considers appropriate. 2011, c. 11, s. 8 (2).

**Section Amendments with date in force (d/m/y) [ + ]****Compliance and monitoring of designated entities**

**22.7** (1) The Chief Prevention Officer shall monitor the operation of designated entities and,

- (a) may require a designated entity to provide such information, records or accounts as the Chief Prevention Officer specifies; and
- (b) may make such inquiries and examinations as he or she considers necessary. 2011, c. 11, s. 8 (2).

**Report to Minister**

(2) The Chief Prevention Officer shall report to the Minister on the compliance of designated entities with the standards established under section 22.5 and with any directions given by the Minister under section 22.6. 2011, c. 11, s. 8 (2).

**Advice to Minister**

(3) Where the Chief Prevention Officer determines that any of the following have occurred, the Chief Prevention Officer shall report that determination to the Minister and may advise the Minister with respect to any action the Minister may decide to take under section 22.6:

1. A designated entity has failed to operate in accordance with a standard established under section 22.5 that applies to it.
2. A designated entity has failed to comply with a direction given by the Minister under section 22.6 or a requirement of the Chief Prevention Officer under clause (1) (a).
3. A designated entity has failed to co-operate in an inquiry or examination conducted by the Chief Prevention Officer under clause (1) (b). 2011, c. 11, s. 8 (2).

**Section Amendments with date in force (d/m/y) [ + ]****Appointment of administrator**

**22.8** (1) For the purposes of assuming control of an entity and responsibility for its affairs and operations under clause 22.6 (3) (b), the Minister may appoint an administrator. 2011, c. 11, s. 8 (2).

**Term of appointment**

(2) The appointment of the administrator remains valid until it is terminated by the Minister. 2011, c. 11, s. 8 (2).

**Powers and duties of administrator**

(3) The administrator has the exclusive right to exercise the powers and perform the duties of the board of directors and its officers and exercise the powers of its members. 2011, c. 11, s. 8 (2).

**Same**

(4) In the appointment, the Minister may specify the powers and duties of the administrator and the terms and conditions governing those powers and duties. 2011, c. 11, s. 8 (2).

**Additional power of administrator**

(5) The board of directors and officers may continue to act to the extent authorized by the Minister, but any such act is valid only if approved, in writing, by the administrator. 2011, c. 11, s. 8 (2).

**Report, directions**

(6) The administrator shall report to the Minister as required by him or her and shall carry out his or her directions. 2011, c. 11, s. 8 (2).

**Meeting of members**

(7) Before the termination of an administrator's appointment, the administrator may call a meeting of the members to elect a board of directors in accordance with the *Not-For-Profit Corporations Act, 2010*. 2011, c. 11, s. 8 (2, 3).

**Unincorporated entity**

(8) This section applies, with necessary modifications, to an entity that is not incorporated. 2011, c. 11, s. 8 (2).

**Section Amendments with date in force (d/m/y) [ + ]****Delegation of powers and duties**

**22.9** Despite section 5, the Minister may delegate his or her powers or duties under sections 22.5, 22.6 and 22.8 only to the Chief Prevention Officer. 2011, c. 11, s. 8 (2).

**Section Amendments with date in force (d/m/y) [ + ]****PART III  
DUTIES OF EMPLOYERS AND OTHER PERSONS****Duties of constructor**

**23** (1) A constructor shall ensure, on a project undertaken by the constructor that,

- (a) the measures and procedures prescribed by this Act and the regulations are carried out on the project;
- (b) every employer and every worker performing work on the project complies with this Act and the regulations; and
- (c) the health and safety of workers on the project is protected.

**Notice of project**

(2) Where so prescribed, a constructor shall, before commencing any work on a project, give to a Director notice in writing of the project containing such information as may be prescribed. R.S.O. 1990, c. O.1, s. 23.

**Duties of licensees**

**24** (1) A licensee shall ensure that,

- (a) the measures and procedures prescribed by this Act and the regulations are carried out with respect to logging in the licensed area;
- (b) every employer performing logging in the licensed area for the licensee complies with this Act and the regulations; and
- (c) the health and safety of workers employed by employers referred to in clause (b) is protected. R.S.O. 1990, c. O.1, s. 24 (1).

**Definition**

(2) In this section,

“licensed area” means the lands on which the licensee is authorized to harvest or use forest resources. R.S.O. 1990, c. O.1, s. 24 (2); 1994, c. 25, s. 83 (2).

**Section Amendments with date in force (d/m/y) [ + ]****Duties of employers**

**25** (1) An employer shall ensure that,

- (a) the equipment, materials and protective devices as prescribed are provided;
- (b) the equipment, materials and protective devices provided by the employer are maintained in good condition;
- (c) the measures and procedures prescribed are carried out in the workplace;
- (d) the equipment, materials and protective devices provided by the employer are used as prescribed; and
- (e) a building, structure, or any part thereof, or any other part of a workplace, whether temporary or permanent, is capable of supporting any loads that may be applied to it,
  - (i) as determined by the applicable design requirements established under the version of the Building Code that was in force at the time of its construction,
  - (ii) in accordance with such other requirements as may be prescribed, or
  - (iii) in accordance with good engineering practice, if subclauses (i) and (ii) do not apply. R.S.O. 1990, c. O.1, s. 25 (1); 2011, c. 11, s. 9.

**Idem**

(2) Without limiting the strict duty imposed by subsection (1), an employer shall,

- (a) provide information, instruction and supervision to a worker to protect the health or safety of the worker;
- (b) in a medical emergency for the purpose of diagnosis or treatment, provide, upon request, information in the possession of the employer, including confidential business information, to a legally qualified medical practitioner and to such other persons as may be prescribed;
- (c) when appointing a supervisor, appoint a competent person;
- (d) acquaint a worker or a person in authority over a worker with any hazard in the work and in the handling, storage, use, disposal and transport of any article, device, equipment or a biological, chemical or physical agent;
- (e) afford assistance and co-operation to a committee and a health and safety representative in the carrying out by the committee and the health and safety representative of any of their functions;
- (f) only employ in or about a workplace a person over such age as may be prescribed;
- (g) not knowingly permit a person who is under such age as may be prescribed to be in or about a workplace;
- (h) take every precaution reasonable in the circumstances for the protection of a worker;
- (i) post, in the workplace, a copy of this Act and any explanatory material prepared by the Ministry, both in English and the majority language of the workplace, outlining the rights, responsibilities and duties of workers;
- (j) prepare and review at least annually a written occupational health and safety policy and develop and maintain a program to implement that policy;
- (k) post at a conspicuous location in the workplace a copy of the occupational health and safety policy;
- (l) provide to the committee or to a health and safety representative the results of a report respecting occupational health and safety that is in the employer's possession and, if that report is in writing, a copy of the portions of the report that concern occupational health and safety; and
- (m) advise workers of the results of a report referred to in clause (l) and, if the report is in writing, make available to them on request copies of the portions of the report that concern occupational health and safety;
- (n) notify a Director if a committee or a health and safety representative, if any, has identified potential structural inadequacies of a building, structure, or any part thereof, or any other part of a workplace, whether temporary or permanent, as a source of danger or hazard to workers. R.S.O. 1990, c. O.1, s. 25 (2); 2017, c. 34, Sched. 30, s. 1 (1).

**Idem**

(3) For the purposes of clause (2) (c), an employer may appoint himself or herself as a supervisor where the employer is a competent person. R.S.O. 1990, c. O.1, s. 25 (3).

**Same**

(3.1) Any explanatory material referred to under clause (2) (i) may be published as part of the poster required under section 2 of the *Employment Standards Act, 2000*. 2009, c. 23, s. 2.

**Same**

(4) Unless otherwise prescribed, clause (2) (j) does not apply with respect to a workplace at which five or fewer workers are regularly employed. 2021, c. 34, Sched. 15, s. 4.

**Same**

(5) Clause (2) (n) does not apply to an employer that owns the workplace. 2017, c. 34, Sched. 30, s. 1 (2).

**Section Amendments with date in force (d/m/y) [ + ]****Footwear**

**25.1** (1) An employer shall not require a worker to wear footwear with an elevated heel unless it is required for the worker to perform his or her work safely. 2017, c. 22, Sched. 3, s. 1.

**Exception**

(2) Subsection (1) does not apply with respect to an employer of a worker who works as a performer in the entertainment and advertising industry. 2017, c. 22, Sched. 3, s. 1.

**Definitions**

(3) In subsection (2),

“entertainment and advertising industry” means the industry of producing,

(a) live or broadcast performances, or

(b) visual, audio or audio-visual recordings of performances, in any medium or format; (“industrie du spectacle et de la publicité”)

“performance” means a performance of any kind, including theatre, dance, ice skating, comedy, musical productions, variety, circus, concerts, opera, modelling and voice-overs, and “performer” has a corresponding meaning. (“représentation”, “artiste”, “interprète”) 2017, c. 22, Sched. 3, s. 1.

**Section Amendments with date in force (d/m/y) [ + ]****Naloxone kits**

**25.2** (1) Where an employer becomes aware, or ought reasonably to be aware, that there may be a risk of a worker having an opioid overdose at a workplace where that worker performs work for the employer, or where the prescribed circumstances exist, the employer shall,

(a) provide and maintain in good condition a naloxone kit in that workplace; and

(b) comply with any other prescribed requirements respecting the provision and maintenance of naloxone kits and the training referred to in subsection (3). 2022, c. 7, Sched. 4, s. 1.

**Location of kit**

(2) The employer shall ensure that, at any time there are workers in the workplace, the naloxone kit is in the charge of a worker who works in the vicinity of the kit and who has received the training described in subsection (3). 2022, c. 7, Sched. 4, s. 1.

**Training**

(3) The training shall include training to recognize an opioid overdose, to administer naloxone and to acquaint the worker with any hazards related to the administration of naloxone, and shall meet such other requirements as may be prescribed. 2022, c. 7, Sched. 4, s. 1.

**Limit on disclosure**

(4) No employer shall disclose to any person more personal information than is reasonably necessary to comply with this section. 2022, c. 7, Sched. 4, s. 1.

**Employer duties**

(5) For greater certainty, the employer duties set out in section 25 apply, as appropriate, with respect to the administration of naloxone in the workplace. 2022, c. 7, Sched. 4, s. 1.

**Definition**

(6) In this section,

“naloxone kit” means a kit that includes the prescribed contents. 2022, c. 7, Sched. 4, s. 1.

**Section Amendments with date in force (d/m/y) [ + ]****Additional duties of employers**

**26** (1) In addition to the duties imposed by section 25, an employer shall,

- (a) establish an occupational health service for workers as prescribed;
- (b) where an occupational health service is established as prescribed, maintain the same according to the standards prescribed;
- (c) keep and maintain accurate records of the handling, storage, use and disposal of biological, chemical or physical agents as prescribed;
- (d) accurately keep and maintain and make available to the worker affected such records of the exposure of a worker to biological, chemical or physical agents as may be prescribed;
- (e) notify a Director of the use or introduction into a workplace of such biological, chemical or physical agents as may be prescribed;
- (f) monitor at such time or times or at such interval or intervals the levels of biological, chemical or physical agents in a workplace and keep and post accurate records thereof as prescribed;
- (g) comply with a standard limiting the exposure of a worker to biological, chemical or physical agents as prescribed;
- (h) establish a medical surveillance program for the benefit of workers as prescribed;
- (i) provide for safety-related medical examinations and tests for workers as prescribed;
- (j) where so prescribed, only permit a worker to work or be in a workplace who has undergone such medical examinations, tests or x-rays as prescribed and who is found to be physically fit to do the work in the workplace;
- (k) where so prescribed, provide a worker with written instructions as to the measures and procedures to be taken for the protection of a worker; and
- (l) carry out such training programs for workers, supervisors and committee members as may be prescribed.

**Idem**

(2) For the purposes of clause (1) (a), a group of employers, with the approval of a Director, may act as an employer. R.S.O. 1990, c. O.1, s. 26 (1, 2).

**Idem**

(3) If a worker participates in a prescribed medical surveillance program or undergoes prescribed medical examinations or tests, his or her employer shall pay,

- (a) the worker's costs for medical examinations or tests required by the medical surveillance program or required by regulation;
- (b) the worker's reasonable travel costs respecting the examinations or tests; and
- (c) the time the worker spends to undergo the examinations or tests, including travel time, which shall be deemed to be work time for which the worker shall be paid at his or her regular or premium rate as may be proper. R.S.O. 1990, c. O.1, s. 26 (3); 1994, c. 27, s. 120 (3).

**Section Amendments with date in force (d/m/y) [ + ]****Duties of supervisor**

**27** (1) A supervisor shall ensure that a worker,

- (a) works in the manner and with the protective devices, measures and procedures required by this Act and the regulations; and
- (b) uses or wears the equipment, protective devices or clothing that the worker's employer requires to be used or worn.

**Additional duties of supervisor**

(2) Without limiting the duty imposed by subsection (1), a supervisor shall,

- (a) advise a worker of the existence of any potential or actual danger to the health or safety of the worker of which the supervisor is aware;
- (b) where so prescribed, provide a worker with written instructions as to the measures and procedures to be taken for protection of the worker; and

(c) take every precaution reasonable in the circumstances for the protection of a worker. R.S.O. 1990, c. O.1, s. 27.

**Duties of workers**

**28** (1) A worker shall,

- (a) work in compliance with the provisions of this Act and the regulations;
- (b) use or wear the equipment, protective devices or clothing that the worker's employer requires to be used or worn;
- (c) report to his or her employer or supervisor the absence of or defect in any equipment or protective device of which the worker is aware and which may endanger himself, herself or another worker; and
- (d) report to his or her employer or supervisor any contravention of this Act or the regulations or the existence of any hazard of which he or she knows.

**Idem**

(2) No worker shall,

- (a) remove or make ineffective any protective device required by the regulations or by his or her employer, without providing an adequate temporary protective device and when the need for removing or making ineffective the protective device has ceased, the protective device shall be replaced immediately;
- (b) use or operate any equipment, machine, device or thing or work in a manner that may endanger himself, herself or any other worker; or
- (c) engage in any prank, contest, feat of strength, unnecessary running or rough and boisterous conduct.

**Consent to medical surveillance**

(3) A worker is not required to participate in a prescribed medical surveillance program unless the worker consents to do so. R.S.O. 1990, c. O.1, s. 28.

**Duties of owners**

**29** (1) The owner of a workplace that is not a project shall,

- (a) ensure that,
  - (i) such facilities as are prescribed are provided,
  - (ii) any facilities prescribed to be provided are maintained as prescribed,
  - (iii) the workplace complies with the regulations, and
  - (iv) no workplace is constructed, developed, reconstructed, altered or added to except in compliance with this Act and the regulations; and
- (b) where so prescribed, furnish to a Director any drawings, plans or specifications of any workplace as prescribed. R.S.O. 1990, c. O.1, s. 29 (1).

**Mine plans**

(2) The owner of a mine shall cause drawings, plans or specifications to be maintained and kept up to date not more than six months last past on such scale and showing such matters or things as may be prescribed. R.S.O. 1990, c. O.1, s. 29 (2).

**Plans of workplaces**

(3) Where so prescribed, an owner or employer shall,

- (a) not begin any construction, development, reconstruction, alteration, addition or installation to or in a workplace until the drawings, layout and specifications thereof and any alterations thereto have been filed with the Ministry for review by a professional engineer of the Ministry for compliance with this Act and the regulations; and

- (b) keep a copy of the drawings as reviewed in a convenient location at or near the workplace and such drawings shall be produced by the owner or employer upon the request of an inspector for his or her examination and inspection. R.S.O. 1990, c. O.1, s. 29 (3); 2021, c. 34, Sched. 15, s. 5.

**Additional information**

(4) A professional engineer of the Ministry may require the drawings, layout and specifications to be supplemented by the owner or employer with additional information. R.S.O. 1990, c. O.1, s. 29 (4); 2021, c. 34, Sched. 15, s. 5.

**Fees**

(5) Fees as prescribed for the filing and review of drawings, layout or specifications shall become due and payable by the owner or employer upon filing. R.S.O. 1990, c. O.1, s. 29 (5).

**Section Amendments with date in force (d/m/y) [ + ]****Duties of owners — washroom access**

**29.1** (1) Subject to subsection (2), the owner of a workplace shall ensure that access to a washroom is provided, on request, to a worker who is present at the workplace to deliver anything to the workplace, or to collect anything from the workplace for delivery elsewhere. 2021, c. 35, Sched. 5, s. 1.

**Exceptions**

(2) Access to a washroom at a workplace is not required under subsection (1),

- (a) if providing access would not be reasonable or practical for reasons relating to the health or safety of any person at the workplace, including the worker who requests to use a washroom;
- (b) if providing access would not be reasonable or practical having regard to all the circumstances, including, but not limited to, the nature of the workplace, the type of work at the workplace, the conditions of work at the workplace, the security of any person at the workplace and the location of the washroom within the workplace; or
- (c) if the washroom is in, or can only be accessed through, a dwelling. 2021, c. 35, Sched. 5, s. 1.

**Section Amendments with date in force (d/m/y) [ + ]****Duty of project owners**

**30** (1) Before beginning a project, the owner shall determine whether any designated substances are present at the project site and shall prepare a list of all designated substances that are present at the site.

**Tenders**

(2) If any work on a project is tendered, the person issuing the tenders shall include, as part of the tendering information, a copy of the list referred to in subsection (1).

**Idem**

(3) An owner shall ensure that a prospective constructor of a project on the owner's property has received a copy of the list referred to in subsection (1) before entering into a binding contract with the constructor.

**Duty of constructors**

(4) The constructor for a project shall ensure that each prospective contractor and subcontractor for the project has received a copy of the list referred to in subsection (1) before the prospective contractor or subcontractor enters into a binding contract for the supply of work on the project.

**Liability**

(5) An owner who fails to comply with this section is liable to the constructor and every contractor and subcontractor who suffers any loss or damages as the result of the subsequent discovery on the project of a designated substance that the owner ought reasonably to have known of but that was not on the list prepared under subsection (1).

**Idem**

(6) A constructor who fails to comply with this section is liable to every contractor and subcontractor who suffers any loss or damages as the result of the subsequent discovery on the project of a designated substance that was on the list prepared under subsection (1). R.S.O. 1990, c. O.1, s. 30.

**Duties of suppliers**

**31** (1) Every person who supplies any machine, device, tool or equipment under any rental, leasing or similar arrangement for use in or about a workplace shall ensure,

- (a) that the machine, device, tool or equipment is in good condition;
- (b) that the machine, device, tool or equipment complies with this Act and the regulations; and
- (c) if it is the person's responsibility under the rental, leasing or similar arrangement to do so, that the machine, device, tool or equipment is maintained in good condition. R.S.O. 1990, c. O.1, s. 31 (1).

**Architects and engineers**

(2) An architect, as defined in the *Architects Act*, or an engineer contravenes this Act if, as a result of the architect's or engineer's advice that is given or the architect's or engineer's certification required under this Act that is made negligently or incompetently, a worker is endangered. 2021, c. 34, Sched. 15, s. 6.

**Same**

(3) For greater certainty, a contravention described in subsection (2) continues for each day or part of a day that a worker is endangered. 2021, c. 34, Sched. 15, s. 6.

**Section Amendments with date in force (d/m/y) [ + ]****Duties of directors and officers of a corporation**

**32** Every director and every officer of a corporation shall take all reasonable care to ensure that the corporation complies with,

- (a) this Act and the regulations;
- (b) orders and requirements of inspectors and Directors; and
- (c) orders of the Minister. R.S.O. 1990, c. O.1, s. 32.

**PART III.0.1  
VIOLENCE AND HARASSMENT**

**Policies, violence and harassment**

**32.0.1** (1) An employer shall,

- (a) prepare a policy with respect to workplace violence;
- (b) prepare a policy with respect to workplace harassment; and
- (c) review the policies as often as is necessary, but at least annually. 2009, c. 23, s. 3.

**Written form, posting**

(2) The policies shall be in written form and shall be posted at a conspicuous place in the workplace. 2009, c. 23, s. 3.

**Exception**

(3) Subsection (2) does not apply if the number of workers regularly employed at the workplace is five or fewer, unless an inspector orders otherwise. 2009, c. 23, s. 3; 2011, c. 1, Sched. 7, s. 2 (3).

**Section Amendments with date in force (d/m/y) [ + ]****Program, violence**

**32.0.2** (1) An employer shall develop and maintain a program to implement the policy with respect to workplace violence required under clause 32.0.1 (1) (a). 2009, c. 23, s. 3.

**Contents**

(2) Without limiting the generality of subsection (1), the program shall,

- (a) include measures and procedures to control the risks identified in the assessment required under subsection 32.0.3 (1) as likely to expose a worker to physical injury;
- (b) include measures and procedures for summoning immediate assistance when workplace violence occurs or is likely to occur;
- (c) include measures and procedures for workers to report incidents of workplace violence to the employer or supervisor;
- (d) set out how the employer will investigate and deal with incidents or complaints of workplace violence; and
- (e) include any prescribed elements. 2009, c. 23, s. 3.

**Section Amendments with date in force (d/m/y) [ + ]****Assessment of risks of violence**

**32.0.3** (1) An employer shall assess the risks of workplace violence that may arise from the nature of the workplace, the type of work or the conditions of work. 2009, c. 23, s. 3.

**Considerations**

(2) The assessment shall take into account,

- (a) circumstances that would be common to similar workplaces;
- (b) circumstances specific to the workplace; and
- (c) any other prescribed elements. 2009, c. 23, s. 3.

**Results**

(3) An employer shall,

- (a) advise the committee or a health and safety representative, if any, of the results of the assessment, and provide a copy if the assessment is in writing; and
- (b) if there is no committee or health and safety representative, advise the workers of the results of the assessment and, if the assessment is in writing, provide copies on request or advise the workers how to obtain copies. 2009, c. 23, s. 3.

**Reassessment**

(4) An employer shall reassess the risks of workplace violence as often as is necessary to ensure that the related policy under clause 32.0.1 (1) (a) and the related program under subsection 32.0.2 (1) continue to protect workers from workplace violence. 2009, c. 23, s. 3.

**Same**

(5) Subsection (3) also applies with respect to the results of the reassessment. 2009, c. 23, s. 3.

**Section Amendments with date in force (d/m/y) [ + ]****Domestic violence**

**32.0.4** If an employer becomes aware, or ought reasonably to be aware, that domestic violence that would likely expose a worker to physical injury may occur in the workplace, the employer shall take every precaution reasonable in the circumstances for the protection of the worker. 2009, c. 23, s. 3.

**Section Amendments with date in force (d/m/y) [ + ]****Duties re violence**

**32.0.5** (1) For greater certainty, the employer duties set out in section 25, the supervisor duties set out in section 27, and the worker duties set out in section 28 apply, as appropriate, with respect to workplace violence. 2009, c. 23, s. 3.

**Information**

(2) An employer shall provide a worker with,

- (a) information and instruction that is appropriate for the worker on the contents of the policy and program with respect to workplace violence; and
- (b) any other prescribed information or instruction. 2009, c. 23, s. 3.

**Provision of information**

(3) An employer's duty to provide information to a worker under clause 25 (2) (a) and a supervisor's duty to advise a worker under clause 27 (2) (a) include the duty to provide information, including personal information, related to a risk of workplace violence from a person with a history of violent behaviour if,

- (a) the worker can be expected to encounter that person in the course of his or her work; and
- (b) the risk of workplace violence is likely to expose the worker to physical injury. 2009, c. 23, s. 3.

**Limit on disclosure**

(4) No employer or supervisor shall disclose more personal information in the circumstances described in subsection (3) than is reasonably necessary to protect the worker from physical injury. 2009, c. 23, s. 3.

**Section Amendments with date in force (d/m/y) [ + ]****Program, harassment**

**32.0.6** (1) An employer shall, in consultation with the committee or a health and safety representative, if any, develop and maintain a written program to implement the policy with respect to workplace harassment required under clause 32.0.1 (1) (b). 2016, c. 2, Sched. 4, s. 2 (1).

**Contents**

(2) Without limiting the generality of subsection (1), the program shall,

- (a) include measures and procedures for workers to report incidents of workplace harassment to the employer or supervisor;
- (b) include measures and procedures for workers to report incidents of workplace harassment to a person other than the employer or supervisor, if the employer or supervisor is the alleged harasser;
- (c) set out how incidents or complaints of workplace harassment will be investigated and dealt with;
- (d) set out how information obtained about an incident or complaint of workplace harassment, including identifying information about any individuals involved, will not be disclosed unless the disclosure is necessary for the purposes of investigating or taking corrective action with respect to the incident or complaint, or is otherwise required by law;
- (e) set out how a worker who has allegedly experienced workplace harassment and the alleged harasser, if he or she is a worker of the employer, will be informed of the results of the investigation and of any corrective action that has been taken or that will be taken as a result of the investigation; and
- (f) include any prescribed elements. 2009, c. 23, s. 3; 2016, c. 2, Sched. 4, s. 2 (2).

**Section Amendments with date in force (d/m/y) [ + ]****Duties re harassment**

**32.0.7** (1) To protect a worker from workplace harassment, an employer shall ensure that,

- (a) an investigation is conducted into incidents and complaints of workplace harassment that is appropriate in the circumstances;
- (b) the worker who has allegedly experienced workplace harassment and the alleged harasser, if he or she is a worker of the employer, are informed in writing of the results of the investigation and of any corrective action that has been taken or that will be taken as a result of the investigation;
- (c) the program developed under section 32.0.6 is reviewed as often as necessary, but at least annually, to ensure that it adequately implements the policy with respect to workplace harassment required under clause 32.0.1 (1) (b); and
- (d) such other duties as may be prescribed are carried out. 2016, c. 2, Sched. 4, s. 3.

#### **Results of investigation not a report**

(2) The results of an investigation under clause (1) (a), and any report created in the course of or for the purposes of the investigation, are not a report respecting occupational health and safety for the purposes of subsection 25 (2). 2016, c. 2, Sched. 4, s. 3.

#### **Section Amendments with date in force (d/m/y) [ + ]**

##### **Information and instruction, harassment**

**32.0.8** An employer shall provide a worker with,

- (a) information and instruction that is appropriate for the worker on the contents of the policy and program with respect to workplace harassment; and
- (b) any other prescribed information. 2016, c. 2, Sched. 4, s. 3.

#### **Section Amendments with date in force (d/m/y) [ + ]**

### **PART III.1 CODES OF PRACTICE**

#### **Definition**

**32.1** In this Part,

“legal requirement” means a requirement imposed by a provision of this Act or by a regulation made under this Act. 2011, c. 11, s. 10.

#### **Section Amendments with date in force (d/m/y) [ + ]**

##### **Approval of code of practice**

**32.2** (1) The Minister may approve a code of practice and the approved code of practice may be followed to comply with a legal requirement specified in the approval. 2011, c. 11, s. 11.

#### **Same**

(1.1) An approval made under subsection (1) may be subject to such terms and conditions as the Minister considers appropriate and may be general or particular in its application. 2011, c. 11, s. 11.

##### **Withdrawal of approval**

(2) The Minister may withdraw an approval under subsection (1). 2001, c. 9, Sched. I, s. 3 (4).

#### **Legislation Act, 2006, Part III**

(3) Part III (Regulations) of the *Legislation Act, 2006* does not apply with respect to an approval under this section or the withdrawal of such an approval. 2001, c. 9, Sched. I, s. 3 (4); 2006, c. 21, Sched. F, s. 136 (1).

#### **Delegation**

(4) The Minister may delegate the Minister's power under this section to the Deputy Minister. 2001, c. 9, Sched. I, s. 3 (4).

**Section Amendments with date in force (d/m/y) [ + ]****Publication of approval, etc.**

**32.3** (1) An approval or a withdrawal of an approval under section 32.2 shall be published in *The Ontario Gazette*. 2001, c. 9, Sched. I, s. 3 (4).

**Effect of publication**

(2) Publication of an approval or withdrawal of approval in *The Ontario Gazette*,

- (a) is, in the absence of evidence to the contrary, proof of the approval or withdrawal of approval; and
- (b) shall be deemed to be notice of the approval or withdrawal of approval to everyone affected by it. 2001, c. 9, Sched. I, s. 3 (4).

**Judicial notice**

(3) Judicial notice shall be taken of an approval or withdrawal of approval published in *The Ontario Gazette*. 2001, c. 9, Sched. I, s. 3 (4).

**Section Amendments with date in force (d/m/y) [ + ]****Effect of approved code of practice**

**32.4** The following apply if a code of practice is approved under section 32.2:

1. Subject to any terms or conditions set out in the approval, compliance with the approved code of practice is deemed to be compliance with the legal requirement.
2. A failure to comply with the approved code of practice is not, in itself, a breach of the legal requirement. 2011, c. 11, s. 12.

**Section Amendments with date in force (d/m/y) [ + ]**

**PART IV  
TOXIC SUBSTANCES**

**Orders of Director**

**33** (1) Where a biological, chemical or physical agent or combination of such agents is used or intended to be used in the workplace and its presence in the workplace or the manner of its use is in the opinion of a Director likely to endanger the health of a worker, the Director shall by notice in writing to the employer order that the use, intended use, presence or manner of use be,

- (a) prohibited;
- (b) limited or restricted in such manner as the Director specifies; or
- (c) subject to such conditions regarding administrative control, work practices, engineering control and time limits for compliance as the Director specifies. R.S.O. 1990, c. O.1, s. 33 (1).

**Contents of order**

(2) Where a Director makes an order to an employer under subsection (1), the order shall,

- (a) identify the biological, chemical or physical agent, or combination of such agents, and the manner of use that is the subject-matter of the order; and
- (b) state the opinion of the Director as to the likelihood of the danger to the health of a worker, and the Director's reasons in respect thereof, including the matters or causes which give rise to his or her opinion. R.S.O. 1990, c. O.1, s. 33 (2).

**Posting of order**

(3) The employer shall provide a copy of an order made under subsection (1) to the committee, health and safety representative and trade union, if any, and shall cause a copy of the order to be posted in a conspicuous place in the workplace where it is most likely to come to the attention of the workers who may be affected by the use, presence or intended use of the biological, chemical or physical agent or combination of agents. R.S.O. 1990, c. O.1, s. 33 (3).

**Appeal to Minister**

(4) Where the employer, a worker or a trade union considers that he, she or it is aggrieved by an order made under subsection (1), the employer, worker or trade union may by notice in writing given within fourteen days of the making of the order appeal to the Minister. R.S.O. 1990, c. O.1, s. 33 (4).

**Delegation**

(5) The Minister may, having regard to the circumstances, direct that an appeal under subsection (4) be determined on his or her behalf by a person appointed by the Minister for that purpose. R.S.O. 1990, c. O.1, s. 33 (5).

**Procedure**

(6) The Minister or, where a person has been appointed under subsection (5), the person so appointed, may give such directions and issue such orders as he or she considers proper or necessary concerning the procedures to be adopted or followed and shall have all the powers of a chair of a board of arbitration under subsection 48 (12) of the *Labour Relations Act, 1995*. R.S.O. 1990, c. O.1, s. 33 (6); 2001, c. 9, Sched. I, s. 3 (5).

**Substitution of findings**

(7) On an appeal, the Minister or, where a person has been appointed under subsection (5), the person so appointed, may substitute his or her findings for those of the Director and may rescind or affirm the order appealed from or make a new order in substitution therefor and such order shall stand in the place of and have the like effect under this Act and the regulations as the order of the Director, and such order shall be final and not subject to appeal under this section. R.S.O. 1990, c. O.1, s. 33 (7).

**Matters to be considered**

(8) In making a decision or order under subsection (1) or (7), a Director, the Minister or, where a person has been appointed under subsection (5), the person so appointed shall consider as relevant factors,

- (a) the relation of the agent, combination of agents or by-product to a biological or chemical agent that is known to be a danger to health;
- (b) the quantities of the agent, combination of agents or by-product used or intended to be used or present;
- (c) the extent of exposure;
- (d) the availability of other processes, agents or equipment for use or intended use;
- (e) data regarding the effect of the process or agent on health; and
- (f) any criteria or guide with respect to the exposure of a worker to a biological, chemical or physical agent or combination of such agents that are adopted by a regulation. R.S.O. 1990, c. O.1, s. 33 (8).

**Suspension of order by Minister, etc., pending disposition of appeal**

(9) On an appeal under subsection (4), the Minister or, where a person has been appointed under subsection (5), the person so appointed may suspend the operation of the order appealed from pending the disposition of the appeal. R.S.O. 1990, c. O.1, s. 33 (9).

**Remuneration of appointee**

(10) A person appointed under subsection (5) shall be paid such remuneration and expenses as the Minister, with the approval of the Lieutenant Governor in Council, determines. R.S.O. 1990, c. O.1, s. 33 (10).

**Application**

(11) This section does not apply to designated substances. R.S.O. 1990, c. O.1, s. 33 (11).

**No hearing required prior to issuing order**

(12) A Director is not required to hold or afford to an employer or any other person an opportunity for a hearing before making an order under subsection (1). R.S.O. 1990, c. O.1, s. 33 (12).

**Section Amendments with date in force (d/m/y) [ + ]**

**34** REPEALED: 2019, c. 14, Sched. 13, s. 2.

**Section Amendments with date in force (d/m/y) [ + ]****Designation of substances**

**35** Prior to a substance being designated under paragraph 23 of subsection 70 (2), the Minister,

- (a) shall publish in *The Ontario Gazette* a notice stating that the substance may be designated and calling for briefs or submissions in relation to the designation; and
- (b) shall publish in *The Ontario Gazette* a notice setting forth the proposed regulation relating to the designation of the substance at least sixty days before the regulation is filed with the Registrar of Regulations. R.S.O. 1990, c. O.1, s. 35.

**36** Repealed: 2001, c. 9, Sched. I, s. 3 (7).

**Section Amendments with date in force (d/m/y) [ + ]****Hazardous material identification and data sheets**

**37** (1) An employer,

- (a) shall ensure that all hazardous materials present in the workplace are identified in the prescribed manner;
- (b) shall obtain or prepare, as may be prescribed, a current safety data sheet for all hazardous materials present in the workplace; and
- (c) shall ensure that the identification required by clause (a) and safety data sheets required by clause (b) are available in English and such other languages as may be prescribed. R.S.O. 1990, c. O.1, s. 37 (1); 2015, c. 27, Sched. 4, s. 2 (1, 2).

**Prohibition**

(2) No person shall remove or deface the identification described in clause (1) (a) for a hazardous material. R.S.O. 1990, c. O.1, s. 37 (2).

**Hazardous material not to be used**

(3) An employer shall ensure that a hazardous material is not used, handled or stored at a workplace unless the prescribed requirements concerning identification, safety data sheets and worker instruction and training are met. R.S.O. 1990, c. O.1, s. 37 (3); 2015, c. 27, Sched. 4, s. 2 (2).

**Notice to Director**

(4) An employer shall advise a Director in writing if the employer, after making reasonable efforts, is unable to obtain a label or safety data sheet required by subsection (1). R.S.O. 1990, c. O.1, s. 37 (4); 2015, c. 27, Sched. 4, s. 2 (3).

(5) REPEALED: 2015, c. 27, Sched. 4, s. 2 (4).

**Section Amendments with date in force (d/m/y) [ + ]****Making safety data sheets available**

**38** (1) A copy of every current safety data sheet required by this Part in respect of hazardous materials in a workplace shall be,

- (a) made available by the employer in the workplace in such a manner as to allow examination by the workers;

- (b) furnished by the employer to the committee or health and safety representative, if any, for the workplace or to a worker selected by the workers to represent them, if there is no committee or health and safety representative;
- (c) furnished by the employer on request or if so prescribed to the medical officer of health of the health unit in which the workplace is located;
- (d) furnished by the employer on request or if so prescribed to the fire department which serves the location in which the workplace is located; and
- (e) filed by the employer with a Director on request or if so prescribed. 2001, c. 9, Sched. I, s. 3 (8); 2015, c. 27, Sched. 4, s. 3 (1).

**Additional requirement**

(1.1) In addition to complying with subsection (1), the employer shall make a copy of a safety data sheet readily available to those workers who may be exposed to the hazardous material to which it relates. 2015, c. 27, Sched. 4, s. 3 (2).

**Public access**

(2) The medical officer of health, at the request of any person, shall request an employer to furnish a copy of a current safety data sheet. 2001, c. 9, Sched. I, s. 3 (9); 2015, c. 27, Sched. 4, s. 3 (3).

**Same**

(3) At the request of any person, the medical officer of health shall make available to the person for inspection a copy of any safety data sheet requested by the person and in the possession of the medical officer of health. 2001, c. 9, Sched. I, s. 3 (9); 2015, c. 27, Sched. 4, s. 3 (4).

**Idem**

(4) A medical officer of health shall not disclose the name of any person who makes a request under subsection (2) or (3). R.S.O. 1990, c. O.1, s. 38 (4).

**Electronic format**

(5) For greater certainty, a copy of a safety data sheet in an electronic format is a copy for the purposes of this section. 2015, c. 27, Sched. 4, s. 3 (5).

**Requirement to consult**

(6) An employer shall consult with the committee and the health and safety representative, if any, on making safety data sheets available in the workplace or furnishing them as required by clauses (1) (a) and (b) and subsection (1.1). 2015, c. 27, Sched. 4, s. 3 (5).

**Section Amendments with date in force (d/m/y) [ + ]****Assessment for hazardous materials**

**39** (1) Where so prescribed, an employer shall assess all biological and chemical agents produced in the workplace for use therein to determine if they are hazardous materials.

**Assessments to be made available**

(2) The assessment required by subsection (1) shall be in writing and a copy of it shall be,

- (a) made available by the employer in the workplace in such a manner as to allow examination by the workers;
- (b) furnished by the employer to the committee or health and safety representative, if any, for the workplace or to a worker selected by the workers to represent them, if there is no committee or health and safety representative. R.S.O. 1990, c. O.1, s. 39.

**Confidential business information**

**40** (1) An employer may file a claim for an exemption from disclosing,

- (a) information required under this Part in a label or safety data sheet; or
- (b) the name of a toxicological study used by the employer to prepare a safety data sheet,

on the grounds that it is confidential business information. R.S.O. 1990, c. O.1, s. 40 (1); 2001, c. 9, Sched. I, s. 3 (10); 2015, c. 27, Sched. 4, s. 4 (1, 2).

**Idem**

(2) An application under subsection (1) shall be made only in respect of such types of confidential business information as may be prescribed. R.S.O. 1990, c. O.1, s. 40 (2).

**Determination of claim**

(3) A claim for an exemption made under subsection (1) shall be determined in accordance with the process set out in the *Hazardous Materials Information Review Act* (Canada). 2015, c. 27, Sched. 4, s. 4 (3).

**Appeal**

(4) The employer or any worker of the employer or any trade union representing the workers of the employer may, in accordance with the appeal process set out in the *Hazardous Materials Information Review Act* (Canada), appeal a determination made under subsection (3) and the appeal shall be determined in accordance with that process. 2015, c. 27, Sched. 4, s. 4 (3).

(5) REPEALED: 2015, c. 27, Sched. 4, s. 4 (3).

**Effect of claim**

(6) Information that an employer considers to be confidential business information is exempt from disclosure from the time a claim is filed under subsection (1) until the claim is finally determined and for three years thereafter, if the claim is found to be valid. R.S.O. 1990, c. O.1, s. 40 (6).

**Effect of determination**

(7) A determination made under this section applies for the purposes of this Part. 2015, c. 27, Sched. 4, s. 4 (4).

(8) REPEALED: 2015, c. 27, Sched. 4, s. 4 (4).

**Section Amendments with date in force (d/m/y) [ + ]****Information privileged**

**40.1** (1) Subject to subsection (2), all information obtained by an employee in the Ministry from a person acting under the authority of the *Hazardous Materials Information Review Act* (Canada) is privileged and no employee in the Ministry shall knowingly, without consent in writing of the Chief Screening Officer appointed under that Act,

(a) communicate or allow to be communicated to any person any information obtained; or

(b) allow any person to inspect or to have access to any part of a book, record, writing or other document containing any information obtained. 2015, c. 27, Sched. 4, s. 5 (1).

**Exception**

(2) An employee in the Ministry may communicate or allow to be communicated information described in subsection (1) or allow inspection of or access to any part of a book, record, writing or other document containing any such information to or by,

(a) another employee in the Ministry for the purpose of administering or enforcing this Act; or

(b) a physician or a medical professional prescribed under the *Hazardous Materials Information Review Act* (Canada) who requests that information for the purpose of making a medical diagnosis of, or rendering medical treatment to, a person in an emergency. 1992, c. 14, s. 2 (1); 2006, c. 35, Sched. C, s. 93 (4).

**Conditions**

(3) No person who obtains any information under subsection (2) shall knowingly disclose that information to any other person or knowingly allow any other person to have access to that information except as may be necessary for the purposes mentioned in that subsection. 1992, c. 14, s. 2 (1).

**Non-disclosure prevails**

(4) Despite subsection 63 (1), the requirements in this section that information received from a person acting under the authority of the *Hazardous Materials Information Review Act* (Canada) not be disclosed prevail over any other law. 2015, c. 27, Sched. 4, s. 5 (2).

**Section Amendments with date in force (d/m/y) [ + ]****Hazardous physical agents**

**41** (1) A person who distributes or supplies, directly or indirectly, or manufactures, produces or designs a thing for use in a workplace that causes, emits or produces a hazardous physical agent when the thing is in use or operation shall ensure that such information as may be prescribed is readily available respecting the hazardous physical agent and the proper use or operation of the thing.

**Duty of employer**

(2) Where an employer has a thing described in subsection (1) in the workplace, the employer shall ensure that the information referred to in that subsection has been obtained and is,

- (a) made available in the workplace for workers who use or operate the thing or who are likely to be exposed to the hazardous physical agent; and
- (b) furnished by the employer to the committee or health and safety representative, if any, for the workplace or a worker selected by the workers to represent them, if there is no committee or health and safety representative.

**Notices**

(3) An employer to whom subsection (2) applies shall post prominent notices identifying and warning of the hazardous physical agent in the part of the workplace in which the thing is used or operated or is to be used or operated.

**Idem**

(4) Notices required by subsection (3) shall contain such information as may be prescribed and shall be in English and such other language or languages as may be prescribed. R.S.O. 1990, c. O.1, s. 41.

**Instruction and training**

**42** (1) In addition to providing information and instruction to a worker as required by clause 25 (2) (a), an employer shall ensure that a worker exposed or likely to be exposed to a hazardous material or to a hazardous physical agent receives, and that the worker participates in, such instruction and training as may be prescribed.

**Consultation**

(2) The instruction and training to be given under subsection (1) shall be developed and implemented by the employer in consultation with the committee or health and safety representative, if any, for the workplace.

**Review**

(3) An employer shall review, in consultation with the committee or health and safety representative, if any, for the workplace, the training and instruction provided to a worker and the worker's familiarity therewith at least annually.

**Idem**

(4) The review described in subsection (3) shall be held more frequently than annually, if,

- (a) the employer, on the advice of the committee or health and safety representative, if any, for the workplace, determines that such reviews are necessary; or

(b) there is a change in circumstances that may affect the health or safety of a worker. R.S.O. 1990, c. O.1, s. 42.

## PART V RIGHT TO REFUSE OR TO STOP WORK WHERE HEALTH OR SAFETY IN DANGER

### Refusal to work

#### Non-application to certain workers

**43** (1) This section does not apply to a worker described in subsection (2),

- (a) when a circumstance described in clause (3) (a), (b), (b.1) or (c) is inherent in the worker's work or is a normal condition of the worker's employment; or
- (b) when the worker's refusal to work would directly endanger the life, health or safety of another person. R.S.O. 1990, c. O.1, s. 43 (1); 2009, c. 23, s. 4 (1).

### Idem

(2) The worker referred to in subsection (1) is,

- (a) a person employed in, or a member of, a police force to which the *Police Services Act* applies;

**Note: On a day to be named by proclamation of the Lieutenant Governor, clause 43 (2) (a) of the Act is amended by striking out "a police force to which the *Police Services Act* applies" at the end and substituting "a police service to which the *Community Safety and Policing Act, 2019* applies". (See: 2019, c. 1, Sched. 4, s. 39 (1))**

- (b) a firefighter as defined in subsection 1 (1) of the *Fire Protection and Prevention Act, 1997*;
- (c) a person employed in the operation of,
  - (i) a correctional institution or facility,
  - (ii) a place of secure custody designated under section 24.1 of the *Young Offenders Act* (Canada), whether in accordance with section 88 of the *Youth Criminal Justice Act* (Canada) or otherwise,
  - (iii) a place of temporary detention under the *Youth Criminal Justice Act* (Canada), or
  - (iv) a similar institution, facility or place;
- (d) a person employed in the operation of,
  - (i) a hospital, sanatorium, long-term care home, psychiatric institution, mental health centre or rehabilitation facility,
  - (ii) a residential group home or other facility for persons with behavioural or emotional problems or a physical, mental or developmental disability,
  - (iii) an ambulance service or a first aid clinic or station,
  - (iv) a laboratory operated by the Crown or licensed under the *Laboratory and Specimen Collection Centre Licensing Act*, or
  - (v) a laundry, food service, power plant or technical service or facility used in conjunction with an institution, facility or service described in subclause (i) to (iv). R.S.O. 1990, c. O.1, s. 43 (2); 1997, c. 4, s. 84; 2001, c. 13, s. 22; 2006, c. 19, Sched. D, s. 14; 2007, c. 8, s. 221.

### Refusal to work

(3) A worker may refuse to work or do particular work where he or she has reason to believe that,

- (a) any equipment, machine, device or thing the worker is to use or operate is likely to endanger himself, herself or another worker;
- (b) the physical condition of the workplace or the part thereof in which he or she works or is to work is likely to endanger himself or herself;
- (b.1) workplace violence is likely to endanger himself or herself; or

- (c) any equipment, machine, device or thing he or she is to use or operate or the physical condition of the workplace or the part thereof in which he or she works or is to work is in contravention of this Act or the regulations and such contravention is likely to endanger himself, herself or another worker. R.S.O. 1990, c. O.1, s. 43 (3); 2009, c. 23, s. 4 (2).

**Report of refusal to work**

(4) Upon refusing to work or do particular work, the worker shall promptly report the circumstances of the refusal to the worker's employer or supervisor who shall forthwith investigate the report in the presence of the worker and, if there is such, in the presence of one of,

- (a) a committee member who represents workers, if any;
- (b) a health and safety representative, if any; or
- (c) a worker who because of knowledge, experience and training is selected by a trade union that represents the worker, or if there is no trade union, is selected by the workers to represent them,

who shall be made available and who shall attend without delay. R.S.O. 1990, c. O.1, s. 43 (4).

**Worker to remain in safe place and available for investigation**

(5) Until the investigation is completed, the worker shall remain,

- (a) in a safe place that is as near as reasonably possible to his or her work station; and
- (b) available to the employer or supervisor for the purposes of the investigation. 2009, c. 23, s. 4 (3).

**Refusal to work following investigation**

(6) Where, following the investigation or any steps taken to deal with the circumstances that caused the worker to refuse to work or do particular work, the worker has reasonable grounds to believe that,

- (a) the equipment, machine, device or thing that was the cause of the refusal to work or do particular work continues to be likely to endanger himself, herself or another worker;
- (b) the physical condition of the workplace or the part thereof in which he or she works continues to be likely to endanger himself or herself;
- (b.1) workplace violence continues to be likely to endanger himself or herself; or
- (c) any equipment, machine, device or thing he or she is to use or operate or the physical condition of the workplace or the part thereof in which he or she works or is to work is in contravention of this Act or the regulations and such contravention continues to be likely to endanger himself, herself or another worker,

the worker may refuse to work or do the particular work and the employer or the worker or a person on behalf of the employer or worker shall cause an inspector to be notified thereof. R.S.O. 1990, c. O.1, s. 43 (6); 2009, c. 23, s. 4 (4).

**Investigation by inspector**

(7) An inspector shall investigate the refusal to work in consultation with the employer or a person representing the employer, the worker, and if there is such, the person mentioned in clause (4) (a), (b) or (c). 2001, c. 9, Sched. I, s. 3 (11).

**Decision of inspector**

(8) The inspector shall, following the investigation referred to in subsection (7), decide whether a circumstance described in clause (6) (a), (b), (b.1) or (c) is likely to endanger the worker or another person. 2009, c. 23, s. 4 (5).

**Idem**

(9) The inspector shall give his or her decision, in writing, as soon as is practicable, to the employer, the worker, and, if there is such, the person mentioned in clause (4) (a), (b) or (c). R.S.O. 1990, c. O.1, s. 43 (9).

**Worker to remain in safe place and available for investigation**

(10) Pending the investigation and decision of the inspector, the worker shall remain, during the worker's normal working hours, in a safe place that is as near as reasonably possible to his or her work station and available to the inspector for the purposes of the investigation. 2009, c. 23, s. 4 (6).

**Exception**

(10.1) Subsection (10) does not apply if the employer, subject to the provisions of a collective agreement, if any,

- (a) assigns the worker reasonable alternative work during the worker's normal working hours; or
- (b) subject to section 50, where an assignment of reasonable alternative work is not practicable, gives other directions to the worker. 2009, c. 23, s. 4 (6).

**Duty to advise other workers**

(11) Pending the investigation and decision of the inspector, no worker shall be assigned to use or operate the equipment, machine, device or thing or to work in the workplace or in the part of the workplace being investigated unless, in the presence of a person described in subsection (12), the worker has been advised of the other worker's refusal and of his or her reasons for the refusal. R.S.O. 1990, c. O.1, s. 43 (11).

**Idem**

(12) The person referred to in subsection (11) must be,

- (a) a committee member who represents workers and, if possible, who is a certified member;
- (b) a health and safety representative; or
- (c) a worker who because of his or her knowledge, experience and training is selected by the trade union that represents the worker or, if there is no trade union, by the workers to represent them. R.S.O. 1990, c. O.1, s. 43 (12).

**Entitlement to be paid**

(13) A person shall be deemed to be at work and the person's employer shall pay him or her at the regular or premium rate, as may be proper,

- (a) for the time spent by the person carrying out the duties under subsections (4) and (7) of a person mentioned in clause (4) (a), (b) or (c); and
- (b) for time spent by the person carrying out the duties under subsection (11) of a person described in subsection (12). R.S.O. 1990, c. O.1, s. 43 (13).

**Section Amendments with date in force (d/m/y) [ + ]****Definition and non-application****Definition**

**44** (1) In sections 45 to 48,

"dangerous circumstances" means a situation in which,

- (a) a provision of this Act or the regulations is being contravened,
- (b) the contravention poses a danger or a hazard to a worker, and
- (c) the danger or hazard is such that any delay in controlling it may seriously endanger a worker.

**Non-application**

(2) Sections 45 to 49 do not apply to,

- (a) a workplace at which workers described in clause 43 (2) (a), (b) or (c) are employed; or

- (b) a workplace at which workers described in clause 43 (2) (d) are employed if a work stoppage would directly endanger the life, health or safety of another person. R.S.O. 1990, c. O.1, s. 44.

**Bilateral work stoppage**

**45** (1) A certified member who has reason to believe that dangerous circumstances exist at a workplace may request that a supervisor investigate the matter and the supervisor shall promptly do so in the presence of the certified member.

**Investigation by second certified member**

(2) The certified member may request that a second certified member representing the other workplace party investigate the matter if the first certified member has reason to believe that dangerous circumstances continue after the supervisor's investigation and remedial actions, if any.

**Idem**

(3) The second certified member shall promptly investigate the matter in the presence of the first certified member.

**Direction following investigation**

(4) If both certified members find that the dangerous circumstances exist, the certified members may direct the constructor or employer to stop the work or to stop the use of any part of a workplace or of any equipment, machine, device, article or thing.

**Constructor's or employer's duties**

(5) The constructor or employer shall immediately comply with the direction and shall ensure that compliance is effected in a way that does not endanger a person.

**Investigation by inspector**

(6) If the certified members do not agree whether dangerous circumstances exist, either certified member may request that an inspector investigate the matter and the inspector shall do so and provide the certified members with a written decision.

**Cancellation of direction**

(7) After taking steps to remedy the dangerous circumstances, the constructor or employer may request the certified members or an inspector to cancel the direction.

**Idem**

(8) The certified members who issued a direction may jointly cancel it or an inspector may cancel it.

**Delegation by certified member**

(9) In such circumstances as may be prescribed, a certified member who represents the constructor or employer shall designate a person to act under this section in his or her stead when the certified member is not available at the workplace. R.S.O. 1990, c. O.1, s. 45.

**Declaration against constructor, etc.**

**46** (1) A certified member at a workplace or an inspector who has reason to believe that the procedure for stopping work set out in section 45 will not be sufficient to protect a constructor's or employer's workers at the workplace from serious risk to their health or safety may apply to the Board for a declaration or recommendation described in subsection (5), or both. R.S.O. 1990, c. O.1, s. 46 (1); 1998, c. 8, s. 53 (1).

(2) Repealed: 1998, c. 8, s. 53 (2).

**Minister a party**

(3) The Minister is entitled to be a party to a proceeding before the Board. R.S.O. 1990, c. O.1, s. 46 (3); 1998, c. 8, s. 53 (3).

**Board procedure, etc.**

(4) Subsections 61 (2) to (3.13) and subsection 61 (8) apply, with necessary modifications, with respect to applications under this section. 1998, c. 8, s. 53 (4).

**Declaration and recommendation**

(5) If the Board finds that the procedure for stopping work set out in section 45 will not be sufficient to protect the constructor's or employer's workers at the workplace from serious risk to their health or safety, the Board,

- (a) may issue a declaration that the constructor or employer is subject to the procedure for stopping work set out in section 47 for the period specified; and
- (b) may recommend to the Minister that an inspector be assigned to oversee the health and safety practices of the constructor or employer at the workplace on a full-time or part-time basis for a specified period. R.S.O. 1990, c. O.1, s. 46 (5); 1998, c. 8, s. 53 (5).

**Criteria**

(6) In making a finding under subsection (5), the Board shall determine, using the prescribed criteria, whether the constructor or employer has demonstrated a failure to protect the health and safety of workers and shall consider such other matters as may be prescribed. R.S.O. 1990, c. O.1, s. 46 (6); 1998, c. 8, s. 53 (6).

**Decision final**

(7) The decision of the Board on an application is final. R.S.O. 1990, c. O.1, s. 46 (7); 1998, c. 8, s. 53 (7).

**Costs of inspector**

(8) The employer shall reimburse the Province of Ontario for the wages, benefits and expenses of an inspector assigned to the employer as recommended by the Board. 1998, c. 8, s. 53 (8).

**Section Amendments with date in force (d/m/y) [ + ]****Unilateral work stoppage**

**47** (1) This section applies, and section 45 does not apply, to a constructor or an employer,

- (a) against whom the Board has issued a declaration under section 46; or
- (b) who advises the committee at a workplace in writing that the constructor or employer adopts the procedures set out in this section respecting work stoppages. R.S.O. 1990, c. O.1, s. 47 (1); 1998, c. 8, s. 54.

**Direction re work stoppage**

(2) A certified member may direct the constructor or employer to stop specified work or to stop the use of any part of a workplace or of any equipment, machine, device, article or thing if the certified member finds that dangerous circumstances exist.

**Constructor's or employer's duties**

(3) The constructor or employer shall immediately comply with the direction and shall ensure that compliance is effected in a way that does not endanger a person.

**Investigation by constructor, etc.**

(4) After complying with the direction, the constructor or employer shall promptly investigate the matter in the presence of the certified member.

**Investigation by inspector**

(5) If the certified member and the constructor or employer do not agree whether dangerous circumstances exist, the constructor or employer or the certified member may request that an inspector investigate the matter and the inspector shall do so and provide them with a written decision.

**Cancellation of direction**

(6) After taking steps to remedy the dangerous circumstances, the constructor or employer may request the certified member or an inspector to cancel the direction.

**Idem**

(7) The certified member who made the direction or an inspector may cancel it. R.S.O. 1990, c. O.1, s. 47 (2-7).

**Section Amendments with date in force (d/m/y) [ + ]****Entitlement to investigate**

**48** (1) A certified member who receives a complaint that dangerous circumstances exist is entitled to investigate the complaint.

**Entitlement to be paid**

(2) The time spent by a certified member in exercising powers and carrying out duties under this section and sections 45 and 47 shall be deemed to be work time for which the member's employer shall pay the member at the regular or premium rate as may be proper. R.S.O. 1990, c. O.1, s. 48.

**Complaint re direction to stop work**

**49** (1) A constructor, an employer, a worker at the workplace or a representative of a trade union that represents workers at the workplace may file a complaint with the Board if he, she or it has reasonable grounds to believe that a certified member at the workplace recklessly or in bad faith exercised or failed to exercise a power under section 45 or 47. R.S.O. 1990, c. O.1, s. 49 (1); 1998, c. 8, s. 55 (1).

**Limitation**

(2) A complaint must be filed not later than 30 days after the event to which the complaint relates. R.S.O. 1990, c. O.1, s. 49 (2); 1998, c. 8, s. 55 (2).

**Minister a party**

(3) The Minister is entitled to be a party to a proceeding before the Board. R.S.O. 1990, c. O.1, s. 49 (3); 1998, c. 8, s. 55 (3).

**Board procedure, etc.**

(3.1) Subsections 61 (2) to (3.13) and subsection 61 (8) apply, with necessary modifications, with respect to complaints under this section. 1998, c. 8, s. 55 (4).

**Determination of complaint**

(4) The Board shall make a decision respecting the complaint and may make such order as it considers appropriate in the circumstances including an order decertifying a certified member. 1998, c. 8, s. 55 (5).

**Decision final**

(5) The decision of the Board is final. R.S.O. 1990, c. O.1, s. 49 (5); 1998, c. 8, s. 55 (6).

**Section Amendments with date in force (d/m/y) [ + ]**

**PART VI**  
**REPRISALS BY EMPLOYER PROHIBITED**

**No discipline, dismissal, etc., by employer**

**50** (1) No employer or person acting on behalf of an employer shall,

- (a) dismiss or threaten to dismiss a worker;
- (b) discipline or suspend or threaten to discipline or suspend a worker;
- (c) impose any penalty upon a worker; or

(d) intimidate or coerce a worker,

because the worker has acted in compliance with this Act or the regulations or an order made thereunder, has sought the enforcement of this Act or the regulations or has given evidence in a proceeding in respect of the enforcement of this Act or the regulations or in an inquest under the *Coroners Act*. R.S.O. 1990, c. O.1, s. 50 (1).

#### **Arbitration**

(2) Where a worker complains that an employer or person acting on behalf of an employer has contravened subsection (1), the worker may either have the matter dealt with by final and binding settlement by arbitration under a collective agreement, if any, or file a complaint with the Board in which case any rules governing the practice and procedure of the Board apply with all necessary modifications to the complaint. 1998, c. 8, s. 56 (1).

#### **Referral by inspector**

(2.1) Where the circumstances warrant, an inspector may refer a matter to the Board if the following conditions are met:

1. The worker has not had the matter dealt with by final and binding settlement by arbitration under a collective agreement or filed a complaint with the Board under subsection (2).
2. The worker consents to the referral. 2011, c. 11, s. 13 (1).

#### **Same**

(2.2) Any rules governing the practice and procedure of the Board apply with all necessary modifications to a referral made under subsection (2.1). 2011, c. 11, s. 13 (1).

#### **Referral not an order**

(2.3) A referral made under subsection (2.1) is not an order or decision for the purposes of section 61. 2011, c. 11, s. 13 (1).

#### **Inquiry by Board**

(3) The Board may inquire into any complaint filed under subsection (2) or referral made under subsection (2.1) and section 96 of the *Labour Relations Act, 1995*, except subsection (5), applies with all necessary modifications as if such section, except subsection (5), is enacted in and forms part of this Act. 1998, c. 8, s. 56 (1); 2011, c. 11, s. 13 (2).

#### **Same**

(4) On an inquiry by the Board into a complaint filed under subsection (2) or a referral made under subsection (2.1), sections 110, 111, 114 and 116 of the *Labour Relations Act, 1995* apply with all necessary modifications. 1998, c. 8, s. 56 (1); 2011, c. 11, s. 13 (3).

#### **Rules to expedite proceedings**

(4.1) The chair of the Board may make rules under subsection 110 (18) of the *Labour Relations Act, 1995* to expedite proceedings relating to a complaint filed under subsection (2) or a referral made under subsection (2.1). 2011, c. 11, s. 13 (4).

#### **Same**

(4.2) Subsections 110 (20), (21) and (22) of the *Labour Relations Act, 1995* apply, with necessary modifications, to rules made under subsection (4.1). 2011, c. 11, s. 13 (4); 2018, c. 14, Sched. 2, s. 21.

#### **Onus of proof**

(5) On an inquiry by the Board into a complaint filed under subsection (2) or a referral made under subsection (2.1), the burden of proof that an employer or person acting on behalf of an employer did not act contrary to subsection (1) lies upon the employer or the person acting on behalf of the employer. R.S.O. 1990, c. O.1, s. 50 (5); 1998, c. 8, s. 56 (2); 2011, c. 11, s. 13 (5).

#### **Jurisdiction when complaint by public servant**

(6) The Board shall exercise jurisdiction under this section when a complaint filed under subsection (2) or a referral made under subsection (2.1) is in respect of a worker who is a public servant within the meaning of the *Public Service of Ontario Act, 2006*. 2011, c. 11, s. 13 (6).

**Board may substitute penalty**

(7) Where on an inquiry by the Board into a complaint filed under subsection (2) or a referral made under subsection (2.1), the Board determines that a worker has been discharged or otherwise disciplined by an employer for cause and the contract of employment or the collective agreement, as the case may be, does not contain a specific penalty for the infraction, the Board may substitute such other penalty for the discharge or discipline as to the Board seems just and reasonable in all the circumstances. 1995, c. 1, s. 84 (1); 1998, c. 8, s. 56 (4); 2011, c. 11, s. 13 (7).

**Note: A complaint under subsection 50 (2) in which a final decision has not been issued on November 10, 1995 shall be decided as if subsection 50 (7), as re-enacted by the Statutes of Ontario, 1995, chapter 1, subsection 84 (1), were in force at all material times. See: 1995, c. 1, s. 84 (2).**

**Exception**

(8) Despite subsections (2) and (2.1), a person who is subject to a rule or code of discipline under the *Police Services Act* shall have his or her complaint in relation to an alleged contravention of subsection (1) dealt with under that Act. R.S.O. 1990, c. O.1, s. 50 (8); 2011, c. 11, s. 13 (8).

**Note: On a day to be named by proclamation of the Lieutenant Governor, subsection 50 (8) of the Act is repealed and the following substituted: (See: 2019, c. 1, Sched. 4, s. 39 (2))**

**Exception**

(8) Despite subsections (2) and (2.1), a police officer under the *Community Safety and Policing Act, 2019* shall have his or her complaint in relation to an alleged contravention of subsection (1) dealt with under section 191 of that Act, with necessary modifications. 2019, c. 1, Sched. 4, s. 39 (2).

**Section Amendments with date in force (d/m/y) [ + ]****Offices of the Worker and Employer Advisers****Office of the Worker Adviser**

**50.1** (1) In addition to the functions set out in section 176 of the *Workplace Safety and Insurance Act, 1997*, the Office of the Worker Adviser has the functions prescribed for the purposes of this Part, with respect to workers who are not members of a trade union. 2011, c. 11, s. 14.

**Office of the Employer Adviser**

(2) In addition to the functions set out in section 176 of the *Workplace Safety and Insurance Act, 1997*, the Office of the Employer Adviser has the functions prescribed for the purposes of this Part, with respect to employers that have fewer than 100 employees or such other number as may be prescribed. 2011, c. 11, s. 14.

**Costs**

(3) In determining the amount of the costs that may be incurred by each office under subsection 176 (3) of the *Workplace Safety and Insurance Act, 1997*, the Minister shall take into account any functions prescribed for the purposes of this Part. 2011, c. 11, s. 14.

**Section Amendments with date in force (d/m/y) [ + ]**

## PART VII

### NOTICES

**Notice of death or injury**

**51** (1) Where a person is killed or critically injured from any cause at a workplace, the constructor, if any, and the employer shall notify an inspector, and the committee, health and safety representative and trade union, if any, immediately of the occurrence by telephone or other direct means and the employer shall, within forty-eight hours after the occurrence, send to a Director and to the committee, health and safety representative and trade union, if any a written report of the circumstances of the occurrence containing such information and particulars as the regulations prescribe. R.S.O. 1990, c. O.1, s. 51 (1); 2011, c. 1, Sched. 7, s. 2 (7); 2021, c. 34, Sched. 15, s. 7.

**Preservation of wreckage**

(2) Where a person is killed or is critically injured at a workplace, no person shall, except for the purpose of,

- (a) saving life or relieving human suffering;
- (b) maintaining an essential public utility service or a public transportation system; or
- (c) preventing unnecessary damage to equipment or other property,

interfere with, disturb, destroy, alter or carry away any wreckage, article or thing at the scene of or connected with the occurrence until permission so to do has been given by an inspector. R.S.O. 1990, c. O.1, s. 51 (2).

**Section Amendments with date in force (d/m/y) [ + ]****Notice of accident, explosion, fire or violence causing injury**

**52** (1) If a person is disabled from performing his or her usual work or requires medical attention because of an accident, explosion, fire or incident of workplace violence at a workplace, but no person dies or is critically injured because of that occurrence, the employer shall, within four days of the occurrence, give written notice of the occurrence containing the prescribed information and particulars to the following:

1. The committee, the health and safety representative and the trade union, if any.
2. The Director, if an inspector requires notification of the Director. 2001, c. 9, Sched. I, s. 3 (12); 2009, c. 23, s. 5.

**Notice of occupational illness**

(2) If an employer is advised by or on behalf of a worker that the worker has an occupational illness or that a claim in respect of an occupational illness has been filed with the Workplace Safety and Insurance Board by or on behalf of the worker, the employer shall give notice in writing, within four days of being so advised, to a Director, to the committee or a health and safety representative and to the trade union, if any, containing such information and particulars as are prescribed. R.S.O. 1990, c. O.1, s. 52 (2); 1997, c. 16, s. 2 (12).

**Idem**

(3) Subsection (2) applies with all necessary modifications if an employer is advised by or on behalf of a former worker that the worker has or had an occupational illness or that a claim in respect of an occupational illness has been filed with the Workplace Safety and Insurance Board by or on behalf of the worker. R.S.O. 1990, c. O.1, s. 52 (3); 1997, c. 16, s. 2 (13).

**Section Amendments with date in force (d/m/y) [ + ]****Accident, etc., at project site or mine**

**53** (1) If an accident, premature or unexpected explosion, fire, flood or inrush of water, failure of any equipment, machine, device, article or thing, cave-in, subsidence, rockburst, or other prescribed incident occurs at a project site, mine, mining plant or other prescribed location, the person determined under subsection (2) shall, within two days after the occurrence, give notice in writing with the prescribed information and particulars,

- (a) to the committee, health and safety representative and trade union, if any; and
- (b) to a Director, unless a report under section 51 or a notice under section 52 has already been given to a Director. 2011, c. 1, Sched. 7, s. 2 (8); 2017, c. 34, Sched. 30, s. 2 (1).

**Person required to notify**

(2) The person required to give notice under subsection (1) is,

- (a) if the incident takes place at a project site, the constructor of the project;
- (b) if the incident occurs at a mine or a mining plant, the employer of a worker who works in the mine or plant; or
- (c) if the incident occurs at a prescribed location, the person prescribed for that location. 2017, c. 34, Sched. 30, s. 2 (2).

**Section Amendments with date in force (d/m/y) [ + ]****Additional notices**

**53.1** In addition to the notice requirements set out in sections 51, 52 and 53, the regulations may specify additional notice requirements that must be met in the circumstances described in those sections, including specifying who is required to provide the notice, the timeframe in which it shall be provided and the information and particulars it must contain. 2017, c. 34, Sched. 30, s. 3.

**Section Amendments with date in force (d/m/y) [ + ]****PART VIII  
ENFORCEMENT****Powers of inspector**

**54** (1) An inspector may, for the purposes of carrying out his or her duties and powers under this Act and the regulations,

- (a) subject to subsection (2), enter in or upon any workplace at any time without warrant or notice;
- (b) take up or use any machine, device, article, thing, material or biological, chemical or physical agent or part thereof;
- (c) require the production of any drawings, specifications, licence, document, record or report, and inspect, examine and copy the same;
- (d) upon giving a receipt therefor, remove any drawings, specifications, licence, document, record or report inspected or examined for the purpose of making copies thereof or extracts therefrom, and upon making copies thereof or extracts therefrom, shall promptly return the same to the person who produced or furnished them;
- (e) conduct or take tests of any equipment, machine, device, article, thing, material or biological, chemical or physical agent in or about a workplace and for such purposes, take and carry away such samples as may be necessary;
- (f) require in writing an employer to cause any tests described in clause (e) to be conducted or taken, at the expense of the employer, by a person possessing such special expert or professional knowledge or qualifications as are specified by the inspector and to provide, at the expense of the employer, a report or assessment by that person;
- (g) in any inspection, examination, inquiry or test, be accompanied and assisted by or take with him or her any person or persons having special, expert or professional knowledge of any matter, take photographs, and take with him or her and use any equipment or materials required for such purpose;
- (h) make inquiries of any person who is or was in a workplace either separate and apart from another person or in the presence of any other person that are or may be relevant to an inspection, examination, inquiry or test;
- (i) require that a workplace or part thereof not be disturbed for a reasonable period of time for the purposes of carrying out an examination, investigation or test;
- (j) require that any equipment, machine, device, article, thing or process be operated or set in motion or that a system or procedure be carried out that may be relevant to an examination, inquiry or test;
- (k) require in writing an employer to have equipment, machinery or devices tested, at the expense of the employer, by an engineer and to provide, at the expense of the employer, a report bearing the seal and signature of the engineer stating that the equipment, machine or device is not likely to endanger a worker;
- (l) require in writing that any equipment, machinery or device not be used pending testing described in clause (k);
- (m) require in writing an owner, constructor or employer to provide, at the expense of the owner, constructor or employer, a report bearing the seal and signature of an engineer stating,
  - (i) the load limits of a building, structure, or any part thereof, or any other part of a workplace, whether temporary or permanent,
  - (ii) that a building, structure, or any part thereof, or any other part of a workplace, whether temporary or permanent, is capable of supporting or withstanding the loads being applied to it or likely to be applied to it, or

(iii) that a building, structure, or any part thereof, or any other part of a workplace, whether temporary or permanent, is capable of supporting any loads that may be applied to it,

(A) as determined by the applicable design requirements established under the version of the Building Code that was in force at the time of its construction,

(B) in accordance with such other requirements as may be prescribed, or

(C) in accordance with good engineering practice, if sub-subclauses (A) and (B) do not apply;

(n) require in writing an owner of a mine or part thereof to provide, at the owner's expense, a report in writing bearing the seal and signature of an engineer stating that the ground stability of, the mining methods and the support or rock reinforcement used in the mine or part thereof is such that a worker is not likely to be endangered;

(o) require in writing, within such time as is specified, a person who is an employer, manufacturer, producer, importer, distributor or supplier to produce records or information, or to provide, at the expense of the person, a report or evaluation made or to be made by a person or organization having special, expert or professional knowledge or qualifications as are specified by the inspector of any process or biological, chemical or physical agents or combination of such agents present, used or intended for use in a workplace and the manner of use, including,

(i) the ingredients thereof and their common or generic name or names,

(ii) the composition and the properties thereof,

(iii) the toxicological effect thereof,

(iv) the effect of exposure thereto whether by contact, inhalation or ingestion,

(v) the protective measures used or to be used in respect thereof,

(vi) the emergency measures used or to be used to deal with exposure in respect thereof, and

(vii) the effect of the use, transport and disposal thereof; and

(p) require the production of any materials concerning the content, frequency and manner of instruction of any training program and inspect, examine and copy the materials and attend any such program. R.S.O. 1990, c. O.1, s. 54 (1); 2011, c. 11, s. 15; 2021, c. 34, Sched. 15, s. 8.

#### **Entry to dwellings**

(2) An inspector may only enter a dwelling or that part of a dwelling actually being used as a workplace with the consent of the occupier or under the authority of a warrant issued under this Act or the *Provincial Offences Act*. 2001, c. 26, s. 1.

#### **Representative to accompany inspector**

(3) Where an inspector makes an inspection of a workplace under the powers conferred upon him or her under subsection (1), the constructor, employer or group of employers shall afford a committee member representing workers or a health and safety representative, if any, or a worker selected by a trade union or trade unions, if any, because of knowledge, experience and training, to represent it or them and, where there is no trade union, a worker selected by the workers because of knowledge, training and experience to represent them, the opportunity to accompany the inspector during his or her physical inspection of a workplace, or any part or parts thereof. R.S.O. 1990, c. O.1, s. 54 (3).

**Consultation with workers**

(4) Where there is no committee member representing workers, no health and safety representative or worker selected under subsection (3), the inspector shall endeavour to consult during his or her physical inspection with a reasonable number of the workers concerning matters of health and safety at their work. R.S.O. 1990, c. O.1, s. 54 (4).

**Entitlement to time from work**

(5) The time spent by a committee member representing workers, a health and safety representative or a worker selected in accordance with subsection (3) in accompanying an inspector during his or her physical inspection, shall be deemed to be work time for which he or she shall be paid by his or her employer at his or her regular or premium rate as may be proper. R.S.O. 1990, c. O.1, s. 54 (5).

**Section Amendments with date in force (d/m/y) [ + ]****Order for inspections**

**55** Subject to subsections 8 (6) and 9 (26), an inspector may in writing direct a health and safety representative or a member designated under subsection 9 (23) to inspect the physical condition of all or part of a workplace at specified intervals. R.S.O. 1990, c. O.1, s. 55; 2009, c. 33, Sched. 20, s. 3 (2).

**Section Amendments with date in force (d/m/y) [ + ]****Order for written policies**

**55.1** In the case of a workplace at which the number of workers regularly employed is five or fewer, an inspector may in writing order that the policies with respect to workplace violence and workplace harassment required under section 32.0.1 be in written form and posted at a conspicuous place in the workplace. 2009, c. 23, s. 6; 2011, c. 1, Sched. 7, s. 2 (9).

**Section Amendments with date in force (d/m/y) [ + ]****Order for written assessment, etc.**

**55.2** An inspector may in writing order that the following be in written form:

1. The assessment of the risks of workplace violence required under subsection 32.0.3 (1).
2. A reassessment required under subsection 32.0.3 (4). 2009, c. 23, s. 6.

**Section Amendments with date in force (d/m/y) [ + ]****Order for workplace harassment investigation**

**55.3** (1) An inspector may in writing order an employer to cause an investigation described in clause 32.0.7 (1) (a) to be conducted, at the expense of the employer, by an impartial person possessing such knowledge, experience or qualifications as are specified by the inspector and to obtain, at the expense of the employer, a written report by that person. 2016, c. 2, Sched. 4, s. 4.

**Report**

(2) A report described in subsection (1) is not a report respecting occupational health and safety for the purposes of subsection 25 (2). 2016, c. 2, Sched. 4, s. 4.

**Section Amendments with date in force (d/m/y) [ + ]****Order for written notices to Director under s. 52 (1)**

**55.4** For the purposes of subsection 52 (1), an inspector may, in writing, order an employer to give written notice to a Director during such period as may be specified by the inspector. 2021, c. 34, Sched. 15, s. 9.

**Section Amendments with date in force (d/m/y) [ + ]****Warrants – investigative techniques, etc.**

**56** (1) On application without notice, a justice of the peace or a provincial judge may issue a warrant authorizing an inspector, subject to this section, to use any investigative technique or procedure or to do any thing described in the warrant if the justice of the peace or provincial judge, as the case may be, is satisfied by information under oath that there are reasonable grounds to believe that an offence against this Act or the regulations has been or is being committed and that information and other evidence concerning the offence will be obtained through the use of the technique or procedure or the doing of the thing. 2001, c. 26, s. 2.

**Expert help**

(1.1) The warrant may authorize persons who have special, expert or professional knowledge to accompany and assist the inspector in the execution of the warrant. 2001, c. 26, s. 2.

**Terms and conditions of warrant**

(1.2) The warrant shall authorize the inspector to enter and search the place for which the warrant was issued and, without limiting the powers of the justice of the peace or the provincial judge under subsection (1), the warrant may, in respect of the alleged offence, authorize the inspector to,

- (a) seize or examine and copy any drawings, specifications, licence, document, record or report;
- (b) seize or examine any equipment, machine, device, article, thing, material or biological, chemical or physical agent;
- (c) require a person to produce any item described in clause (a) or (b);
- (d) conduct or take tests of any equipment, machine, device, article, thing, material or biological, chemical or physical agent, and take and carry away samples from the testing;
- (e) take measurements of and record by any means the physical circumstances of the workplace; and
- (f) make inquiries of any person either separate and apart from another person or in the presence of any other person. 2001, c. 26, s. 2.

**Duration**

(1.3) The warrant is valid for 30 days or for such shorter period as may be specified in it. 2001, c. 26, s. 2.

**Other terms and conditions**

(1.4) The warrant may contain terms and conditions in addition to those provided for in subsections (1) to (1.3) as the justice of the peace or provincial judge, as the case may be, considers advisable in the circumstances. 2001, c. 26, s. 2.

**Further warrants**

(1.5) A justice of the peace or provincial judge may issue further warrants under subsection (1). 2001, c. 26, s. 2.

**Powers, duties not restricted**

(1.6) Nothing in this section restricts any power or duty of an inspector under this Act or the regulations. 2001, c. 26, s. 2.

**Possession**

(2) The inspector may remove any thing seized under a warrant from the place from which it was seized or may detain it in that place. 2001, c. 26, s. 2.

**Notice and receipt**

(3) The inspector shall inform the person from whom the thing is seized as to the reason for the seizure and shall give the person a receipt for it. R.S.O. 1990, c. O.1, s. 56 (3).

**Report to justice**

(4) The inspector shall bring a thing seized under the authority of this section before a provincial judge or justice of the peace or, if that is not reasonably possible, shall report the seizure to a provincial judge or justice of the peace. R.S.O. 1990, c. O.1, s. 56 (4).

**Procedure**

(5) Sections 159 and 160 of the *Provincial Offences Act* apply with necessary modifications in respect of a thing seized under the authority of this section. R.S.O. 1990, c. O.1, s. 56 (5).

**Section Amendments with date in force (d/m/y) [ + ]****Power of inspector to seize**

**56.1** (1) An inspector who executes a warrant issued under section 56 may seize or examine and copy any drawings, specifications, licence, document, record or report or seize or examine any equipment, machine, device, article, thing, material or biological, chemical or physical agent, in addition to those mentioned in the warrant, that he or she believes on reasonable grounds will afford evidence in respect of an offence under this Act or the regulations. 2001, c. 26, s. 3.

**Searches in exigent circumstances**

(2) Although a warrant issued under section 56 would otherwise be required, an inspector may exercise any of the powers described in subsection 56 (1) without a warrant if the conditions for obtaining the warrant exist but by reason of exigent circumstances it would be impracticable to obtain the warrant. 2001, c. 26, s. 3.

**Report to justice, etc.**

(3) Subsections 56 (3), (4) and (5) apply with necessary modifications to a thing seized under this section. 2001, c. 26, s. 3.

**Section Amendments with date in force (d/m/y) [ + ]****Orders by inspectors where non-compliance**

**57** (1) Where an inspector finds that a provision of this Act or the regulations is being contravened, the inspector may order, orally or in writing, the owner, constructor, licensee, employer, or person whom he or she believes to be in charge of a workplace or the person whom the inspector believes to be the contravener to comply with the provision and may require the order to be carried out forthwith or within such period of time as the inspector specifies. R.S.O. 1990, c. O.1, s. 57 (1).

**Idem**

(2) Where an inspector makes an oral order under subsection (1), the inspector shall confirm the order in writing before leaving the workplace. R.S.O. 1990, c. O.1, s. 57 (2).

**Contents of order**

(3) An order made under subsection (1) shall indicate generally the nature of the contravention and where appropriate the location of the contravention. R.S.O. 1990, c. O.1, s. 57 (3).

**Compliance plan**

(4) An order made under subsection (1) may require a constructor, a licensee or an employer to submit to the Ministry a compliance plan prepared in the manner and including such items as required by the order. R.S.O. 1990, c. O.1, s. 57 (4).

**Idem**

(5) The compliance plan shall specify what the constructor, licensee or employer plans to do to comply with the order and when the constructor, licensee or employer intends to achieve compliance. R.S.O. 1990, c. O.1, s. 57 (5).

**Orders by inspector where worker endangered**

(6) Where an inspector makes an order under subsection (1) and finds that the contravention of this Act or the regulations is a danger or hazard to the health or safety of a worker, the inspector may,

- (a) order that any place, equipment, machine, device, article or thing or any process or material shall not be used until the order is complied with;
- (b) order that the work at the workplace as indicated in the order shall stop until the order to stop work is withdrawn or cancelled by an inspector after an inspection;

- (c) order that the workplace where the contravention exists be cleared of workers and isolated by barricades, fencing or any other means suitable to prevent access thereto by a worker until the danger or hazard to the health or safety of a worker is removed. R.S.O. 1990, c. O.1, s. 57 (6).

**Resumption of work pending inspection**

(7) Despite clause (6) (b), a constructor, a licensee or an employer who gives notice to an inspector of compliance with an order made under subsection (6) may resume work pending an inspection and decision by an inspector respecting compliance with the order if, before the resumption of work, a committee member representing workers or a health and safety representative, as the case may be, advises an inspector that in his or her opinion the order has been complied with. R.S.O. 1990, c. O.1, s. 57 (7).

**Additional orders**

(8) In addition to the orders that may be made under subsection (6), where an inspector makes an order under subsection (1) for a contravention of section 37 or 41 or a Director has been advised of an employer's inability to obtain a current safety data sheet, the inspector may order that the hazardous material shall not be used or that the thing that causes, emits or produces the hazardous physical agent not be used or operated until the order is withdrawn or cancelled. R.S.O. 1990, c. O.1, s. 57 (8); 2015, c. 27, Sched. 4, s. 6.

**Posting of notice**

(9) Where an inspector makes an order under this section, he or she may affix to the workplace, or to any equipment, machine, device, article or thing, a copy thereof or a notice of the order, in a form obtained from the Ministry, and no person, except an inspector, shall remove such copy or notice unless authorized to do so by an inspector. R.S.O. 1990, c. O.1, s. 57 (9); 2011, c. 1, Sched. 7, s. 2 (10).

**Same**

(10) Where an inspector makes an order in writing or issues a report of his or her inspection to an owner, constructor, licensee, employer or person in charge of the workplace,

- (a) the owner, constructor, licensee, employer or person in charge of the workplace shall forthwith cause a copy or copies of it to be posted in a conspicuous place or places at the workplace where it is most likely to come to the attention of the workers and shall furnish a copy of the order or report to the health and safety representative and the committee, if any; and
- (b) if the order or report resulted from a complaint of a contravention of this Act or the regulations and the person who made the complaint requests a copy of it, the inspector shall cause a copy of it to be furnished to that person. 2001, c. 9, Sched. I, s. 3 (13).

**No hearing required prior to making order**

(11) An inspector is not required to hold or afford to an owner, constructor, licensee, employer or any other person an opportunity for a hearing before making an order. R.S.O. 1990, c. O.1, s. 57 (11).

**Section Amendments with date in force (d/m/y) [ + ]****Entry into barricaded area**

**58** Where an order is made under clause 57 (6) (c), no owner, constructor, employer or supervisor shall require or permit a worker to enter the workplace except for the purpose of doing work that is necessary or required to remove the danger or hazard and only where the worker is protected from the danger or hazard. R.S.O. 1990, c. O.1, s. 58.

**Notice of compliance**

**59** (1) Within three days after a constructor or employer who has received an order under section 57 believes that compliance with the order has been achieved, the constructor or employer shall submit to the Ministry a notice of compliance.

**Idem**

(2) The notice shall be signed by the constructor or employer and shall be accompanied by,

- (a) a statement of agreement or disagreement with the contents of the notice, signed by a member of the committee representing workers or by a health and safety representative, as the case may be; or
- (b) a statement that the member or representative has declined to sign the statement referred to in clause (a).

**Idem**

(3) The constructor or employer shall post the notice and the order issued under section 57 for a period of fourteen days following its submission to the Ministry in a place or places in the workplace where it is most likely to come to the attention of workers.

**Compliance achieved**

(4) Despite the submission of a notice of compliance, a constructor or employer achieves compliance with an order under section 57 when an inspector determines that compliance has been achieved. R.S.O. 1990, c. O.1, s. 59.

**Injunction proceedings**

**60** In addition to any other remedy or penalty therefor, where an order made under subsection 57 (6) is contravened, such contravention may be restrained upon an application made without notice to a judge of the Superior Court of Justice made at the instance of a Director. R.S.O. 1990, c. O.1, s. 60; 2001, c. 9, Sched. I, s. 3 (14).

**Section Amendments with date in force (d/m/y) [ + ]****Appeals from order of an inspector**

**61** (1) Any employer, constructor, licensee, owner, worker or trade union which considers himself, herself or itself aggrieved by any order made by an inspector under this Act or the regulations may appeal to the Board within 30 days after the making of the order. 1998, c. 8, s. 57 (1).

**Parties**

(2) The following are parties to the appeal:

1. The appellant.
2. In the case of an appeal by an employer, the employer's workers and each trade union representing any of the workers.
3. In the case of an appeal by a worker or trade union representing a worker, the worker's employer.
4. A Director.
5. Such other persons as the Board may specify. 1998, c. 8, s. 57 (2); 2011, c. 1, Sched. 7, s. 2 (11).

**Inquiry by labour relations officer**

(3) The Board may authorize a labour relations officer to inquire into an appeal. 1998, c. 8, s. 57 (2).

**Same**

(3.1) The labour relations officer shall forthwith inquire into the appeal and endeavour to effect a settlement of the matters raised in the appeal. 1998, c. 8, s. 57 (2).

**Report to Board**

(3.2) The labour relations officer shall report the results of his or her inquiry and endeavours to the Board. 1998, c. 8, s. 57 (2).

**Hearings**

(3.3) Subject to the rules made under subsection (3.8), the Board shall hold a hearing to consider the appeal unless the Board makes an order under subsection (3.4). 1998, c. 8, s. 57 (2).

**Orders after consultation**

(3.4) The Board may make any interim or final order it considers appropriate after consulting with the parties. 1998, c. 8, s. 57 (2).

**Same**

(3.5) The *Statutory Powers Procedure Act* does not apply with respect to a consultation the Board makes under subsection (3.4). 1998, c. 8, s. 57 (2).

**Practice and procedure**

(3.6) The Board shall determine its own practice and procedure but shall give full opportunity to the parties to present their evidence and to make their submissions. 1998, c. 8, s. 57 (2).

**Rules of practice**

(3.7) The chair may make rules governing the Board's practice and procedure and the exercise of its powers and prescribing such forms as the chair considers advisable. 1998, c. 8, s. 57 (2).

**Expedited appeals**

(3.8) The chair of the Board may make rules to expedite appeals and such rules,

(a) may provide that the Board is not required to hold a hearing; and

(b) may limit the extent to which the Board is required to give full opportunity to the parties to present their evidence and to make their submissions. 1998, c. 8, s. 57 (2).

**Effective date of rules**

(3.9) Rules made under subsection (3.8) come into force on such dates as the Lieutenant Governor in Council may by order determine. 1998, c. 8, s. 57 (2).

**Conflict with *Statutory Powers Procedure Act***

(3.10) Rules made under this section apply despite anything in the *Statutory Powers Procedure Act*. 1998, c. 8, s. 57 (2).

**Rules not regulations**

(3.11) Rules made under this section are not regulations within the meaning of Part III (Regulations) of the *Legislation Act, 2006*. 1998, c. 8, s. 57 (2); 2006, c. 21, Sched. F, s. 136 (1).

**Quorum**

(3.12) The chair or a vice-chair of the Board constitutes a quorum for the purposes of this section and is sufficient for the exercise of the jurisdiction and powers of the Board under this section. 1998, c. 8, s. 57 (2).

**Entering premises**

(3.13) For the purposes of an appeal under this section, the Board may enter any premises where work is being or has been done by workers or in which the employer carries on business, whether or not the premises are those of the employer, and inspect and view any work, material, machinery, appliance or article therein, and interrogate any person respecting any matter and post therein any notice that the Board considers necessary to bring to the attention of persons having an interest in the appeal. 1998, c. 8, s. 57 (2).

**Powers of the Board**

(4) On an appeal under this section, the Board may substitute its findings for those of the inspector who made the order appealed from and may rescind or affirm the order or make a new order in substitution therefor, and for such purpose has all the powers of an inspector and the order of the Board shall stand in the place of and have the like effect under this Act and the regulations as the order of the inspector. 1998, c. 8, s. 57 (2).

**Order, extended meaning**

(5) In this section, an order of an inspector under this Act or the regulations includes any order or decision made or given or the imposition of any terms or conditions therein by an inspector under the authority of this Act or the regulations or the refusal to make an order or decision by an inspector. R.S.O. 1990, c. O.1, s. 61 (5).

**Decision of adjudicator final**

(6) A decision of the Board under this section is final. R.S.O. 1990, c. O.1, s. 61 (6); 1998, c. 8, s. 57 (3).

**Suspension of order by adjudicator pending disposition of appeal**

(7) On an appeal under subsection (1), the Board may suspend the operation of the order appealed from pending the disposition of the appeal. R.S.O. 1990, c. O.1, s. 61 (7); 1998, c. 8, s. 57 (4).

**Reconsideration**

(8) The Board may at any time, if it considers it advisable to do so, reconsider any decision, order, direction, declaration or ruling made by it under this section and may vary or revoke any such decision, order, direction, declaration or ruling. 1998, c. 8, s. 57 (5).

**Section Amendments with date in force (d/m/y) [ + ]****Obstruction of inspector**

**62** (1) No person shall hinder, obstruct, molest or interfere with or attempt to hinder, obstruct, molest or interfere with an inspector in the exercise of a power or the performance of a duty under this Act or the regulations or in the execution of a warrant issued under this Act or the *Provincial Offences Act* with respect to a matter under this Act or the regulations. 2001, c. 26, s. 4.

**Assistance**

(2) Every person shall furnish all necessary means in the person's power to facilitate any entry, search, inspection, investigation, examination, testing or inquiry by an inspector,

- (a) in the exercise of his or her powers or the performance of his or her duties under this Act or the regulations; or
- (b) in the execution of a warrant issued under this Act or the *Provincial Offences Act* with respect to a matter under this Act or the regulations. 2001, c. 26, s. 4.

**False information, etc.**

(3) No person shall knowingly furnish an inspector with false information or neglect or refuse to furnish information required by an inspector,

- (a) in the exercise of his or her powers or the performance of his or her duties under this Act or the regulations; or
- (b) in the execution of a warrant issued under this Act or the *Provincial Offences Act* with respect to a matter under this Act or the regulations. 2001, c. 26, s. 4.

**Monitoring devices**

(4) No person shall interfere with any monitoring equipment or device in a workplace. R.S.O. 1990, c. O.1, s. 62 (4).

**Obstruction of committee, etc.**

(5) No person shall knowingly,

- (a) hinder or interfere with a committee, a committee member or a health and safety representative in the exercise of a power or performance of a duty under this Act;
- (b) furnish a committee, a committee member or a health and safety representative with false information in the exercise of a power or performance of a duty under this Act; or
- (c) hinder or interfere with a worker selected by a trade union or trade unions or a worker selected by the workers to represent them in the exercise of a power or performance of a duty under this Act. R.S.O. 1990, c. O.1, s. 62 (5).

**Section Amendments with date in force (d/m/y) [ + ]****Information confidential**

**63** (1) Except for the purposes of this Act and the regulations or as required by law,

- (a) an inspector, a person accompanying an inspector or a person who, at the request of an inspector, makes an examination, test or inquiry, shall not publish, disclose or communicate to any person any information, material, statement, report or result of any examination, test or inquiry acquired, furnished, obtained, made or received under the powers conferred under this Act or the regulations;
- (b) REPEALED: 1992, c. 14, s. 2 (2).
- (c) no person shall publish, disclose or communicate to any person any secret manufacturing process or trade secret acquired, furnished, obtained, made or received under the provisions of this Act or the regulations;
- (d) REPEALED: 1992, c. 14, s. 2 (3).
- (e) no person to whom information is communicated under this Act and the regulations shall divulge the name of the informant to any person; and
- (f) no person shall disclose any information obtained in any medical examination, test or x-ray of a worker made or taken under this Act except in a form calculated to prevent the information from being identified with a particular person or case. R.S.O. 1990, c. O.1, s. 63 (1); 1992, c. 14, s. 2 (2, 3).

**Employer access to health records**

(2) No employer shall seek to gain access, except by an order of the court or other tribunal or in order to comply with another statute, to a health record concerning a worker without the worker's written consent. R.S.O. 1990, c. O.1, s. 63 (2).

**Compellability, civil suit**

(3) An inspector or a person who, at the request of an inspector, accompanies an inspector, or a person who makes an examination, test, inquiry or takes samples at the request of an inspector, is not a compellable witness in a civil suit or any proceeding, except an inquest under the *Coroners Act*, respecting any information, material, statement or test acquired, furnished, obtained, made or received under this Act or the regulations. R.S.O. 1990, c. O.1, s. 63 (3).

**Compellability of witnesses**

(3.1) Persons employed in the Office of the Worker Adviser or the Office of the Employer Adviser are not compellable witnesses in a civil suit or any proceeding respecting any information or material furnished to or obtained, made or received by them under this Act while acting within the scope of their employment. 2011, c. 11, s. 16.

**Exception**

(3.2) If the Office of the Worker Adviser or the Office of the Employer Adviser is a party to a proceeding, a person employed in the relevant Office may be determined to be a compellable witness. 2011, c. 11, s. 16.

**Production of documents**

(3.3) Persons employed in the Office of the Worker Adviser or the Office of the Employer Adviser are not required to produce, in a proceeding in which the relevant Office is not a party, any information or material furnished to or obtained, made or received by them under this Act while acting within the scope of their employment. 2011, c. 11, s. 16.

**Power of Director to disclose**

(4) A Director may communicate or allow to be communicated or disclosed information, material, statements or the result of a test acquired, furnished, obtained, made or received under this Act or the regulations. R.S.O. 1990, c. O.1, s. 63 (4).

**Medical emergencies**

(5) Subsection (1) does not apply so as to prevent any person from providing any information in the possession of the person, including confidential business information, in a medical emergency for the purpose of diagnosis or treatment. R.S.O. 1990, c. O.1, s. 63 (5).

**Conflict**

(6) This section prevails despite anything to the contrary in the *Personal Health Information Protection Act, 2004*. 2004, c. 3, Sched. A, s. 93.

**Section Amendments with date in force (d/m/y) [ + ]****Copies of reports**

**64** A Director may, upon receipt of a request in writing from the owner of a workplace who has entered into an agreement to sell the same and upon payment of the fee or fees prescribed, furnish to the owner or a person designated by the owner copies of reports or orders of an inspector made under this Act in respect of the workplace as to its compliance with subsection 29 (1). R.S.O. 1990, c. O.1, s. 64.

**Immunity**

**65** (1) No action or other proceeding for damages, prohibition or mandamus shall be instituted respecting any act done in good faith in the execution or intended execution of a person's duties under this Act or in the exercise or intended exercise of a person's powers under this Act or for any alleged neglect or default in the execution or performance in good faith of the person's duties or powers if the person is,

- (a) an employee in the Ministry or a person who acts as an advisor for the Ministry;
- (b) an employee in the Office of the Worker Adviser or the Office of the Employer Adviser;
- (c) the Board or a labour relations officer;
- (d) a health and safety representative or a committee member; or
- (e) a worker selected by a trade union or trade unions or by workers to represent them. R.S.O. 1990, c. O.1, s. 65 (1); 1995, c. 5, s. 32; 1997, c. 16, s. 2 (14, 15); 1998, c. 8, s. 58; 2006, c. 35, Sched. C, s. 93 (6); 2011, c. 11, s. 17 (1).

**Liability of Crown**

(2) Subsection (1) does not, by reason of subsection 8 (3) of the *Crown Liability and Proceedings Act, 2019*, relieve the Crown of liability in respect of a tort committed by a Director, the Chief Prevention Officer, an inspector or a professional engineer of the Ministry to which it would otherwise be subject and the Crown is liable under that Act for any such tort in a like manner as if subsection (1) had not been enacted. R.S.O. 1990, c. O.1, s. 65 (2); 2011, c. 11, s. 17 (2); 2019, c. 7, Sched. 17, s. 127; 2021, c. 34, Sched. 15, s. 10.

**Section Amendments with date in force (d/m/y) [ + ]**

**PART IX  
OFFENCES AND PENALTIES**

**Penalties**

**66** (1) Subject to subsections (2) and (2.1), every person who contravenes or fails to comply with,

- (a) a provision of this Act or the regulations;
- (b) an order or requirement of an inspector or a Director; or
- (c) an order of the Minister,

is guilty of an offence and on conviction is liable to a fine of not more than \$500,000 or to imprisonment for a term of not more than twelve months, or to both. R.S.O. 1990, c. O.1, s. 66 (1); 2017, c. 34, Sched. 30, s. 4 (1); 2022, c. 7, Sched. 4, s. 2 (1).

**Same**

(2) If a corporation is convicted of an offence under subsection (1), the maximum fine that may be imposed upon the corporation is \$1,500,000. 2022, c. 7, Sched. 4, s. 2 (2).

**Same**

(2.1) A director or officer of a corporation who contravenes or fails to comply with section 32 is guilty of an offence and on conviction is liable to a fine of not more than \$1,500,000 or to imprisonment for a term of not more than twelve months, or to both. 2022, c. 7, Sched. 4, s. 2 (2).

**Aggravating factors**

(2.2) Each of the following circumstances shall be considered an aggravating factor for the purposes of determining a penalty under this section:

1. The offence resulted in the death, serious injury or illness of one or more workers.
2. The defendant committed the offence recklessly.
3. The defendant disregarded an order of an inspector.
4. The defendant was previously convicted of an offence under this or another Act.
5. The defendant has a record of prior non-compliance with this Act or the regulations.
6. The defendant lacks remorse.
7. There is an element of moral blameworthiness to the defendant's conduct.
8. In committing the offence, the defendant was motivated by a desire to increase revenue or decrease costs.
9. After the commission of the offence, the defendant,
  - i. attempted to conceal the commission of the offence from the Ministry or other public authorities, or
  - ii. failed to co-operate with the Ministry or other public authorities.
10. Any other circumstance that is prescribed as an aggravating factor. 2022, c. 7, Sched. 4, s. 2 (2).

**Defence**

(3) On a prosecution for a failure to comply with,

- (a) subsection 23 (1);
- (b) clause 25 (1) (b), (c) or (d); or
- (c) subsection 27 (1),

it shall be a defence for the accused to prove that every precaution reasonable in the circumstances was taken. R.S.O. 1990, c. O.1, s. 66 (3).

**Accused liable for acts or neglect of managers, agents, etc.**

(4) In a prosecution of an offence under any provision of this Act, any act or neglect on the part of any manager, agent, representative, officer, director or supervisor of the accused, whether a corporation or not, shall be the act or neglect of the accused. R.S.O. 1990, c. O.1, s. 66 (4).

**Additional orders**

(5) If a person is convicted of an offence under this section, the court may, in addition to any fine or imprisonment that is imposed, make any prescribed order. 2022, c. 7, Sched. 4, s. 2 (3).

**Section Amendments with date in force (d/m/y) [ + ]****Certified copies of documents, etc., as evidence**

**67** (1) In any proceeding or prosecution under this Act,

- (a) a copy of an order or decision purporting to have been made under this Act or the regulations and purporting to have been signed by the Minister or an inspector;
- (b) a document purporting to be a copy of a notice, drawing, record or other document, or any extract therefrom given or made under this Act or the regulations and purporting to be certified by an inspector;

- (c) a document purporting to certify the result of a test or an analysis of a sample of air and setting forth the concentration or amount of a biological, chemical or physical agent in a workplace or part thereof and purporting to be certified by an inspector; or
- (d) a document purporting to certify the result of a test or an analysis of any equipment, machine, device, article, thing or substance and purporting to be certified by an inspector,

is evidence of the order, decision, writing or document, and the facts appearing in the order, decision, writing or document without proof of the signature or official character of the person appearing to have signed the order or the certificate and without further proof. R.S.O. 1990, c. O.1, s. 67 (1).

#### **Service of orders and decisions**

(2) In any proceeding or prosecution under this Act, a copy of an order or decision purporting to have been made under this Act or the regulations and purporting to have been signed by the Minister, a Director or an inspector may be served,

- (a) personally in the case of an individual or in case of a partnership upon a partner, and in the case of a corporation, upon the president, vice-president, secretary, treasurer or an officer or director, or upon the manager or person in charge of the workplace; or
- (b) by registered letter addressed to an individual or corporation mentioned in clause (a) at the last known place of business of the individual or corporation,

and the same shall be deemed to be good and sufficient service thereof. R.S.O. 1990, c. O.1, s. 67 (2); 2022, c. 7, Sched. 4, s. 3.

#### **Section Amendments with date in force (d/m/y) [ + ]**

##### **Place of trial**

**68** (1) An information in respect of an offence under this Act may, at the election of the informant, be heard, tried and determined by the Ontario Court of Justice sitting in the county or district in which the accused is resident or carries on business although the subject-matter of the information did not arise in that county or district. R.S.O. 1990, c. O.1, s. 68 (1); 2001, c. 9, Sched. I, s. 3 (15).

##### **Provincial judge required**

(2) The Attorney General or an agent for the Attorney General may by notice to the clerk of the court having jurisdiction in respect of an offence under this Act require that a provincial judge preside over the proceeding. R.S.O. 1990, c. O.1, s. 68 (2).

#### **Section Amendments with date in force (d/m/y) [ + ]**

##### **Publication re convictions**

**68.1** (1) If a person, including an individual, is convicted of an offence under this Act, a Director may publish or otherwise make available to the general public the name of the person, a description of the offence, the date of the conviction and the person's sentence. 2006, c. 19, Sched. M, s. 5.

##### **Internet publication**

(2) Authority to publish under subsection (1) includes authority to publish on the Internet. 2006, c. 19, Sched. M, s. 5.

##### **Disclosure**

(3) Any disclosure made under subsection (1) shall be deemed to be in compliance with clause 42 (1) (e) of the *Freedom of Information and Protection of Privacy Act*. 2006, c. 19, Sched. M, s. 5; 2006, c. 34, Sched. C, s. 25.

#### **Section Amendments with date in force (d/m/y) [ + ]**

##### **Limitation on prosecutions**

**69** No prosecution under this Act or the regulations shall be instituted more than two years after the later of,

- (a) the occurrence of the last act or default upon which the prosecution is based; or

(b) the day upon which an inspector becomes aware of the alleged offence. 2017, c. 34, Sched. 30, s. 5; 2022, c. 7, Sched. 4, s. 4.

## Section Amendments with date in force (d/m/y) [ + ]

### PART X REGULATIONS

#### Regulations

**70** (1) The Lieutenant Governor in Council may make such regulations as are advisable for the health or safety of persons in or about a workplace. R.S.O. 1990, c. O.1, s. 70 (1).

#### Idem

(2) Without limiting the generality of subsection (1), the Lieutenant Governor in Council may make regulations,

1. defining any word or expression used in this Act or the regulations that is not defined in this Act;
2. designating or defining any industry, workplace, employer or class of workplaces or employers for the purposes of this Act, a part of this Act, or the regulations or any provision thereof;
3. exempting any workplace, industry, activity, business, work, trade, occupation, profession, constructor, employer or any class thereof from the application of a regulation or any provision thereof;
4. limiting or restricting the application of a regulation or any provision thereof to any workplace, industry, activity, business, work, trade, occupation, profession, constructor, employer or any class thereof;
5. exempting an employer from the requirements of clause 37 (1) (a) or (b) with respect to a hazardous material;
6. respecting any matter or thing that is required or permitted to be regulated or prescribed under this Act;
7. respecting any matter or thing, where a provision of this Act requires that the matter or thing be done, used or carried out or provided as prescribed;
8. respecting any matter or thing, where it is a condition precedent that a regulation be made prescribing the matter or thing before this Act or a provision of this Act has any effect;
9. providing for and prescribing fees and the payment or refund of fees;
10. prescribing classes of workplaces for which and circumstances under which a committee shall consist of more than four persons and in each case prescribing the number of persons;
11. prescribing employers or workplaces or classes thereof for the purposes of clause 9 (1) (b);
12. exempting any workplace, industry, activity, business, work, trade, occupation, profession, constructor or employer or any class thereof from the application of subsection 9 (2);
13. respecting the conditions for eligibility, qualifications, selection and term of committee members, including certified members, and the operation of the committee;
14. exempting any class of workplaces from the requirement set out in subsection 9 (12);
15. prescribing elements that any policy or program required under this Act must contain and the format that the policy or program must be in;
16. regulating or prohibiting the installation or use of any machine, device or thing or any class thereof;
17. requiring that any equipment, machine, device, article or thing used bear the seal of approval of an organization designated by the regulations to test and approve the equipment, machine, device, article or thing and designating organizations for such purposes;
18. prescribing classes of employers who shall establish and maintain a medical surveillance program in which workers may volunteer to participate;
19. governing medical surveillance programs;

20. respecting the reporting by physicians and others of workers affected by any biological, chemical or physical agents or combination thereof;
21. regulating or prohibiting atmospheric conditions to which any worker may be exposed in a workplace;
22. prescribing methods, standards or procedures for determining the amount, concentration or level of any atmospheric condition or any biological, chemical or physical agent or combination thereof in a workplace;
23. prescribing any biological, chemical or physical agent or combination thereof as a designated substance;
24. prohibiting, regulating, restricting, limiting or controlling the handling of, exposure to, or the use and disposal of any designated substance;
25. adopting by reference, in whole or in part, with such changes as the Lieutenant Governor in Council considers necessary, any code or standard and requiring compliance with any code or standard that is so adopted;
26. adopting by reference any criteria or guide in relation to the exposure of a worker to any biological, chemical or physical agent or combination thereof;
27. enabling a Director by notice in writing to designate that any part of a project shall be an individual project for the purposes of this Act and the regulations and prescribing to whom notice shall be given;
28. permitting the Minister to approve laboratories for the purpose of carrying out and performing sampling, analyses, tests and examinations, and requiring that sampling, analyses, examinations and tests be carried out and performed by a laboratory approved by the Minister;
29. requiring and providing for the registration of employers of workers;
30. providing for the establishment, equipment, operation and maintenance of mine rescue stations, as the Minister may direct, and providing for the payment of the cost thereof and the recovery of such cost from the mining industry;
31. prescribing training programs that employers shall provide;
- 31.1 requiring that training programs provided by employers meet such requirements as may be prescribed;
32. increasing the number of certified members required on a committee;
33. prescribing restrictions, prohibitions or conditions with respect to workers or workplaces relating to the risks of workplace violence;
34. prescribing forms and notices and providing for their use;
35. prescribing building standards for industrial establishments;
36. prescribing by name or description any biological or chemical agent as a hazardous material and any physical agent as a hazardous physical agent;
37. prohibiting an employer from altering a label on a hazardous material in prescribed circumstances;
38. REPEALED: 2015, c. 27, Sched. 4, s. 7 (1).
39. requiring an employer to disclose to such persons as may be prescribed the source of toxicological data used by the employer to prepare a safety data sheet;
40. prescribing the format and contents of a safety data sheet;
41. prescribing by class of employer the intervals at which a health and safety representative or a committee member designated under subsection 9 (23) shall inspect all or part of a workplace;
42. establishing criteria for determining, for the purpose of section 51, whether a person is critically injured;
43. prescribing first aid requirements to be met and first aid services to be provided by employers and constructors;
- 43.1 governing the employer's obligations under section 25.2 respecting the provision and maintenance of naloxone kits and the training referred to in subsection 25.2 (3);

44. prescribing, for the purpose of clause 26 (1) (i), medical examinations and tests that a worker is required to undergo to ensure that the worker's health will not affect his or her ability to perform his or her job in a manner that might endanger others;
45. prescribing classes of workplace with respect to which section 45 does not apply;
46. prescribing the qualifications of persons whom a certified member may designate under subsection 45 (9);
47. prescribing, for the purpose of subsection 46 (6), criteria for determining whether a constructor or employer has demonstrated a failure to protect the health and safety of workers;
48. prescribing matters to be considered by the Board in deciding upon an application under section 46;
49. prescribing classes of workplace with respect to which section 47 does not apply;
50. requiring an employer to designate a person in a workplace to act as a workplace co-ordinator with respect to workplace violence and workplace harassment, and prescribing the functions and duties of the co-ordinator;
51. in the case of a worker described in subsection 43 (2), specifying situations in which a circumstance described in clause 43 (3) (a), (b), (b.1) or (c) shall be considered, for the purposes of clause 43 (1) (a), to be inherent in the worker's work or a normal condition of employment;
52. varying or supplementing subsections 43 (4) to (13) with respect to the following workers, in circumstances when section 43 applies to them:
  - i. workers to whom section 43 applies by reason of a regulation made for the purposes of subsection 3 (3), and
  - ii. workers described in subsection 43 (2);
53. providing for such transitional matters as the Lieutenant Governor in Council considers necessary or advisable in connection with the implementation of section 22.5;
54. prescribing the functions of the Office of the Worker Adviser for the purposes of Part VI;
55. prescribing the functions of the Office of the Employer Adviser for the purposes of Part VI;
56. prescribing a number of employees for the purposes of subsection 50.1 (2). R.S.O. 1990, c. O.1, s. 70 (2); 1997, c. 16, s. 2 (16); 1998, c. 8, s. 59; 2001, c. 9, Sched. I, s. 3 (16); 2009, c. 23, s. 7; 2011, c. 11, s. 18 (2-4); 2015, c. 27, Sched. 4, s. 7; 2021, c. 34, Sched. 15, s. 11; 2022, c. 7, Sched. 4, s. 5.

#### **Rolling incorporation by reference**

(3) The power to adopt by reference and require compliance with a code or standard in paragraph 25 of subsection (2) and to adopt by reference any criteria or guide in relation to the exposure of a worker to any biological, chemical or physical agent or combination thereof in paragraph 26 of subsection (2) includes the power to adopt a code, standard, criteria or guide as it may be amended from time to time. 2020, c. 18, Sched. 13, s. 1.

#### **Section Amendments with date in force (d/m/y) [ + ]**

##### **Regulations, taxi industry**

**71** (1) The Lieutenant Governor in Council may make regulations governing the application of the duties and rights set out in Part III.0.1 to the taxi industry. 2009, c. 23, s. 8.

##### **Same**

(2) Without limiting the generality of subsection (1), the Lieutenant Governor in Council may make regulations,

- (a) specifying that all or any of the duties set out in Part III.0.1 apply for the purposes of the regulations, with such modifications as may be necessary in the circumstances;
- (b) specifying who shall be considered an employer for the purposes of the regulations and requiring that person to carry out the specified duties;

(c) specifying who shall be considered a worker for the purposes of the regulations;

(d) specifying what shall be considered a workplace for the purposes of the regulations. 2009, c. 23, s. 8.

**Section Amendments with date in force (d/m/y) [ + ]**

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Français

2023-24

# LOYALiST COLLEGE

Quality Engineering  
Management  
Program Manual

We are small so  
our students can  
do big things.

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### PROGRAM LEARNING OBJECTIVES

# WELCOME

## TO THE QUALITY ENGINEERING MANAGEMENT PROGRAM

If you are serious about pursuing a career in Quality Engineering Management, you've made the right choice in selecting Loyalist College. Our faculty works alongside you to aid in your success for wherever your career path may lead.

### **The intention of this program manual is to:**

1. Explain the full range of services we offer in the Quality Engineering Management program to support your success;
2. Highlight the program's assortment of courses and learning experiences; and,
3. Clarify our expectations of you, and your expectations of us.

## **LINKS**

[Academic Policies](#)

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## **REQUIRED LAPTOP SPECIFICATIONS**

We recommend that each student have a personal laptop. Students have access to all software that is part of their program of study on their personal computer. This tool will allow you to take advantage of your learning anywhere and at any time. Below are the suggested minimum standards for your device:

### **Minimum Requirements:**

RAM: 8 GB  
CPU: i5 Intel processor  
HDD: 512 GB HDD

### **Recommended Requirements:**

RAM: 16 GB  
CPU: i7 Intel processor  
HDD: 256 GB SSD or 512 GB HDD

To access Moodle, recover your password, connect to the network, or accessing Microsoft Office, please contact IT Support at [itsupport@tbcollege.com](mailto:itsupport@tbcollege.com).

# PROGRAM CONTACTS

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## HOURS OF OPERATION

### **Student Access Lab in the Library**

- Monday to Saturday: 8 am – 9 pm
- Closed on Sundays and statutory holidays

## HOW TO CONTACT US

College staff can be reached in person, by phone, or email through the contact information listed within the Program Contacts section of this program manual. Please note that all email communication must be sent and received through your Loyalist College email account.

Students are responsible for regularly checking their Loyalist email account and Learning Management System (LMS) for communication from faculty regarding program or course-specific information.

# STUDENT SERVICES

Student Success is the central point of access to many of the services available to support your academic success. Services include program advising and guidance, accessible academic accommodations, personal counselling, peer tutoring, writing support, and culturally responsive services for Indigenous and international students. Staff can also help you navigate College policies, explore bursary and grant options, provide referrals, and partner with you in seeking solutions.

## STUDENT RESPONSIBILITIES – REGISTRATION AND ACCOUNT

**Please note:** Program and course-specific requirements are subject to change. It is each student's responsibility to ensure they are registered in the appropriate course to fulfill the requirements of their program and to be aware of all applicable progression requirements.

Students must ensure that they are registered in all courses they are attending, and that courses which they are not attending are removed from their academic record. It is the student's responsibility to ensure their registration record and course schedule is accurate prior to the registration and withdrawal deadlines noted on the [Academic Calendar](#).

Students are responsible for remaining in good financial standing and resolving all holds placed on their account.

Please contact Enrollment Services with any questions or concerns regarding course enrollment, graduation, group selection, updating academic progression, payment and fees. Enrollment Services can be reached at [registration@tbcollege.com](mailto:registration@tbcollege.com) Regular office hours are Monday to Friday 8 am to 5 pm.

**All Human Rights Code related requests for accommodation will be given meaningful consideration.**

# PROGRAM POLICIES AND PROCEDURES

## RIGHTS AND RESPONSIBILITIES

### All faculty and staff have the right to:

- An educational environment free of racist or sexist stereotyping, discrimination or harassment in the classroom (either physical or virtual) and in all College service areas.
- Expect appropriate student behaviour and have the right to request that a student exhibiting disruptive and/or disrespectful behaviour leave the classroom, laboratory or practicum area.
- Expect to be informed immediately of any issues, problems or concerns related to the program.

### All faculty are required to:

- Provide written course documentation at the beginning of each course which includes outcomes, objectives, methodology, required resources, an evaluation system and penalties applied if expectations or due dates are not met.
- Provide notice in writing of any substantial changes to course requirements and the reason(s) for these changes.
- Set deadlines for assigned work, to expect assignments to be submitted at specific times and to impose equitable, established penalties when students fail to meet the deadlines or expectations.
- Carry out regularly scheduled instruction, and provide academic counselling for students at other times.

## LOYALIST'S VIOLENCE PREVENTION POLICY

- All College members have a responsibility to

foster a climate of respect and safety, free from violent behavior and harassment.

- Violence (physical violence, threatening actions or harassment) is not, in any way, acceptable behaviour.
- Weapons or replicas of weapons are not permitted on Loyalist College property.
- Unacceptable behaviour will result in disciplinary action or appropriate sanctions.
- More information can be found in the [Student Code of Conduct – Positive Learning & Living Environment \(AOP 209\)](#).

## ATTENDANCE

Each faculty member has different expectations regarding attendance, but we all agree that there is a direct relationship between academic success and attendance in class. You can demonstrate your commitment to your chosen profession by attending all your classes. The skills and knowledge that you will acquire in the program build upon each other. Class discussions and team projects are a key part of your learning journey. It is the student's responsibility to inform the faculty member (by email) of their absence before the beginning of class.

## CLASSROOM EXPECTATIONS

In business, time is money. You are paying to attend class and if you play an active role, you will receive the best value for your tuition. Professional attitudes are developed in class by:

- **Demonstrating respect for self, others and your environment.**
- **Turning off your cellphone.**

- **Refraining from texting.**
- **Refraining from watching movies and YouTube.**
- **Being engaged in the class and encouraging others to do the same.**

Here are some examples of inappropriate and unethical behaviour:

**Cheating:** transferring or receiving information without the permission of the faculty member for the purpose of achieving grades. This includes copying from the work of another person or permitting such copying to take place during a test or using unauthorized notes or other memory aides.

**Plagiarism:** submitting work that is substantially copied from the work of another person and representing that work as original.

**Falsification:** modifying an examination paper, record, or assignment for the purpose of obtaining additional credits or a higher grade.

**Misrepresentation:** knowingly giving false information about facts or actions in order to gain admission to the College or to fulfill academic requirements.

**Fraudulent Behaviour:** knowingly misleading another person for purposes of gain and thereby causing actual harm to another person or assisting in such activity.

## PLAGIARISM AND ACADEMIC DISHONESTY

Plagiarism is the act of collecting and passing off the writing, passages or ideas of another author as your own. Students are plagiarizing if they fail to give credit, through referencing, to the person or work that originated the idea or reference.

Following a discussion with faculty, a mandatory failing grade will be issued on the assignment. A failing grade is the minimum penalty, but the College may reserve the right to impose a full range of sanctions including suspension or expulsion.

Academic dishonesty is obtaining academic grades by deceit. This includes the use of concealed notes or materials during a test/examination, acquiring information from other students by looking at their test papers, talking/

signaling other students during tests, or by using another person's work in any form without citing references appropriately.

A student found guilty of obtaining grades in this manner will automatically be assigned a zero for the test/exam. A repeat offence may result in suspension from the program.

Please see the [Academic Integrity Policy \(AOP 216\)](#) for more information.

## PRIOR LEARNING ASSESSMENT AND RECOGNITION (PLAR)

PLAR is a process that involves the identification, documentation, assessment and recognition of learning acquired through informal means. This may include work and life experience, informal education and training, independent study, volunteering, travel, hobbies and family experiences.

Students with significant life or work experience can request the opportunity to PLAR an academic course if they feel they have acquired most or all of the learning outcomes of the course from experiences elsewhere. A fee will be charged per course for assessment of prior learning (please refer to current College fee structure) and students may not PLAR more than 75% of program requirements.

Please see the [Prior Learning Assessment and Recognition, Transfer Credit, Articulation and Exemption Policy \(AOP 221\)](#) for more information.

## TRANSFER/ARTICULATION AGREEMENTS

Explore [transfer credit options and articulation agreements](#).

# CO-OP INFORMATION

Industry co-op allows the student to gain professional experience in the related field prior to graduation and it is organized and planned by the student with support from the faculty.

A co-op work term in semester four provides an opportunity to gain first-hand workplace experience in the industry.

## CO-OP PLACEMENT

Co-op is a work integrated experience built into post-secondary programs to allow you to get hands on experience in your field of study while applying your academic studies. The integration of formal learning practices with developmental learning opportunities helps to enhance and consolidate the knowledge, skills, abilities, and behaviours of emerging professionals. This is also an opportunity to interact and demonstrate your skills to potential employers.

## APPLIED INDUSTRY PROJECT

Under extraordinary circumstances some students are not eligible for Co-op and may be able to compete the Applied Industry Project. Students wishing to pursue the Applied Industry Project must seek approval from:

### **Florian Vauleon**

Director of Academics & Quality Assurance  
Room 109, Ext. 275  
[florian.vauleon@tbcollege.com](mailto:florian.vauleon@tbcollege.com)

Applied Industry Project involves a simulation experience involving the integration of formal learning practices with developmental learning opportunities helps to enhance and consolidate the knowledge, skills, abilities, and behaviours of emerging professionals. The industry project will be performed on the College campus under the guidance of the College faculty. Students will attend college five days weekly.

## GUIDE TO SAFETY DURING PLACEMENT

Basic steps in risk awareness:

- Identify potential risks. Talk to your faculty supervisor and placement supervisor about risk related to your field.
- Understand the guidelines/expectations from the College and placement host.
- Inform your faculty supervisor or placement supervisor of any concerns.

### **Should an incident occur:**

- Be sure to document all facts such as date, time, persons involved and the situation as you observed it.
- Inform your faculty supervisor or placement supervisor immediately.

## EXAMPLES OF SAFETY RISKS

### **Harassment**

- Sexual, age, ethnic, racial, or disability harassment of student workers or any employee is illegal.
- The employer must ensure that current full-time employees or interns do not harass student workers.
- Immediately report any harassment to your faculty supervisor.
- Resolution may include placing the student in another position.
- Harassment of others in the workplace may result in your dismissal from the program.

### **Protect Your Personal Identity**

- Protect Social Insurance Number, cellphone numbers and all other personal identification.

## **Sexual Assault**

There are several ways to reduce the risk of becoming a victim of sexual assault:

- Set limits; don't send the wrong message.
- Use your better judgment about situations to avoid.
- Be clear and responsible in your communication with others.
- If necessary, be forceful, firm and assertive in your communication with others.
- Be aware of nonverbal cues that can alert you to a problem. Remember, silence is not consent.
- Don't assume the other person knows what you do or do not want.
- Use the buddy system.
- Avoid secluded places.
- Devise an action plan in advance for what you will do if confronted with a situation of possible sexual assault. Remove yourself from the situation at the first sign that you are feeling unsafe.
- Familiarize yourself with the idea that you might have to be aggressive or yell to remove yourself from a possible sexual assault situation.

## **Travel**

- Consider dangerous intersections, streets, or stretches of highway to and from the site.
- Notice parking garages or poorly-lit parking areas.
- When using your car or a vehicle provided to you by your placement site, find out all policies regarding travel such as:
  - Reimbursement of funds personally expended.
  - Transporting clients.
  - Transporting sensitive or easily-damaged materials.
  - Transporting potentially hazardous materials.

## **Physical Hazards**

- Working outdoors – sun, snow and ice and other extreme weather, pollution, power-lines, pipelines, electromagnetic radiation, or gas leaks.

- Working indoors – any type of machinery, or unsuitable working conditions such as extreme temperatures, asbestos, sick building odors, buildings with structural concerns, or blocked fire escapes.

## **Biological Hazards**

- Animals you may work with (deceased or living).
- Poisonous plants.
- Diseased birds or fish.

If in the medical field, check to see how bio-hazardous waste is disposed (e.g. sharp container).

## **Chemical Hazards**

- Water supply.
- Toner powders from laser printer cartridges or photocopies that may cause eye or lung irritation.
- Chemicals in a laboratory setting getting in eyes, open sores, or lungs.

# PROGRAM LEARNING OBJECTIVES

## QUALITY ENGINEERING MANAGEMENT

### Two-Year Post-Graduate Certificate

At the end of the program, students will be able to:

1. Implement and document the requirements of international quality standards (such as ISO 9001 and TS 16949).
2. Design, perform and analyze results of process improvement and product development experiments to form recommendations for implementing various process improvement tools.
3. Evaluate quality issues, opportunities, and performance metrics using current and relevant tools such as Statistical Process Control (SPC) and Root Cause Analysis.
4. Lead and resolve quality assurance issues in a Canadian industrial environment using accepted quality assurance techniques including FMEA, PPAP and APQP.
5. Co-ordinate implementation of Total Quality Management (TQM) process within a Canadian industrial or service organization using the concepts of Deming, Crosby and Juran.
6. Use the correct device or instrument to accurately measure products and conduct a Measurement System Analysis (MSA).
7. Conduct audits for Quality and Environmental systems as part of an organization's quality engineering management processes.
8. Apply test procedures and techniques to confirm that product design requirements are met.
9. Communicate technical information, including audit results where relevant, to various stakeholders to inform decision making about quality assurance processes.
10. Use reliability management to enhance quality and customer satisfaction.
11. Use relevant relationship management techniques and strategies to establish and maintain customer and supplier relationships.
12. Develop strategies for personal and professional development to gain and maintain quality engineering certifications required to work in Canadian industry.

# SMALL GIVES US THE POWER TO DO BIG THINGS

In a world obsessed with big, we are small. Small gives us the power to do big things.

And things that make a big difference to our students, community, and partners.

In an impersonal world of big lecture halls and stadium seating, we know our students by name and circumstance. Small frees us to provide personal one-on-one attention, in small classes and learning environments.

Small means our students feel like they matter. That they belong. That they are no longer invisible in a world which had passed them by.

Small means that we can move mountains to help every student succeed, confident in who they are and what they are capable of becoming.

We are Loyalist College of Applied Arts and Technology.

We are small.

**LOYALIST** Of Applied Arts  
**COLLEGE** & Technology

# slam the scam!



## THE CANADA REVENUE AGENCY WILL:

- ☒ **NEVER** use aggressive language or tone
- ☒ **NEVER** threaten to arrest or deport you
- ☒ **NEVER** ask for prepaid credit cards or gift cards

For more information, go to [canada.ca/taxes-fraud-prevention](https://canada.ca/taxes-fraud-prevention)



# slam the scam!



**THE CANADA REVENUE AGENCY DOES **NOT** ACCEPT PAYMENTS VIA GIFT CARDS OR BITCOIN.**

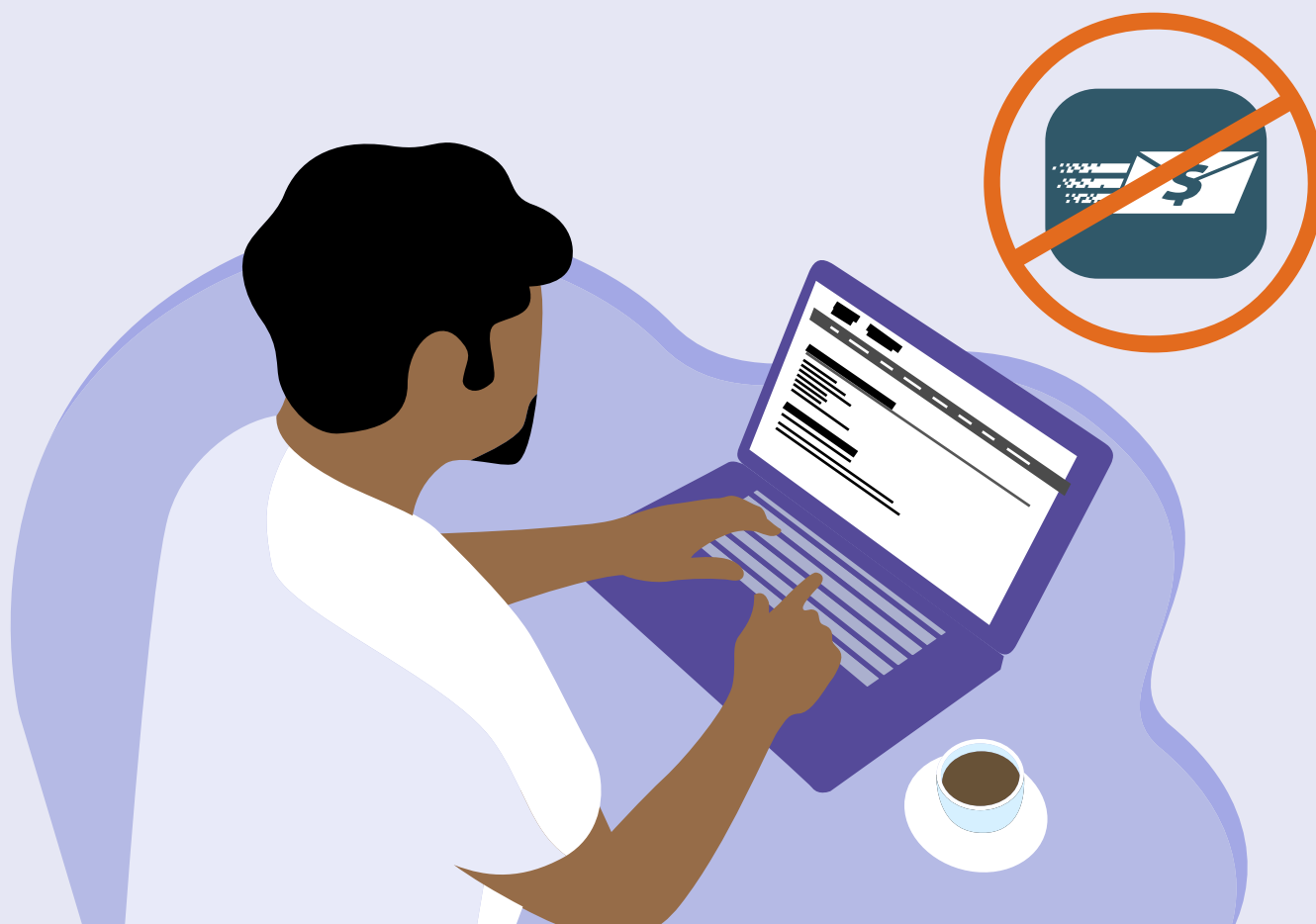
## **ACCEPTED PAYMENT METHODS ARE:**

- ☒ Online banking
- ☒ Debit
- ☒ Pre-authorized debit
- ☒ Paypal/credit card (through a third party provider)

**For more information, go to [canada.ca/taxes-fraud-prevention](https://canada.ca/taxes-fraud-prevention)**



# slam the scam!



**THE CANADA REVENUE AGENCY WILL **NEVER** SEND OR REQUEST E-TRANSFERS OF ANY KIND!**

CRA will **only** send you payments by direct deposit or by cheque in the mail.

**For more information, go to [canada.ca/taxes-fraud-prevention](https://canada.ca/taxes-fraud-prevention)**



Canada Revenue Agency  
Agence du revenu du Canada

Canada

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## Standards of Teaching Practice

Protocol Number: TPR 001 - AC 004

Issue Date: March 1, 2020

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Last Revision: March 27, 2023

Overseer: TBC Senior Leadership Team

Next QA Review: September 5, 2023

Author's Name: Simon MacQUEEN

Author's Title: Chief Executive Officer

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### Statement

This Standards of Teaching Practice document is intended to serve as a guide and reference for all faculty at Toronto Business College (TBC) and Loyalist College in Toronto (LCIT) in the conduct of their teaching practice.

This document describes the expectations of the College for its faculty and how they will conduct their teaching practice and interact with their students and the College. The explicit statement of the College's expectations will serve to reduce confusion and misunderstanding between the College and its faculty, and between faculty members, and so contribute to a more open and productive relationship. As well, the standards set down in this document provide the quality foundation for the faculty's teaching practice and the students' learning experience.

This document is based on the policies and practices of the College. In the case of an inconsistency between these Standards and a policy of the College, the published policy shall prevail.

A teacher seeking clarity or further guidance concerning a statement in this document should discuss the matter with the Dean or the Academic Manager.

Errors in the document should be brought to the attention of the Academic Department.

## 1. Course Delivery

### 1.1. Responsibilities

A teacher assigned to a course section(s) is responsible for all aspects of the delivery of the course to that section(s):

1. identification, provision (where applicable) and use of instructional materials, e.g., textbooks, supplemental materials, Learning Management System (LMS) materials, etc.

2. delivery of course content in the classroom or other instructional setting, including hybrid, online, LMS, etc.
3. evaluation of the students' learning.
4. encouragement and support of student learning.
5. enforcement of academic integrity in all aspects of the course.
6. collaboration with colleagues to ensure consistency with other course sections and achievement of program learning outcomes.

#### **1.1.1. Instructional Materials**

1. The teacher is required to
  - a. identify, provide (make available or deliver, where applicable) to the students the instructional materials associated with the course.
  - b. integrate the instructional materials into the delivery of the course.
2. The teacher will receive a course shell in the LMS and employ it in the delivery of the course. Although shells will be restored, and resources provided, before the beginning of each term, it is each instructor's responsibility to update, add to, and maintain these resources for optimal delivery.

#### **1.1.2. The Course Outline**

1. The teacher is responsible for ensuring that the current and correct course outline is used for the course. The Academic Department can confirm the current and correct outline and will have it posted at the top of each restored Moodle shell to avoid confusion. If an instructor is teaching a course delivered in previous semesters, it is imperative that they use the most current outline uploaded in the LMS.
2. The course outline is a contract between the College and the student. By extension, the outline is a contract between the teacher and the student. The teacher must ensure that the course is complete and consistent in all aspects (e.g., content, delivery methods, evaluation) with the published course outline. The teacher may not alter the course outline without the express written permission of the Dean or the Academic Manager.
3. The teacher must address all of the learning outcomes and objectives. none may be omitted. The sequence in which the outcomes and objectives are addressed is at the discretion of the teacher.
  - If, in exceptional circumstances, some learning outcomes or objectives cannot be addressed,
    - a. The students must be clearly informed, in writing, as soon as possible, of the changes.
    - b. The Academic Director must be informed, in writing, of the change, the reasons for the change and that notification to the students was provided.

- c. The other faculty in the program must be informed of the change so that any necessary curriculum adjustments or accommodations may be made immediately or in future course deliveries.
- Faculty may discuss subject matter beyond that which is listed in the course outline but cannot assess students beyond or outside of what is contained in the course outline.
4. The teacher must follow the evaluation and grading methodology and scheme described in the course outline.  
If, in exceptional circumstances, there must be a deviation from the evaluation and grading methodology and scheme published in the course outline, then
  - The students must be clearly informed in writing, as soon as possible, of the change.
  - The change must not result in academic disadvantage to the students.
  - The Academic Director must be informed, in writing, of the change, the reasons for the change and that notification to the students was provided.
5. The teacher must follow the evaluation schedule provided to the students, within the course outline or in a supplemental document.
  - If it becomes necessary to deviate from the published schedule, then the teacher must provide the students with as much notice as possible, and in no case less than one week of notice. This advanced notice must be provided in the LMS in writing.
  - In the case of unexpected illness, or other such circumstances, cancellation of the evaluation may occur without a one-week notice. The new, rescheduled date for the evaluation would typically, but not necessarily, be established with one week of notice.
6. Any mistakes noted in the course outline must be discussed immediately with the Academic Department.
  - a. If an immediate change is warranted, the course outline should be updated and re-published in the learning management system.
  - b. If the correction or change can wait until the next delivery of the course, the outline should be updated by the main campus after being submitted to them by the Dean or the Academic Manager.

## **1.2. Learning Management System (LMS)**

1. There is available for each and every LCIT course a learning management system (LMS) course shell to support student learning. The teacher is expected to use the LMS centrally in hybrid and on-line courses and as a complement to face-to-face course delivery.

The minimum use of the LMS required of the teacher includes the following:

- The posting of the course outline.
- The use of the gradebook for posting marks and determining grades (See Marking of Evaluations below for timelines, etc.).

- The posting of course dates.
  - The use of the email function (Quickmail).
2. It is recommended that General Section in each LMS shell be used to provide an introduction to the course and the course teacher, teacher contact details and course handouts.
  3. It is imperative that students know what marks they have earned and what marks are recorded. They must also be able to see how the course grade is determined. The Grades tool must be used by the teacher to provide the following information to the students throughout the semester.
    - a. All marks, and any other evaluation results or determinants of the course grade, must be entered into the LMS Grader Report.
    - b. The running average, i.e., Grade to Date, must be shown, provided that it accurately calculates the average and is consistent with all course requirements.
    - c. Evaluation marks must be entered into the LMS Gradebook within two weeks of the completion of the evaluation, one week in the case of clinical evaluations.
  4. The Quickmail tool is the strongly recommended method for one-on-one electronic communication outside of class.
    - a. It is strongly recommended that the teacher not use personal email, texts or phones for student communications.
    - b. Other (than the Quickmail tool) College-based communication media may be used.
    - c. Whichever method of one-on-one communications the faculty member chooses to use, it must be clearly identified to the students.
  5. The teacher must publish assignment due dates, test and exam dates. The LMS Calendar tool is recommended for the publishing of course dates for the benefits and convenience provided to the students. The Calendar tool will appear in each Moodle shell by default.
    - a. It is recommended that the syllabus, class activities and course announcements also be entered in the LMS Calendar.
    - b. The Calendar can also be used as the syllabus or as a platform to log class activities and announcement dates. Students appreciate that they can view all of their individual course calendars in one combined calendar.
  6. Unicheck must be used with all submitted lab reports, projects, essays and the like where copying and plagiarism are possible.
  7. The use of Moodle and Unicheck is highly recommended for all types of submissions.

Further recommended uses of the LMS are provided below in Appendix A

## **1.3. Classroom Delivery**

### **1.3.1. Classroom Control**

“Students will take responsibility for their own academic achievement. Students will demonstrate their commitment to their own goal of educational advancement by attending class, completing their assigned work, and complying with copyright legislation...”

“Students are expected to conduct themselves in a manner that exemplifies the values upheld by Loyalist College by preserving a safe, respectful and inclusive environment for all of our college community.”

1. The teacher is in charge of the instructional setting (classroom, lab, etc.), and is required to
  - Provide a safe, non-threatening and respectful learning environment for all students,
  - Provide and maintain an effective learning environment.
2. The teacher is required to communicate and enforce appropriate student behaviour in the instructional setting.
3. In maintaining an effective learning environment, the teacher is responsible for and has authority over
  - The presence in the instructional setting of persons other than the students registered in that course section, including visitors, students’ friends, students’ children, with the exception of any College authority.
  - Any and all activities in the instructional setting, including any recordings, outside of required accommodations.
4. The teacher is required to address inappropriate student behaviour, at the time of the incident or as soon as possible, including, depending on the misbehaviour,
  - A reminder of appropriate behaviour, (may inform the Dean or the Academic Manager).
  - Reprimand, (may inform the Dean or the Academic Manager)
  - Ejection from the setting, (must inform the Dean or the Academic Manager).
  - Report or referral to the Dean or the Academic Manager.

### **1.3.2. Curriculum Delivery**

1. The teacher is required to use classroom delivery as one component of the course delivery, which may also include use of LMS, hybrid delivery, textbook, etc.
2. The teacher is required to use regularly a variety of delivery methods in the instructional setting as appropriate for the learners, their learning needs and the subject material.
3. The teacher is required to employ “active learning” techniques in the classroom in order to create an active learning environment. The active learning techniques should be employed
  - Regularly
  - Appropriately
  - With variety
4. Teachers are requested to employ, where appropriate, teaching and delivery methods that support mobile learning and enhance the learning experience. Optimally, the teacher will

fully exploit mobile learning technology and concepts to enhance the achievement of learning outcomes.

### **1.3.3. Availability of Teacher**

1. The teacher is required to attend all course classes, labs, clinical placements, etc. for which he/she is timetabled or scheduled.
2. A teacher unable to attend as scheduled, must
  - a. Attempt to arrange for alternative coverage of the class, lab, etc.
  - b. Inform the students, as early as possible, of any cancellation of the class, etc.
  - c. Inform their Program Coordinator, and the Academic Director, of the absence.
  - d. Inform the students, as soon as possible, of any 'make-up' arrangements.
3. The teacher must be available to the students through e-mail or an alternative electronic media and must clearly inform the students of that availability.
  - a. It is expected that the e-mail, or alternative, response time will be one working day or less.
  - b. It is strongly recommended that the teacher use College electronic media, e.g., e-mail, for the communications with the students, and not personal media.

## **2. A Consistent Course Experience**

1. The teacher delivering a course section must ensure that the delivery of the course section is closely consistent with other sections of the course and broadly consistent with other courses in the program and the academic and vocational expectations for the program.
2. The teacher must deliver a course (section) in a manner that ensures the consistency of the student experience, specifically with other sections of the course and generally with other courses in the program, with respect to course structure, delivery methodology (significant differences with Dean or the Academic Manager's prior permission), evaluation structure and weighting, marking, and grade determination.
  - a. A teacher delivering a course for the first time must contact the Program Coordinator who can assist the new teacher in preparing for the delivery of the course to ensure the consistency of the student experience.
  - b. The teacher instructing a lab section or course for the first time must contact and meet with the technologist associated with the lab prior to the delivery of the first lab to go over the lab protocols and required hardware/software.

### **2.1. Teacher Course-Delivery Responsibilities**

1. The teacher delivering a section(s) of a multi-section course must meet, face-to-face or electronically, with the other teachers delivering the course and the faculty member providing course leadership for that course prior to the start of the delivery of the course in order to ensure consistency of the student experience across the sections.
2. The teachers delivering section(s) of a multi-section course will review, discuss, establish and follow a common understanding of the curriculum and delivery parameters of the course in order

to ensure a consistent student experience across all sections, including, but not limited to, the following items:

- a. A pace and order of content delivery that supports and enables consistent evaluation of the students and the consistent delivery of labs, supplementary activities, etc., as described below.
- b. Common methodology for grade determination.
- c. Common expectations for student learning and the evaluation of it.
- d. The curriculum covered for each evaluation.
- e. The rigour of the curriculum content, evaluation and grading.
- f. The nature of reviews student tests and evaluations, including the return, or not, of tests and evaluations to students.
- g. The use of previous evaluations and assignments for student evaluation preparation.
- h. Supplementary activities used to support learning.
- i. Common formats for lab reports, essays, and other student submissions.
- j. The use of common tests and other evaluations in all sections with a common delivery mode, where practical (e.g., academic integrity considerations), and otherwise tests and evaluations of a consistent nature and rigour.

If an evaluation instrument, e.g., a test, has been created by one or more faculty members and there are other faculty members who did not participate in the creation but expect to use the same instrument, the non-contributing faculty should perform or review the assessment in order to offer comments and suggestions. The non-contributing faculty must be fully aware of the content of any evaluation instrument they use. By using the evaluation instrument, the faculty member implies acceptance and support of the instrument.

- k. Common marking rubrics for common evaluations, and consistent marking rubrics for similar evaluations and assignments (sample rubrics and information on their creation are available in the Assessing Student Learning package available through the Professional Development section of the LMS).
- l. Consistency in the delivery and evaluation of labs, clinical experiences, field placements, etc. by
  - Following any faculty guide for a lab, clinical experience, etc., outlining the specifics of delivery.
  - Ensuring the current lab manual, field manual, etc. is being used and followed and no content, procedures, etc. are omitted unless unavoidable (e.g., in the case of equipment failure).
  - Allowing and encouraging students to perform hands-on exercises and procedures, except in those cases where limited availability of equipment, facilities, etc. permit only a faculty demonstration.
- m. Consistency in the lab and lab equipment available to the students, by

- Ensuring the required equipment is available and in good working order prior to the start of the lab, clinical experience, etc.
- Ensuring that all lab equipment, clinic furniture, etc. are returned to their proper storage areas or configurations.
- Alerting technical support staff to problems with equipment, facilities, supplies, etc.

## 2.2. Faculty Course-Leadership Responsibilities

1. Each course will be assigned to a faculty member who will provide leadership in the delivery of a quality and consistent student experience.
2. The designated faculty member providing course leadership will, by working in consultation with other relevant faculty members and the program coordinator, and under the guidance of the Dean or the Academic Manager,
  - a. Ensure the appropriateness and currency of the course content.
  - b. Ensure the completeness and currency of the course documentation.
  - c. Promote and support consistency in the delivery and rigour of the course across all sections and modes.
3. The faculty member providing course leadership ensures the appropriateness and currency of the course content by
  - a. Drawing on Program Advisory Committee advice, community partners' advice, awareness of industry changes and trends, faculty professional development, etc.
  - b. Working with colleagues to incorporate appropriate topics and materials and any warranted changes into the course curriculum.
  - c. Or, in the case of a partner or service course, seeking guidance from the program department.
4. The faculty member providing course leadership ensures the completeness and currency of the course documentation by ensuring that
  - a. A current and complete course outline is approved.
  - b. Course support materials and documents are current and complete.
  - c. The relevant course documentation deadlines are met.
5. The faculty member providing course leadership works with colleagues to establish, implement and maintain
  - a. Course delivery that is consistent with the overall program and its vocational and academic context.
  - b. A consistent student experience across all sections and delivery modes, including common and consistent course structure, curriculum, labs, clinical experiences, etc.
  - c. Appropriate academic rigour in the course consistent with the overall program, the program Vocational Learning Outcomes or program goals, and its vocational and academic context.

## 3. Evaluation of Students

### 3.1. Policy Statements

It is the right and responsibility of the College and its faculty to establish the course evaluation structure and instruments, and to exercise professional judgment and discretion in the evaluation of student learning, performance and progress. The faculty and College have a responsibility to ensure that students are evaluated and graded within a structure and in a manner that is known to the student, transparent, objective, appropriate, fair and equitable.

Students have a responsibility to respect the faculty's right to establish standards for classroom behaviour and decorum. determine the learning and evaluation activities, methods and processes. and, generally, conduct the course in the manner that the professor determines to be appropriate.

Students have a right to be objectively and impartially graded and to appeal any evaluation or decision that affects their grades.

### 3.2. Evaluation Preparation

#### 3.2.1. Structure

1. The structure of the evaluation component within a course must be published in the course outline, describing:
  - a. The number and type of evaluations
  - b. The weight of each evaluation in the final grade determination
  - c. All requirements for the successful (pass) completion of the course (e.g., minimum final grade, passing of all sections of a course, etc.)
  - d. Any requirements within the course for the student's progression to the next level
2. The structure of the evaluations within a course should not be changed once the course outline has been distributed. Changes may be made only
  - a. With the timely (sufficient time for adjustments) informing, in writing, of the students and their agreement (no one objects)
  - b. In a manner that does not significantly disadvantage any students
3. Normally, a variety of evaluation methods will be used within a course. Circumstances may exist that justify a lack of variety, such as external requirements for, or a prohibition against, particular evaluation methods.
4. Students may not be evaluated on the basis of attendance, i.e., marks cannot be awarded or withheld on the basis of attendance.
  - a. Notwithstanding the above statement, there are courses or programs in which course success or program graduation may require the completion of a minimum number of hours or days in a classroom, clinical, co-op, etc. setting in order to comply with professional, licensing, occupational, or other requirements. In such courses or programs and in the apprenticeship programs, attendance requirements may be established. Failure to meet such time requirements may result in a reduced or failing grade or failure to graduate.

- b. Attendance at certain classes or sections of a course that deliver safety training or knowledge may be required for attendance or evaluation in subsequent portions of the course.
- 5. No one evaluation may constitute more than 40% of the final grade.
- 6. The dates of evaluations must be provided to the students as early in the term as possible, (preferably in week 1) and must be published in the course LMS.
  - a. Changes to published evaluation dates must be avoided, if at all possible.
- 7. Final evaluations, e.g., final exam, last term test, may not be scheduled in the penultimate week (i.e., the week before exam week) of the semester.
  - a. Some evaluation activities (such as oral presentations, skills test, missed tests, and assignments, projects, etc.) may be scheduled in the penultimate week with the prior permission of the Dean or the Academic Manager and publication in the course outline.

### **3.2.2. The Evaluation Instrument**

- 1. The evaluation instrument must be of an appropriate nature for the learning being evaluated. (e.g., a written test for knowledge assessment, a skills demonstration for skills assessment)
- 2. The evaluation items (e.g., test questions, required skill demonstrations) must be directly related to specific course learning objectives and outcomes.
  - a. The evaluations must address and be consistent with the learning objectives and outcomes regarding the content (i.e., knowledge required, skill required).
  - b. The evaluations and evaluation items must be consistent with the level of learning or skills required. If the learning objective is to “list”, then the evaluation item should require a listing. If the learning objective is to “apply”, then an evaluation item that requires a listing or a description is not consistent with the course objective.
  - c. It is desirable that evaluations, and even evaluation items, be mapped to the course learning outcomes and objectives.
- 3. The evaluation must indicate the marks or relative value of each evaluation item.
- 4. All tests and exams, and other evaluations where applicable, should be regularly and formally reviewed and assessed for evaluation effectiveness, efficiency, consistency, discriminatory power, etc. Multiple choice questions, in particular, should be scrutinized and undergo regular item analysis. Moodle is a great tool for testing. The Program Coordinator and the Academic Department will work with faculty on this.
- 5. The College may require the filing of the test or exam with the Academic Department prior to its administration.

### **3.3. Marking of Evaluations**

- 1. The marking of an evaluation must be transparent and obvious. The student must be able to see and understand how the awarded mark for the evaluation is determined.

- a. On an evaluation that is not written, it is imperative that the basis for the mark, (i.e., what is being judged, for example, critical steps to be demonstrated) and the judgment made (e.g., 2 out of 5 marks, “marginally acceptable”) are obvious and identified to the student. The use of rubrics is highly encouraged, and sample rubrics have been provided in the LMS.
2. Evaluations, including tests, lab reports, essays, etc., must be marked and the results provided to the students, via the LMS, no later than 5 working days after the submission or completion of the evaluation.
3. The teacher must provide, on an ongoing basis, the individual evaluation marks and a calculation of the student’s current or “running” course average, within the limitations described above. (Learning Management System 3.b.).

### **3.4. Grade Determination and Submission**

1. Each student registered in a course is issued a grade by the College. It is the responsibility of the teacher of each course section to submit a grade for each registered student at the completion of the course.
  - a. If the Registrar has issued a grade for a student before the completion of the course, e.g., a W grade, then the faculty member will not submit a grade for that student.
  - b. The grade must be submitted to the Academic Department by the grade submission deadline for the semester. Failure to submit a grade by the deadline is likely to cause significant disruption and additional work for the College, and disruption and upset for the students.
2. Typically, the various evaluations of the students during the delivery of a course will result in numeric, often percentage, marks for the evaluations. These marks are then combined, typically, to determine a course mark or average that is then converted into a letter grade.
  - a. The evaluation marks must be combined to determine the course mark or average, or grade, in the manner that is described in the course outline.
  - b. A course mark or average must be converted to a grade using the conversion scale established by the College and published in the course outline.
  - c. The above calculations and conversion are completed by the Gradebook tool. It is imperative that the Gradebook tool is set up properly. Training and individual offered and regularly available through the Academic Department.
3. The faculty member will submit the course grades by ‘Releasing’ them through the LMS to the Academic Department.
4. Under some circumstances, it may be necessary to change a grade that has been submitted. If the grade submission deadline has passed and a grade is protested or appealed, or if a mistake has been made, and the grade needs to be changed, a change must be initiated through the Academic Department. A grade change form should be used.

### **3.5. The Setting of Tests, Exams and Other Evaluations**

1. The teacher must ensure that the students are well and clearly informed of the structure, schedule and nature of all evaluations in the course.

2. The teacher must ensure that the students are well and clearly informed of the terms, conditions (e.g., in the lab), permissions (e.g., a formula sheet may be used) and restrictions (e.g., no use of a calculator) associated with each evaluation.
  - a. If the Academic Department, TA, or other proctor is used for an evaluation, the proctor must be fully informed regarding all conditions, etc., in advance of the evaluation.
3. The teacher must be consistent in the use of equations, formulae, symbols, terminology, etc. from the classroom or lab to the evaluation. It is not acceptable for the students to face terminology, symbols, etc., on an evaluation that have not been previously introduced and used in the course.
4. The use of formula sheets, or other such aids, during an evaluation may be appropriate, and even pedagogically desirable. The teacher must ensure that the students are fully informed of all conditions and restrictions related to the use of a formula sheet or other aid.
  - a. For example, it must be clear whether the formula sheet or other aid is student produced or provided by the teacher and, if the latter, if it may be augmented by the student.
5. It is recommended that a provided formula sheet or other aid be posted in the LMS at the start of the term to enable the students to practice with the formula sheet or suggest changes, etc.

### **3.6. Missed evaluations**

1. The teacher must be aware of the College policy regarding missed evaluations. This policy must be strictly followed by the College and will be published in the LMS along with the course outline. The teacher must then follow that policy.
2. The acceptance of a student's excuse or reason for missing an evaluation is at the discretion of the teacher, as is permission and arrangements for a makeup evaluation. Please consult with the Dean or the Academic Manager if there are any questions.
3. Makeup evaluations must be prepared by the teacher granting the missed-test accommodation.
4. A makeup evaluation must be different than the original evaluation, but of the same content (i.e., addresses the same learning objectives), length and rigour.
  - a. In some circumstances, e.g., skills and practical assessments, it may not be possible to have significant differences from the original to the makeup evaluation.
5. If a makeup evaluation is permitted, although the teacher may discuss the terms and conditions of the makeup with the student, ultimately all arrangements are the decision of the teacher.
  - a. A makeup evaluation must not be permitted ahead of the completion of the evaluation by the class as a whole. Doing so jeopardizes the integrity of the class evaluation.
  - b. If the makeup evaluation is delayed, it may be offered later or at the end of the semester. The exam week or the following week are recommended.

### **3.7. Evaluations Completed Outside the Classroom: Assignments, Projects, Labs**

1. The teacher must fully inform the students of the nature and parameters of the evaluation, including the course evaluation structure, the marking of the evaluation, the terms and conditions of the evaluation, etc., through the course outline or written instructions.

2. The teacher must ensure that the instructions include clear directions and expectations regarding the balance between individual work and group work. Some generic examples of instructions are provided below.
  - The assignment is totally individual work: research, discussion, creation and writing. All aspects of the work must be totally and exclusively the work of the submitting student.
  - The assignment may involve work or discussion with others at the research and discussion stages. The creation and writing of the work must be totally and exclusively the work of the submitting student.
  - The assignment may involve work or discussion with others at all stages of the assignment. The final work will be submitted by the individual student who will bear sole responsibility for the work.
  - The assignment will consist totally of group work. The final work will be submitted by the group who will bear collective responsibility for the work.

### **3.8. Evaluations of Students by Students**

In the completion of some group work, projects, presentations, etc., or in presentations to students, or in other possible settings, students may be required to evaluate the performance, contribution, etc. of fellow students. When students are required to evaluate fellow students, it is essential that the following course evaluation components be in place and communicated to the students.

- A description of the process, rules, etc. of the evaluation of the student by the student(s).
- A description of the process, rules, mark allocation, etc. of the evaluation of the student evaluator and his/her efforts.
- A rubric for the use of the student evaluator(s).
- The evaluation forms (rubric) completed by the student evaluator(s) gathered and stored by the teacher.
- A clear statement that the teacher reserves the right to modify or ignore the results or marks of the evaluations by the students.

### **3.9. Return of Marked Evaluations to Students**

1. The teacher must make marked evaluations available to the students for their review.
  - a. It is strongly recommended that marked evaluations be reviewed collectively with the students.
  - b. Alternatively, the marked evaluations may be reviewed individually in the classroom or faculty room.
2. During the review of a marked evaluation, students must be permitted to question and challenge, and ask for the rationale for, any evaluation item and the mark assigned to it.
3. It is recommended, for pedagogical reasons, that students be permitted to retain the returned marked evaluations.

- a. It is recognized, however, that retention by the students of the marked evaluations may threaten the integrity or restrict the possibilities of future student evaluations. Therefore, the teacher may, with a good and sound reason, retain the marked evaluations.
  - A teacher retaining marked evaluations must be prepared to justify the retention to the Dean or the Academic Manager.
  - Retained marked evaluations must be stored by the teacher until the end of the next semester.
4. Marked student work that in whole or in part consists of materials provided or paid for by the student, and artistic work created by student, cannot be retained by the teacher or College and must be returned to the student.
5. Marked evaluations constitute private information, and must be handled, distributed, stored, etc. in a privacy-protecting manner.
  - a. Marked evaluations must be returned directly to the respective student. Only with written permission from that student may the marked evaluation be given to a different person.
 

In the case of group work in which there is a group mark, the work or evaluation may be returned to any member of the group, unless there are separate comments, etc. For individual students.
  - b. Marked evaluations must never be left unattended in a public area.
  - c. Marked evaluations must never be distributed by allowing the students to pick their evaluations from a pile of marked evaluations.
  - d. Evaluation results or marks must never be posted, published or otherwise displayed for public view in any way that enables the viewing or determination of individual results by anyone other than the respective individual student.

## 4. Student (Personal) Information

1. The teacher must recognize and respect that all information pertaining to or arising from the performance of a student is personal information, protected by privacy legislation and policy, and must be treated as such at all times.
2. Test results, quiz marks, and any other performance measures, as noted above, must never be displayed, presented or returned in a public manner that in any way divulges the information.
3. Student information, performance or behaviour, or comments concerning the same, must not be shared and distributed outside the College, and should be shared within the College only to the extent necessary for the conduct of business or the teacher's execution of professional and job duties.
  - a. It is not appropriate for teachers to casually exchange anecdotes and comments regarding a student's performance, behaviour, etc. It is, however, quite appropriate, and professionally responsible and required, for teachers to discuss student performance and behaviours in the context of promotional meetings, discussions concerning a student's progress and how he might be helped, warnings from one teacher to another concerning a student's behaviour, declining attendance, etc.

4. A teacher may be requested to provide a reference for a student or graduate and may do so. Providing the requested reference will inevitably require the divulgence of private information concerning the student. Such a release of information is permitted within certain restrictions and with caveats.
  - a. The teacher cannot provide a reference, or any comment, about a student or graduate without the explicit permission of the individual to do so. For example, if an employer calls a teacher indicating that he is considering the student for a position and would like some comment or a reference from the teacher, the teacher cannot provide comment or reference without the student's explicit permission. Even if the caller says that the teacher is listed as a reference, if the teacher does not have explicit permission from the student, the teacher cannot make comments. It is strongly recommended that the teacher request written permission from the student to provide the reference(s).
  - b. The teacher should get written permission from the student and keep it on file.
  - c. The teacher should provide a reference only for the employer(s) that the student specifically identifies. A general permission - "You can give a reference to anyone who calls" - is not acceptable and provides the teacher with little protection.
  - d. When providing a reference, the teacher should comment only on what he/she knows from his/her position relative to the student. The teacher can report on the student's performance and behaviour in the teacher's course(s) but cannot comment on the student's behaviour in the College athletic program (if the teacher has no role in it) or in the community.
  - e. The teacher must not disclose any personal information regarding the student, e.g., age, address, grades. It is probably not a good idea even to disclose the student's grade in the teacher's course. Rather than say "... she earned an A in my course", the teacher might say "she was a high achiever" or "she scored well", etc.
5. Notwithstanding the above cautions, the teacher is free to express founded opinions and provide truthful comments on the student. Indeed, there is an obligation, when providing a reference, to provide honest, candid, whole-truth comment. It is imperative that the teacher take all reasonable precautions to protect the privacy of personal student information.
6. No College or student information of any sort, once entered into the College computer information system, should ever be copied, removed from, stored, or used outside of the College information system.
  - a. For example, a list of student names and student numbers, or test marks, should not be copied from the LMS or a college information system onto a flash drive for use at another location.
  - b. For example, a download of test marks or student names and numbers should not be emailed to a home address.

## 5. Lab Preparation, Delivery and Evaluation

### 5.1. Lab Preparation

1. The teacher is responsible for ensuring the readiness of the lab – prepared and set-up with any required materials – either personally or through lab technicians/technologists or other support staff, when available.
  - a. In some program departments, a lab equipment checklist is in place and must be used to ensure the readiness of the lab.

2. The teacher must be proficient in the operation and basic troubleshooting of lab equipment and lab procedures before the start of the lab.
3. The teacher is expected to have successfully performed each lab before instructing it.
4. The teacher must be aware of any missing or defective equipment before starting a lab.
  - a. The appropriate lab technician or technologist is to ensure that the equipment is running properly, and consumables are available. The technician/technologist will communicate to faculty, in a timely way, any missing or malfunctioning equipment or lack of consumables.
  - b. Faculty are to inform the technician/technologist of any equipment problems or when licenses are nearing expiration.

In some program departments, a work-order system for lab maintenance is available. In those departments, faculty must submit a work request to the technician/technologist for work to be completed. Otherwise, the IT Support email is the best mechanism to have technical problems addressed.

## **5.2. Lab Delivery**

1. It is desirable and expected that every student will be given an opportunity to perform each lab. Every student must be given an opportunity to perform a lab, unless a lack of equipment makes it impossible, in which case, the students may work in teams to complete the lab.
2. The teacher must not simply demonstrate the lab. Students must be allowed to use the equipment themselves.
3. Demonstration-type labs may be used only if
  - a. There is a shortage of equipment.
  - b. The equipment is difficult or dangerous to use.
  - c. There are other special circumstances.

## **5.3. Schedule of Lab**

1. The course outline, or a supplementary document, must provide a schedule for the labs. Preferably, the schedule is published in the LMS.
2. Labs should be scheduled throughout the term and coordinated, as closely as possible and feasible, with related theory-course content.
3. One lab only should be performed per lab period, unless there are special or extenuating circumstances.
  - a. In some programs, because of the nature of the labs and the time scheduled, it is intended, and appropriate, that more than one lab will be completed in the scheduled period.

## **5.4. Lab Manuals, Instructions**

The same lab manual and/or documents must be used in all lab sections of a course. The teacher must ensure that the appropriate and most current manual and/or documents is (are) being used in the lab.

### 5.5. Lab Reports and Tests

1. It is desirable and expected - consistent with best practices for ensuring academic integrity - that questions for lab reports, tests and other lab evaluations will be changed or modified each term that the lab is delivered.
2. The teacher must set out all expectations and requirements for the completion of lab reports, including deadlines, format requirements, individual versus team submissions, etc.
  - a. The requirements must be provided to the students in writing.
  - b. The requirements must be consistent across all course sections delivering the lab.
  - c. The requirements should be appropriately consistent across all courses with labs in the program.

### 5.6. Marking of Lab Reports and Tests

1. Lab reports and tests must be marked and returned to the students within 5 working days.
2. Marking must be based on a rubric available to the students.
3. The marked work must provide a mark and comment or feedback that assists the student in understanding the errors and improving future performance.

## 6. Academic integrity

### 6.1. Policy statements

“Loyalist College believes that the development of self-discipline and acceptable standards of academic integrity are fundamental to the learning process. The establishment and maintenance of professional behaviour is the responsibility of all members of the Loyalist College community.”

“Students are expected to conduct themselves honestly and with integrity in all communications, applications, assignments, examinations, and any other correspondence. Students are also expected to use computer resources, including the internet, in accordance with Loyalist College policy and not store or transmit offensive material through computing resources.”

1. The teacher must take all reasonable measures and precautions to prevent academic dishonesty and encourage and enable academic integrity.
2. The teacher must watch for, respond to and report acts of academic dishonesty.

### 6.2. Preventing Academic Dishonesty

1. It is essential that the teacher be aware that students may have past course materials and so adjust evaluations and evaluation methods accordingly. Students collect and share past evaluations and other course materials. This is not inappropriate or forbidden if the procurement of the materials is above board and not illegal.
2. The teacher must take all reasonable steps and precautions to ensure the integrity of an evaluation when developing the evaluation and establishing evaluation methods.
3. Tests and exams must be modified or rewritten each term a course is offered. Using the same evaluation as in the previous term that a course was delivered is not supportive of academic

integrity and is not acceptable practice. A teacher may have an inventory of appropriate evaluations through which they rotate over the terms.

4. Evaluations undertaken in the same term but at different times must not be the same. e.g., the test used in an afternoon course section must differ from the one used in a morning section.
5. Multiple versions of an evaluation must be used when students writing the evaluation are seated in close proximity to one another.
  - a. The evaluation versions should be alternated among the students so that students sitting adjacent to one another have different versions of the evaluation.
  - b. It is recommended that each evaluation version be printed in a different colour, or otherwise identified, so that it is easier to spot if evaluation versions have been shuffled or moved around. Coloured paper can be obtained from the Academic Department.
6. The teacher must provide or ensure appropriate and effective monitoring or proctoring of students during an evaluation in order to ensure academic integrity.
7. The teacher should request proctoring assistance when faced with a challenging situation or setting. For example, the following situations will typically trigger a request for proctoring assistance.
  - a. A class enrollment exceeding 40 (less in cramped or difficult conditions).
  - b. The physical layout of the testing environment makes it difficult to constantly and effectively monitor all students.
  - c. There have been previous incidents, reports or suspicions of academic dishonesty in the group of students present in the class.
8. The teacher seeking proctoring assistance should contact the Academic Department to request proctoring assistance.
9. When monitoring an evaluation, the invigilating faculty member must pay full attention to monitoring the evaluation in order to ensure academic integrity. The invigilating teacher or proctor should not be reading, marking, working on a computer or other device, etc.
10. The teacher must not leave the room during an evaluation unless it is absolutely unavoidable. Request assistance when necessary.
11. When conducting an evaluation online, the use of a lockdown browser will be required.
12. When conducting skills performance testing, such as Objective Structured Clinical Examinations (OSCEs) or Clinical Performance Examinations (CPEs), teachers should consider distributing to the students the marking rubric or skills checklist ahead of the testing.
13. When conducting a written evaluation, the teacher and students MUST follow the procedures set down by the Test and Exam Writing Procedures policy.

### **6.3. Detecting and Confronting Academic Dishonesty**

1. The teacher must take all reasonable steps to detect acts of academic dishonesty.

2. When academic dishonesty (cheating) is detected during a formal evaluation, the teacher is expected to take whatever immediate action is required to ensure the continuing order of their class and security of students.
  - a. It is preferred that the teacher confront the cheating, confiscate materials, etc. immediately upon observing the cheating.
  - b. However, the avoidance of significant disruption to the class or upset to other students may require the delay of the confrontation, etc. to the end of the evaluation period, or other appropriate time.
  - c. It is worth considering that cheating in the testing environment may itself be upsetting to the other students who are aware of it, and the confrontation and stopping of the cheating may, in fact, provide comfort and encouragement for the students.
3. When a teacher determines or suspects that submitted work involves academic dishonesty, the teacher is required to report the alleged dishonesty to the Academic Department in a timely fashion. (See below.)

#### **6.4. Reporting Academic Dishonesty**

1. When academic dishonesty is detected or suspected, the teacher must report the dishonesty to the Academic Department.
  - a. The teacher must report the suspected or detected academic dishonesty following the process set out in policy.
  - b. The report must be filed in a timely fashion consistent with the policy.
  - c. The materials associated with the allegation, e.g., the essay, lab report, copied originals, test cheat notes, etc., must be held by the teacher.
  - d. Consistent with the policy, the teacher must inform the student(s) of the allegations made to the Academic Department.
2. Following the filing of the allegation of academic dishonesty, the teacher is (likely to be) required to provide evidence of the alleged dishonesty in an informal or formal hearing process conducted under the auspices of the Dean or the Academic Manager.

### **7. Feedback from Students**

1. A teacher is expected to be open to feedback from students and consider suggestions and requests for changes in the delivery of a course.
2. Each faculty member is required to undertake a Student Perception of Learning (SPL) survey(s) each teaching semester, as identified by the Academic Director.
3. A teacher is expected to accommodate any request for the conduct of the KPI Student Satisfaction Survey in the teacher's classroom or lab.

### **8. Student, Faculty and Course Schedules**

1. Student and faculty schedules are developed and changed by the Academic Department on the basis of directions and information provided by the Dean within the operating parameters established by the College.
  - a. Faculty and staff seeking special arrangements or considerations in the development of their or the students' schedules, or changes in the schedules must do so through the Dean or the Academic Manager.
  - b. Operationally, this is likely to be through the Academic Department. Ultimately, permission must come from the Dean.
    - i. Special schedule arrangements will be driven by the interests and needs of the students.
    - ii. A change to a class (section) schedule, after the first day of classes, requires the consenting sign-off of all active students in the class before it can be considered by the Dean and Academic Department, unless the change is initiated within the Department.
2. Published schedules must be followed. Schedules cannot be changed informally.
  - a. Additional ad hoc meetings with the students, (e.g., a special review session, a tutoring session) may be offered as long as attendance is voluntary and no student is directly disadvantaged by being absent (e.g., new material is presented, test questions are revealed).
3. Faculty will publish or otherwise inform their students of when they are available to students outside of class. This information must be clearly communicated to the students.
4. It is expected that classes will commence and finish on time and will utilize the full scheduled period (e.g., a scheduled 'one-hour' class will run for 50 minutes). It is important to complete the class on time in order to allow time for your group to exit and the next group to enter. The expectation that the scheduled time will be fully used applies equally to scheduled clinical or practicum experiences.
5. As an expected courtesy to the teacher following in the classroom, the departing teacher should ensure boards are erased, garbage is disposed of, the computer is logged out, the projector is turned off, furniture is returned to the normal arrangement, etc.
6. If a class runs for two hours or more, faculty may offer break periods that average ten minutes/hour. For example, a class scheduled from 8:30–10:30 may include a ten-minute break (from 9:20-9:30) and finish at 10:20, or it may have no break but finish twenty minutes before the half hour (10:10). Faculty may wish to consult with students to decide on the best arrangement.
  - a. In general, it is not good practice, and not recommended, to run a lecture-type class for more than two hours without a break.
7. Classes typically follow a 7-1-7 structure, with the 8<sup>th</sup> week being a reading week and the fifteenth week scheduled for final evaluations. Some programs may have a different semester length or structure.
  - a. The penultimate week of a semester, i.e., the week before exam week, typically the fourteenth week in a fifteen-week semester, must be used for the delivery of new material and/or the review of material in preparation for a final evaluation. Final evaluations, e.g., final exam, last term test, etc., may not be scheduled in the penultimate week.

- b. Some evaluation activities (such as oral presentations, skills test, missed tests, and assignments, projects, etc.) may be scheduled in the penultimate week with the prior permission of the Dean and publication in the course outline.

## Appendix A - Recommended Uses of the LMS

The Moodle Assignments tool enables students to submit electronically assessments such as lab reports, essays and assignments.

- Embedded within Moodle is a web-based plagiarism detection tool called Unicheck. When enabled, student submissions are automatically directed through Unicheck and a report is generated that indicates the percentage of content in the student's submission that matches content from previous student submissions as well as countless internet sources.
- When integrated with the Rubric tool, Moodle submissions can be graded online.

The Announcements tool is recommended for making class announcements in the LMS.

- It is preferred over the Email tool when sending a common message to the whole class.
- Students are able to receive and manage text and/or external email (e.g., Hotmail, Gmail) notifications of Announcements postings. Faculty should ask students if they know how to set up Notifications. If they don't, instruct them or refer them to the Academic Department for support.

\*\*\* The Participants tool, found in the block to the left of each page, provides faculty with information such as Enrollment Statistics (number of students in the class), and a picture of each student, if added.

- Because students are required to present a college-issued student photo ID card to faculty at the start of a test or exam, the Classlist tool is helpful in enabling faculty to see which students have not had their photo taken by the Registrar's Office and warn these students that they will not be allowed to take their tests or exam without a college student ID card

The recommended Attendance tool, found under the Activities and Resources button, allows faculty to record the attendance of the class and students can view their own attendance. This helps to remind students and faculty of a student's level of participation.

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## Associated Policies

- TPO 002 - Faculty Recruitment and Selection
- TPO 003 - Faculty Attendance, Absenteeism, and Punctuality Policy
- TPO 006 - Violence and Discrimination Policy
- TPO 018 - Course Content Revision

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## Associated Procedures

- TPR 001 - AC 001 - Supplemental Opportunities
  - TPR 001 - AC 002 - Academic Appeal Procedure
  - TPR 001 - AC 003 - Exam Rules of Engagement
  - TPR 001 - AC 005 - AIP Project Advisors Scheduling
  - TPR 001 - AC 006 - Academic Intervention Procedure
  - TPR 001 - AC 007 - Breach of Academic Integrity
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## Student Code of Conduct

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## 1. Purpose

Loyalist College (herein referred to as “the College”) is a community of learners where respectful living and learning is a cherished principle. For academic and other matters falling outside the scope of this Code, students should consult the list of policies posted on the College’s website at: <https://www.loyalistcollege.com/about-loyalist/policies/> and familiarize themselves with the relevant academic calendar. The College uses operational policies and the Student Code of Conduct to inform its students of its expectations for acceptable student conduct in academic and non-academic matters.

The primary purpose of the Loyalist College Student Code of Conduct (hereafter referred to as “the Code” or “this Code”) is not to be punitive but, rather, to be a guideline for appropriate non-academic behavior across Loyalist College’s diversified community. The Code provides a framework for review, investigation and resolution including sanctions, as appropriate. Where possible and appropriate, education and the provision of support services shall be used to attempt informal resolution of a matter before proceeding to formal resolution procedures. While this Code lays out specific avenues for Complaints and Appeals, the College encourages student to speak informally with the Vice-President, Student Life and Leadership, or Designate, to better understand their options before proceeding with a complaint or response.

The administration of this Code and Loyalist College policies is to be conducted in a clear, fair, and timely manner with due regard for the principles of natural justice.

## 2. Oversight Responsibilities

The department of Student Life and Leadership administers the Student Code of Conduct in non-academic matters. The Vice-President, Student Life and Leadership, or Designate, shall review complaints, and respond according to the related procedures in this Code.

## 3. Definitions

**Advisor:** A person selected by a Complainant or a Respondent to accompany them throughout the process or a part of the process. The Advisor does not play an active role in any part of the processes under this Code except to act as a moral support for the party asking to be accompanied.

**Appellant:** The party who appeals a decision under this Code.

**Complainant:** The party or parties initiating a complaint under this Code.

**Counter-Complaint:** A complaint filed by a Respondent in response to the complaint alleging breach of the Student Code of Conduct by the original Complainant.

**Due Process:** The principle that a party has a right to a fair and unbiased process that, amongst other things, incorporates the principles of the right to be heard or to know the case that has been made against a party to support any complaint or response.

**Expected Standards:** Refers to student behavior that meets or exceeds generally accepted standards for the development and maintenance of Loyalist College as a productive and positive place to learn and live. **These standards are further outlined in the Appendices attached below.**

**Good Standing:** Students with a semester GPA of 60%, or greater, for non-degree programs or 65%, or greater, for degree programs, who have passed all courses, are considered to be in good academic standing.

**Harassment:** Defined as any form of attention or conduct by an individual or group that knows, or ought to know, that such attention or conduct is unwelcome, unwanted, offensive, or intimidating. Such behavior does not have to constitute a pattern but rather, harassment may arise from a single instance of such behavior.

**Inappropriate Behavior:** Refers to behaviors that compromise the positive learning and living environment at Loyalist College and which fall below the generally accepted standards outlined in this Code or in relevant municipal, provincial, and federal legislation.

**Loyalist College Community:** Refers to students, alumni, staff, and visitors on Loyalist College campuses and facilities; participants in college related programming (academic and non-academic); and those involved in the use of college equipment or software.

**Natural Justice:** For the purposes of this Code, natural justice means that a student:

- a. has the right to know the case against them.
- a. has the right to present a defense.
- b. has a right to expect due process including the right to an unbiased complaint, investigation, and decision-making process.
- c. has the right to know reasons for a decision under this Code; and,
- d. has a right to appeal provided there are reasonable grounds for such appeal based on a reasonable apprehension of bias or that another breach of natural justice has taken place.

**Offence:** Behavior or actions by students that breach this Code or fall short of the College's standard for student responsibilities.

**Penalties/Sanctions:** Refers to measures taken to address breaches that fall below the expected standards of behavior. They are applied primarily to correct behavior rather than to punish behavior.

**Reasonable Apprehension of Bias:** A test to determine whether a decision has been unduly influenced by bias.

**Respondent:** The party or parties responding to a complaint, or an appeal filed under this Code.

**Restorative Measures:** Refers to measures aimed at assisting a student to take responsibility for their actions; make it right for those who have been negatively affected by those actions; and allow the community to be involved in helping both the victim and the offender.

Restorative practices seek to repair harm as part of a collaborative, good faith process that is predicated on parties taking responsibility for their actions and willingly participating in processes to redress any harm that has occurred.

**Sole Decision Maker:** The Sole Decision Maker process may be used, but is not limited to, situations where:

A simple administrative fine has been issued for a relatively minor breach of the Code or related policy.

For more serious cases where a more in-depth investigation needs to take place and where the matters under investigation are of a particularly sensitive nature.

There are increased concerns about confidentiality and the breach thereof.

There is more immediate action required arising from a concern for an individual or the larger Loyalist community.

The Sole Decision-Maker process may also be used when the matter is a relatively simple matter (e.g., a simple administrative fine has been issued for a relatively minor breach of the Code), the College is the Complainant, or when a complaint is received during periods when the Student Code of Conduct Complaints Review Panel is unavailable (e.g. after the end of classes, outside the regular academic year, or when the Complaints Review Panel is unable to meet due to student or staff absences – see Appendix “G” for more details).

**Student:** Refers to all full and part-time students, enrolled in for-credit or non-credit courses (and includes distance education courses) at Loyalist College or their guests on-campus or at a college related activity or event off-campus.

## 4. Principles

### 4.1 Positive Learning and Living Environment

Loyalist College is committed to establishing and maintaining a positive learning and living environment. The Code is designed to provide an explicit definition of the minimum standards of personal conduct that Loyalist College expects of all its students.

### 4.2 Conduct Respecting the Dignity and Worth of Every Member of the Loyalist College Community, Free from Discrimination

The Code reinforces the fact that Loyalist College respects the dignity and worth of every member of its community and provides for equal rights and opportunities, free from discrimination. Each member of the Loyalist College community shares responsibility for

creating and maintaining a living, learning, and working environment free from discrimination.

#### 4.3 Behavioral Expectations and Prohibited Conduct

Students are expected to conduct themselves in a manner that exemplifies the values of Loyalist College in maintaining a safe, respectful, and inclusive environment for all members of the College community. The Code provides preventative guidance to members of the College community while also recognizing that breaches can occur from time to time and must be dealt with accordingly.

#### 4.4 Risk Mitigation

The Code recognizes that occasionally, student behavior may fall below generally accepted standards. By ensuring that students and staff are aware of the expected standards of behavior, and the consequences of not meeting those standards, Loyalist College aims to reduce the likelihood of physical, emotional, or reputational harm to all members of the Loyalist College community and to Loyalist College itself.

#### 4.5 Right of Appeal

A student may appeal against a decision made under this Code providing they can demonstrate reasonable grounds for appeal based on a breach of natural justice, including a reasonable apprehension of bias or conflict of interest. NOTE: Not liking the result of a decision is not, in and of itself, grounds for appeal. Reasonable grounds would include evidence which, on its face, alleges bias or another fundamental breach of the principles of natural justice (e.g., a failure to follow due process).

### 5. Accommodation

Students with disabilities may require accommodation in relation to a hearing under this Code. In such cases, the student is required to provide medical documentation to the Vice-President, Student Life and Leadership, or Designate. With consent, the Vice-President, Student Life and Leadership, or Designate, will consult with the Access Ability office to confirm and, as necessary, specify the accommodations that should be provided when practicable to do so.

### 6. Application & Scope

The Loyalist College Student Code of Conduct applies to the non-academic conduct of all full- and part-time Loyalist College students that occurs on-campus; in properties owned or leased by Loyalist College; when using College equipment or software; or when participating in Loyalist College activities regardless of whether they take place on-or-off-campus.

**Complaints involving employees, including student employee conduct within the scope of their employment, should be referred to the People and Culture department by contacting them at the following email address: [peopleandculture@loyalistcollege.com](mailto:peopleandculture@loyalistcollege.com)**

This policy applies to off-campus behavior when:

- a. a student is participating in an academic requirement off-campus (including, but not limited to, work integrated learning (WIL) opportunities, Co-op related programming, field placement, or academically related field trips and experiential opportunities).
- b. a student is participating in any College sanctioned event (including, but not limited to, orientation, athletic events, charity events, etc.).
- c. Off-campus behavior threatens or negatively affects the physical or mental safety of Loyalist College students and staff.
- d. off-campus behavior has a real and substantive probability of negatively affecting the interests or reputation of Loyalist College, including:
  - i. when using electronic communications under the name of Loyalist College.
  - ii. when using social networking sites. NOTE: The College does not actively monitor such sites but if content comes to the attention of the College that reasonably suggests a breach of this Code or other College policies, the College reserves the right to investigate and respond as appropriate.

The procedures outlined in this document do **not** apply to breaches that are determined to be at Level 1 as outlined in Appendix I. Fines or other sanctions for such breaches shall be at the sole discretion of the relevant College representative, (e.g., residence staff member). Appeals of any such sanctions shall be to the immediate supervisor of the relevant staff member and the decision of the supervisor shall be final with no further avenue for appeal.

Whenever appropriate, the administration of this Code will seek to apply positive interventions, restorative practices, or educative outcomes.

The College reserves the right to:

- a) determine whether a matter should be addressed under this Code.
- b) take necessary and appropriate action to protect the safety and welfare of the College community as a whole, notwithstanding this Code.
- c) use information provided by external agencies such as the police or the courts; and
- d) determine whether behavioral restrictions should be put in place regardless of the location of the incident or the actions of external agencies such as the police or the courts. In other words, the College reserves the right to act under this Code regardless of whether proceedings have been commenced by outside parties.

## 7. Student Rights and Responsibilities

### 7.1 Student Rights

- The right to pursue their academic program with all the access and privileges that the College accords to those in good standing.
- The right to participate fully in college life without fear or threat of harassment, intimidation,

discrimination, violence, or other forms of exclusionary or threatening behavior.

- The right to an educational or on-campus residential environment that is safe, respectful, and conducive to positive living and learning.
- The right to natural justice under this policy.
- The right to privacy of personal information as per college policies.
- The right to freedom of opinion, expression, belief, and association to the extent this freedom does not infringe on the rights of others or violate this and other College policies or relevant laws.
- The right to peaceful assembly and participation within the College provided such actions do not violate the fundamental rights of other community members or breach the fundamental responsibilities outlined in the Student Code of Conduct.

## 7.2 Student Responsibilities

- The responsibility to behave in a manner that makes Loyalist College a safe, respectful, inclusive, and positive place to live, work, and study. Students are responsible for avoiding behavior that threatens or endangers the health, safety, well-being, or dignity of any member of the Loyalist community.
- The responsibility to support an environment of honesty, equity, and respect for others, consistent with the value that the College places on these principles within the Loyalist community.
- The responsibility to be fully acquainted with, and adhere to, College policies, procedures, and rules.
- The responsibility to protect the privacy of personal information of all members of the community.
- The responsibility to act in accordance with the law and College policy by not engaging in behavior that is, or that can be reasonably seen as, illegal or in breach of College policy.

## 8. Offences

Students are expected to conduct themselves in a manner that exemplifies the values upheld by Loyalist College by preserving a safe, respectful, and inclusive environment for all members of the College community. Prohibited conduct is identified on a continuum, based on relative harm to, or impact on, the rights of others. Cumulative or repeated behavior will result in an increasing level of sanction, although the incident on its own may not have normally warranted the recommended outcome. The offences identified below are provided for increased clarity regarding college expectations. The categories are not meant to provide an exhaustive list of all potential breaches to which this Code may apply. **Students are expected to refrain from the following actions.**

### 8.1 Offences Against Persons

Includes but is not limited to:

#### 8.1.1 Threats of Harm, or Actual Harm, to a Person's/Group's Physical or Mental Well-being

Assaulting, acting physically aggressive; acting verbally or non-verbally aggressive; intimidation, or coercion.

#### 8.1.2 Harassment

Behaving inappropriately through verbal or written communications (either in-person or via email); electronic messaging or other electronic/internet-based processes; or telephone.

Protections detailed in municipal, provincial, or federal laws may apply, as appropriate. In addition, students are not to display any kinds of discriminatory material including, but not limited to, notices; signs; flags; symbols; emblems; or any other similar representation that is determined to be discriminatory or harassing. NOTE: Intent to discriminate is not a determining factor under this Code. The impact on another person, or persons, or the College community shall be the determining factor.

#### 8.1.3 Sexual Assault and Sexualized Violence

Sexualized violence: any unwanted sexual acts and/or acts that are committed, threatened or attempted against a person without a person's consent. Sexualized violence includes sexual assault, sexual harassment, stalking, indecent exposure, voyeurism and sexual exploitation.

#### 8.1.4 Disturbances for the Purpose of Disruption or Obstruction

Creating disturbances that the individual knows, or ought to know, obstructs any activity organized by the College or the right of another member or members to carry on their legitimate activities, to speak, or to associate with others. Silent or symbolic protest will not be considered disruption under this Code. Noise that obstructs the conducting of a meeting or other regular college business, or forcible blocking of access to an activity does constitute disruption.

### 8.2 Offences Against Property

Includes but is not limited to:

#### 8.2.1 Theft or Other Unauthorized Possession

Possessing College property or the property of any member of the College community without the permission of the rightful owner. This includes taking something or being in possession of something that is known, or ought to be known, as not their own and for which authorization has not been granted.

#### 8.2.2 Damage to the Property of the College or its Community Members

Misusing, misappropriating, destructing, defacing, or damaging College property, or property that is not their own, including information or intellectual property owned by the College or any members of the College community.

### 8.3 Offences that Disregard the Safety and Health of the Loyalist College Community

This includes but is not limited to:

#### 8.3.1 Creating Dangerous or Unsafe Conditions

Setting fires, setting off false fire alarms, tampering with other lifesaving equipment, blocking exit routes, or misleading/impeding the work of college or emergency personnel.

#### 8.3.2 Inciting Violence

Threatening violence or physical abuse to any group or individual members of the College community or inciting others to engage in such behavior.

#### 8.3.3 Firearms, Explosives, Other Weapons

Possessing firearms (including air guns or replica firearms), explosives (including fireworks), other weapons or dangerous chemicals on college property or to any College-related event or activity.

Making claims of possessing or threatening to use such items on college property or at any College related event or against any member of the College community.

### 8.4 Offences Related to Access or Use of College Property, Facilities, Equipment and Materials

This includes but is not limited to:

#### 8.4.1 Unauthorized Entry or Presence

Entering or remaining on college premises or property or presence at any College-related activity/program without proper authority.

#### 8.4.2 Unauthorized Use of College Facilities, Equipment, Materials, or Services

Using any facility, equipment, material, or service (including any of the College's information resources), contrary to express instruction or without proper authority. Obtaining or using any College equipment, material, or service (including any of the College's information resources), by fraudulent means or by providing false information.

#### 8.4.3 Misuse of College Supplies or Documents

Making, altering, using, receiving, or possessing College supplies or documents without proper authority. Supplies and documents include, but are not limited to, equipment, software, keys, records, permits, College letterhead, College stationery, or College envelopes.

#### 8.4.4 Misuse of Library or Information Resources

- Removing books or other library materials from the College library without proper authorization.
- Destroying, misplace, misfiling, or rendering inoperable any stored information such as books, film, data files, or programs normally available through the library, computer, or other information storage, processing, and retrieval systems.
- Abusing any College information resources including, but not limited to, computer or computer-related facilities or software; altering or removing computer files or software.

without proper authorization; purposefully misplacing/mis-filing such files or software; or depriving others of access to such information resources.

### 8.5 Offences Related to the Use of Alcohol or Drugs

- Contravening provincial liquor laws or the policies of the College regarding the purchase, sale, possession, consumption, or manufacturing of alcoholic beverages.
- Possessing or consuming alcoholic beverages at a college-organized or College sanctioned event, on or off campus, which has been designated as a dry event/activity.
- Transporting, consuming, or possession of open alcohol outside licensed on-campus events or spaces, or other College-approved events or spaces where alcohol is that is sold or served.
- Possessing or using prescription drugs without a valid prescription. Trafficking of prescription drugs shall be considered an illegal drug activity for the purposes of this Code regardless of the amounts involved and regardless of whether money or other form of consideration is exchanged.
- Possessing of, furnishing to another, or consuming illegal drugs on-campus; at College facilities (whether leased or owned by the College); at College activities or events; or otherwise engaging in illegal drug behavior.

NOTE: As a general principle, impairment by alcohol or other drugs is not a defense against being found responsible for breaching the standards of behavior outlined in this Code; other College policies; or related procedures.

### 8.6 Offences Related to Smoking

Smoking on-campus or other College related property or at college sponsored activities or events. Students who can provide proof of a legitimate medical marijuana prescription, provided by a licensed physician, must register, and develop a plan with Accessibility Services as per the College's ADMIN 102 Smoke Free Campus Policy.

### 8.7 Offences Related to Online Postings

Students are reminded that images, posts, dialogues, and information about themselves or others posted on the internet are public information. While College officials do not actively monitor sites, content that is brought to the attention of the College which describes or documents behavior that may constitute a breach of college policy may be subject to further investigation. The College reserves the right to respond to these incidents, which may include disciplinary action under this Code or other relevant College policy.

### 8.8 Failure to Comply

Failing to comply with the reasonable directions of college officials, College Security officials, or other law enforcement officers in the performance of their duties.

## 8.9 Supporting Student Misconduct

Encouraging, aiding, or conspiring with another student to engage in misconduct under this Code. This includes, but is not limited to, encouraging or aiding behavior of a non-student/group which, if committed by a student/student group, would be grounds for misconduct under this Code.

### 8.10 Misconduct Related to the Application of this Code.

In utilizing this code, students and other members of the College community will refrain from:

- Abusing or otherwise disrespecting the substance and procedures under this Code including, but not limited to, bringing false or unfounded complaints with malicious or frivolous intent; failing to comply with the reasonable requests of an administrator or other staff member authorized under this Code; failing to attend meetings or hearings regarding alleged breaches of this Code; or retaliating against any participant in proceedings under this Code.
- Abusing the College's disciplinary system by, but not limited to:
  - Falsifying, distorting, or otherwise misrepresenting information before the Student Code of Conduct Complaints Review Panel or the College Appeals panel.
  - Disrupting or interfering with the orderly conduct of any hearing held under this Code.
  - Attempting to discourage an individual's participation in, or use of, the Student Code of Conduct policy.
  - Attempting to influence the impartiality of a member of the College's Student Code of Conduct Complaints Review Panel or the Appeals Panel.

Harassing or intimidating or attempting intimidation of a member of the Complaints Review Panel or the Appeals Panel.

Influencing or attempting to influence another person to commit an abuse of the Complaints Review Panel or the Appeals Panel processes.

### 8.11 Refusal to Comply with Decisions made under this Code.

Students who are found to be responsible for misconduct under this Code must comply with a corrective measure applied under this Code. Students who do not comply with decisions made under this Code may be subject to further sanctions including, but not limited to, suspension or expulsion from the College.

## 9. Sanctions

The following is a list of possible sanctions that may be imposed under the Code upon determination that a breach has occurred. The list is not exhaustive but is meant to serve as a guideline for the Complaints Review Panel, the Appeals Panel, or the Vice-President, Student Life and Leadership, or Designate, when reviewing violations of the Code. Each case is unique and, consequently, the sanctions imposed may be unique to address the specific breach and its consequent harm to either an individual or the community.

**Administrative Move/Relocation** – In some situations, particularly if the Complainant and the Respondent are in the Loyalist residence community, there may be a need to move a student to another room or to another residence. This will often be linked to a sanction restricting the person's ability to return to their previous residence building.

Likewise, in cases where a Complainant and Respondent may be in the same courses or program, there may be a need to move a student to another course or another program cohort.

**Alcohol Probation** – Students who create a disturbance after, or because of, drinking or who violate rules and regulations after, or because of, drinking, or who demonstrate signs of problem drinking may be placed on alcohol probation. Students on such probation are not permitted to possess or consume alcohol on college premises, whether on-campus or leased off-campus or at College related events. Residence students in violation of alcohol probation may face suspension or eviction from residence. Students who violate an alcohol probation will be placed on disciplinary probation automatically and future breaches of the Code may result in further sanctions being imposed.

**Apology** – Apologies are meant to express the remorse of the person offering an apology and to help repair any damage that has been done to the parties' relationship. Such apologies may be private (i.e., party-to-party), or public (i.e., to the Loyalist community), as appropriate.

**Bans** – Students may be banned from one or more campus residences; from other areas on campus; and/or from campus and campus-related facilities. Such a ban may have a formal Trespass to Property Notice attached which constitutes legal notice and for which a breach can lead to further legal sanctions.

**Behavior Contract** – A behavior contract is an agreement between an individual and the College, whereby an individual agrees to a set of specified behaviors, conditions, or expectations. An individual may be issued a behavior contract where it is determined to be part of the educative process for the individual and where the individual does not constitute an immediate or enduring threat to other members of the Loyalist community. A behavior contract will often be issued together with a bond that will result in a fine being imposed should the behavior contract be breached.

**Bond** – A bond is a suspended fine and is used to ensure that an individual complies with a specific behavior contract, policy, or procedure and to ensure an appropriate level of behavior is maintained by the individual within the Loyalist community. If there are no behavioral contract violations during the period specified in the bond, no fine will be issued. Should the behavior contract be violated, the bond will be converted into a fine and charged to the student's account. NOTE: Additional sanctions may also apply.

**Community Service Hours** – Community service provides a student with an opportunity to repair any damage(s) or harm caused by their behavior. At the discretion of the decision-

maker(s) under the processes of this Code, community service hours may be completed on- or off-campus. Completion of hours will be confirmed by the party supervising the requisite hours.

**Educational Assignment** – These may be written or participative activities the purpose of which is to provide a student with increased knowledge as to the impact of their behavior on an individual, the College community, or the community at large. They may be written, oral, participation in restorative justice processes, meeting with a college or external community member with expertise in the issue, etc.

**Expulsion from Residence or the College** – In some cases, the behavior may be severe enough to warrant a student's expulsion from the College or from residence. In such cases, the student will also be banned from campus or from residence and may be subject to a Trespass to Property Notice. A decision to expel a student from the College will be made by the Vice- President, Student Life and Leadership, or Designate, after consultation with the Senior Vice- President Academic.

**Fines** – A fine is a financial charge against a student's account in consequence of a breach of this Code and to hold a student accountable for such breach.

**Interim Measures** – In cases where the Vice-President, Student Life and Leadership, or Designate, deems it necessary, interim measures may be implemented. Such measures are taken as the result of a reasonable belief in the need to protect the safety and well-being of the students involved in a complaint or for the protection of the larger Loyalist College community. Such measures can include, but are not restricted to, room/residence re-location; temporary room/residence/College ban; a No Contact/Communication Order; or other restrictions deemed necessary while the complaints process is underway. Interim measures, similar to emergency measures, do not imply a finding of guilt.

**No Communication Order** – To safeguard the review and hearing process or to ensure a safe space for students involved in a complaint, the Vice-President, Student Life and Leadership, or Designate, may issue a No Communication Order. Such an order restricts, as outlined in the Order, communication between students involved in the complaint process until such time as the matter has been resolved.

**No Contact Order** – To safeguard the review and hearing process or to ensure a safe space for students involved in a complaint, the Vice-President, Student Life and Leadership, or Designate, may issue a No Contact Order. Such an order restricts, as outlined in the Order, any form of contact (which may also include matters covered under a No Communication Order) between students involved in the complaint process until such time as the matter has been resolved.

**Non-Academic Suspension** – Students may be issued with a non-academic suspension which prohibits them from being on campus for any non-academic purpose. Except for classes, labs, assigned study groups, or other academic purposes, the suspended student is not permitted on-campus and must leave immediately upon the academic purpose being completed. Failure to

abide by the terms and conditions set out in the non-academic suspension may result in a complete suspension or expulsion.

**Reduced Privileges** – Students may have their privileges restricted or suspended. Such privileges may include participation in clubs, societies, or teams; eligibility for residence allocations or future residence allocations; or attendance at social functions on-campus or at college related events and activities.

**Referral** – Students may, as directed by the relevant decision-maker, be required to attend meetings/appointments with Designated people, organizations, or departments (on- or off-campus) as an educative means to ensure fuller understanding or compliance to avoid future breaches under this Code.

**Restitution** – Relates to monetary sanctions directly meant to compensate for costs incurred from injury, loss, or other damages including, but not limited to, the cost of repair, replacement, or other compensation. Restitution differs from Fines in that the assessment of the amount of restitution is specifically related to those costs that are determined to be a direct consequence of the inappropriate behavior and the harm caused.

**Violence Threat Risk Assessment** – In cases where there is a reasonable belief that a student may pose a threat to the safety of others due to a high potential for physical harm to other members of the Loyalist community; high potential of damage to College property; or the continued presence of a student would be unduly disruptive, the Vice-President, Student Life and Leadership, or Designate, may seek an evaluation of the safety risk by referring the matter to an outside, third party, for further threat assessment. In such cases, interim or emergency measures may be applied as the threat assessment is conducted.

**Written Warning** – A written warning is a low-level sanction that serves to warn a student that a continuation of the behavior outlined in the warning may result in further and more severe sanctions.

**NOTE:** The College reserves the right to impose outcomes other than those outlined above depending on the nature and severity of the behavior or harm under review.

## 10. Related Policies and Protocols

- ADMIN 102 – Smoke-Free Campus
- SS 612 – Sexual Assault and Sexualized Violence
- STUD 204 – Fit to Learn
- AOP 231 – Academic Appeals Policy and Procedure
- Residence Community Standards & Expectation

## 11. Relevant Legislation

Freedom of Information and Protection of Privacy Act (FIPPA)

Ontario Human Rights Code

Accessibility for Ontarians with Disabilities Act (AODA)

## APPENDIX A – DIRECT PARTY-TO-PARTY PROCEDURE

### Informal Party-to-Party Resolution

The Loyalist College recognizes that many disputes can be resolved informally without resorting to the procedures in this Code. Where it is possible and appropriate to do so, members of the College community are encouraged to use constructive communication to directly resolve the situation rather than invoking the formal complaints procedure under this Code. A suggested process for this is as follows:

- a. Choose a time and place when a conversation can proceed calmly, privately, and without too much time having passed from the time of the incident leading to the need for the meeting. Where appropriate, consider bringing another person to the meeting for moral support.
- b. Speak about the impact of the behavior, focusing on the behavior – not the person.
- c. Listen to understand and acknowledge the viewpoint of the other person involved.
- d. Work together to find an agreement on how to resolve the issue through better communication, mutual understanding, and possibly developing a plan to avoid such impacts in the future.

If the situation does not lend itself to direct resolution or if direct resolution is unsuccessful, an individual may choose to address the issue through the complaints process outlined in this Code and Appendices below. NOTE: In all cases, the complaints process shall begin with a formal, written complaint.

## APPENDIX B – COMPLAINTS PROCEDURE

### A. Statement

Toronto Business College believes all members of the College community have the right to study or work in an environment that is safe, secure, and supportive. The College expects students, staff, faculty, and visitors to be responsible for conducting themselves in a manner that respects the rights of employees, other students and College property.

This procedure outlines the ways Loyalist College in Toronto students can file a complaint against any member of the College community (students, staff, faculty, or visitors) or against their employers if they currently are completing a Co-op or work placement.

### B. Incident Reporting

In order to file an official complaint, the student must submit a [Student Complaint form](#) to report any type of incident that happened:

- On campus (in the REC Room, the Common Area, the Lounge, the parking lot, etc.)
- In class
- In the Innovation Hub
- Off campus
- While on Co-op or work placement.

Students must provide details of the incident:

1. Description of what happened:
  - Identify the specific actions, behaviors and/or words spoken that precipitated the incident.
  - Characterize the type of incident (Physical injury, verbal abuse, threatening behavior, verbal threat, written threat, damage to personal/other property).
2. Location of the Incident (attach sketch if possible):
  - Outcome (Police called, injury, medical assistance, first aid, emotional shock or distress, legal action initiated)
3. Other Relevant Information:
  - Possible contributing factors (Use of drugs or alcohol, possession of a weapon, apparent motive)
4. Relevant events which preceded the incident.

All submissions will be automatically reported to the Director of Student Success, the Director of Quality Assurance, and the Dean's Office, who will arrange a meeting with the student within two (2) working days of the date of the submitted complaint.

If a complaint is filed against one of the members of the TBC Senior Leadership Team, this member will automatically recuse themselves to guarantee a fair process.

The [Student Complaint form](#) is available on the Learning Management System (Moodle).

## APPENDIX C – INFORMAL RESOLUTION

The informal resolution process provides the Complainant(s) and Respondent(s) with the option of seeking a facilitated outcome to the complaint. It is meant to arrive at a common understanding of the harm done and to achieve a mutually agreeable outcome that is designed to repair or redress the harm/perceived harm. Any breakdown of the informal resolution process or any violation of the agreed upon terms will result in the matter being automatically referred to the College's Student Code of Conduct Complaints Review Panel.

### A. Overview

1. The Complainant may request an informal resolution process or the Vice-President, Student Life and Leadership, or Designate, may suggest it, and both parties (Complainant and Respondent) must both mutually agree to it. Where there is disagreement, or where the Respondent does not respond, the matter will proceed to the formal resolution process by presentation to the Student Code of Conduct Complaints Review Panel.
2. Normally, the Vice-President, Student Life and Leadership, or Designate, will facilitate the informal resolution process. At their discretion, or at the request of both parties involved, another College staff member, or members, may be called upon to facilitate. If the Vice-President, Student Life and Leadership, or Designate, is not the facilitator, every effort will be made to find a facilitator, or facilitators, who is/are mutually agreeable to the parties. Failure to find a mutually agreeable facilitator will result in the matter being referred to the Student Code of Conduct Complaints Review Panel.
3. At any point in the informal resolution process, either the Complainant or the Respondent may choose to withdraw from the process, in which case the matter will be referred to the College's Student Code of Conduct Complaints Review Panel.
4. At any point in the process, the Complainant or Respondent may elect to be accompanied by an Advisor. The Complainant or Respondent must provide the Vice-President, Student Life and Leadership, or Designate, or other facilitator(s) with the name/contact information of the Advisor, in writing, either through Loyalist College's email, campus mail, or Express Post, at least 24 hours prior to any scheduled meeting.
5. The informal resolution process is confidential and personal information or admissions shared within the process may not be used by either party against the other in another resolution process. If the parties arrive at a mutually agreeable resolution, then the resolution/agreement may be shared with appropriate third parties or decision makers, but the content of the process is to remain private and confidential.
6. The facilitator(s) will work with the parties, separately or together, to achieve a commonly agreed upon outcome. The facilitator(s) may not act as a decision maker but can make suggestions as per their role as facilitator.
7. Any outcome must be determined jointly and entered voluntarily by the parties.
8. Where a resolution is not reached, the case will be referred to the Student Code of Conduct Complaints Review Panel established under this Code. Likewise, if an agreement is reached but not ultimately followed by either party, the matter will be referred to the Student Code of Conduct Complaints Review panel. If necessary, the Vice-President, Student Life and

Leadership may impose interim measures as needed to ensure the principles of the Code are adhered to by all parties.

## B. Informal Resolution Process

1. Once the Vice-President, Student Life and Leadership, or Designate, has confirmed the Complainant wishes to resolve the matter informally, they will notify the Respondent of the complaint and the Complainant's desire to resolve the matter informally. The Vice-President, Student Life and Leadership, or Designate, will invite the Respondent to meet in person to discuss the nature of the complaint and the details of the Informal Resolution process:
  - i. If the Respondent agrees to participate in the Informal Process, the process will continue as outlined in paragraph 2 below.
  - ii. If the Respondent does not agree to participate, the matter will be referred to the Student Conduct Complaints Review Panel for formal resolution.
2. After meeting with the Respondent to outline the nature of the complaint and the Complainant's desire to resolve the matter informally, the Vice-President, Student Life and Leadership, or Designate, or appointed facilitator(s), will meet with the Complainant, the Respondent, and any relevant witness(es), separately or jointly as required to facilitate the process. The process allows for multiple meetings, if required, provided the meetings remain constructive and are working positively to resolve the matter. The purpose of the meeting(s) is:
  - i. to better understand the nature and impact of the harm.
  - ii. to make the Respondent aware of the harmful impact on the Complainant; and
  - iii. to assess the potential for arriving at a mutually agreeable outcome that addresses the harm.
3. Following the initial set of meetings with the Complainant and the Respondent, the Vice-President, Student Life and Leadership, or Designate, or appointed facilitator(s), will present to the Complainant and Respondent, possible courses of action with respect to achieving a resolution. These may include, but are not limited to, any of the following:
  - i. measures designed to acknowledge the impact of the harm and prevent reoccurrence.
  - ii. a proposal from the Respondent that includes goals and a timeline for tasks to be undertaken to:
    - a. prevent reoccurrence, and,
    - b. repair the harm caused by the incident leading to the complaint.
  - iii. a conciliation meeting in which the Complainant/Respondent involved do not meet face-to-face, but information is shared back and forth by the Vice-President, Student Life and Leadership, or Designate, or appointed facilitator(s);
  - iv. a mediation with both the Complainant and Respondent present in which the Vice-President, Student Life and Leadership, or Designate, or

- facilitator(s) encourages an exploration of the behavior, its root causes, the effect on others, and possible remedies.
    - v. agreed upon administrative recommendations/sanctions designed to remedy the harm that has been caused.
- 4. Each part of the Informal Resolution process must be agreed upon by all parties including:
  - i. developing and agreeing to a set of expectations that ensures everyone has a fair opportunity to participate and is respected in the process.
  - ii. working together to define the topics that will be discussed or topics that will not be discussed through the process due to the sensitivity of the topic.
  - iii. deciding on how the process will proceed including the steps involved in the process, who to involve, when and where to meet, and how communications will be facilitated; and
  - iv. agreeing to outcomes that satisfy those who have been impacted.
- 5. The process will take the form of one or more discussions, as noted above, with those who are directly involved agreeing that:
  - i. all participants are expected to approach the process with an open mind, a willingness to listen, and a genuine desire to better understand what has happened and its impact.
  - ii. conversations will be constructive in nature to bring about new insight into what happened, what it meant to those involved, and what should happen next; and
  - iii. that due to the possibility of the matter being emotional for the part involved, each participant will engage in a thoughtful and reflective manner; work towards de-escalation of any tensions; treat all parties with respect; and focus any blame on the situation rather than on the individual.
- 6. The process will normally be concluded within 60 calendar days but may be extended should it be acceptable to all parties if the conditions noted in Appendix B are presented.
- 7. The matter will be deemed to be resolved when the process comes to a natural end with the outcomes having been reasonably fulfilled, and all parties agreeing it has been reasonably resolved.
- 8. A brief written summary will be provided by the Vice-President, Student Life and Leadership, or Designate, or facilitator(s) to the Complainant and the Respondent and a copy shall be kept in the Vice-President, Student Life and Leadership's office.

## APPENDIX D - FORMAL RESOLUTION – SOLE DECISION-MAKER

Complaints that do not lend themselves to the Informal Resolution process outlined in Appendix C due to the need for more immediate action or arising from the need for an expanded investigation; confidentiality concerns; timing concerns; concerns arising because of threats to the individual or community; or other concerns as determined relevant by the Vice-President, Student Life and Leadership, or Designate, may be referred to the Sole Decision Maker process.

### A. Overview – Sole Decision Maker Resolution

Complaints that are normally subject to a Sole Decision-Maker resolution are those that may require an expanded investigation, sensitivity around confidentiality, or more immediate action because of concern for an individual or the Loyalist community.

The Sole Decision-Maker process may also be used when the matter is a relatively simple matter (e.g., a simple administrative fine has been issued for a relatively minor breach of the Code), the College is the Complainant, or when a complaint is received during periods when the Student Code of Conduct Complaints Review Panel is unavailable (e.g. after the end of classes, outside the regular academic year, or when the Complaints Review Panel is unable to meet due to student or staff absences – see Appendix “G” for more details).

In such instances, the Vice-President, Student Life and Leadership, or Designate, will normally utilize the Sole Decision-Maker process to resolve the complaint. If the Vice-President, Student Life and Leadership is perceived to be in a conflict-of-interest position, then the matter will be referred to the Senior Vice-President, Academic.

### B. Process

When the Sole Decision-Maker process is undertaken, the Vice-President, Student Life and Leadership, or Designate, will notify all parties as outlined in Appendix B, as necessary. For cases involving allegations of danger to individual or community safety, the Vice-President, Student Life and Leadership, or Designate, may order interim sanctions or emergency measures be imposed until the matter can be fully resolved.

1. The Vice-President, Student Life and Leadership, or Designate, will take the appropriate steps to ascertain the facts of the matter by meeting separately with each party, and as appropriate, with any relevant witnesses that have been identified.
2. The Vice-President, Student Life and Leadership, or Designate, may call upon other witnesses based on information gathered over the course of the investigation. In some cases, it may be necessary for parties to be interviewed more than once.
3. If new information comes to light because of the information provided by the Respondent or the Respondent’s witness(es), the Vice-President, Student Life and Leadership, or Designate, may deem it required to meet again with the Complainant or any previously interviewed witness(es) for the purpose of clarifying their original statements.
4. In the case of a student-to-student complaint, if the Respondent submits a counter-complaint, the Vice-President, Student Life and Leadership, or Designate, will decide on both complaints at the same time.

5. Where a meeting has been scheduled between a Respondent and the Vice-President, Student Life and Leadership, or Designate, but the Respondent does not attend despite having been informed of the meeting, in writing, the Vice-President, Student Life and Leadership, or Designate, may proceed in the Respondent's absence, and decide based on the information already received and reviewed.
6. Where a meeting has been scheduled between a Complainant and the Vice-President, Student Life and Leadership, or a Designate, despite the Complainant having been informed of the meeting, in writing, the Vice-President, Student Life and Leadership, or Designate, will not proceed with the complaint unless there is reason to believe there is an ongoing threat to the health and safety of an individual or the broader Loyalist community.
7. The Vice-President, Student Life and Leadership, or Designate, reserves the right to call upon additional College staff members as may be needed to assist with or lead the investigative/review process. The Vice-President, Student Life and Leadership, or Designate, will review other relevant policies and utilize those policies that apply in all the circumstances. In matters involving suspected criminal activity, the Vice-President, Student Life and Leadership, or Designate, reserves the right to notify the appropriate legal authorities.
8. Under normal circumstances, each progressive step in this process will take five business days except for a final decision by the Vice-President, Student Life and Leadership, or Designate, which may take up to ten business days. Normally, the entire process will take no longer than 60 calendar days to resolve.
9. If, at any time, the Vice-President, Student Life and Leadership, or Designate, determines the complaint no longer falls within the scope or cannot be dealt with effectively by the Sole Decision-Maker process, the Vice-President, Student Life and Leadership, or Designate, may refer the matter to the Student Code of Conduct Complaints Review Panel.

### C. Decision

1. If the Respondent is found to be not responsible, the file will be closed. If the Respondent is found to be responsible, then sanctions may be imposed, as necessary.
2. The Vice-President, Student Life and Leadership's, or Designee's, decision will normally be communicated, in writing, to both the Complainant and the Respondent within five business days of the decision being made. This will include:
  - i. a summary of the complaint and a finding with regards to responsibility, including the reasons for the decision.
  - ii. a description of the outcomes/sanctions, if any, that are to be imposed.
  - iii. a timeframe and process for any applicable follow-up.
  - iv. an explanation of the appeals process; and
  - v. a reminder that the proceedings are to be considered confidential and matters discussed throughout the process are not to be discussed outside the meetings held in accordance with this process.

### D. Standard of Proof

The standard of proof required to determine there has been a breach of this Code will be on a balance of probabilities, meaning the decision maker has determined that the evidence shows.

it is more likely than not that the alleged events or harm occurred and that such events or harm constitute a breach of this Code. Failure to meet this standard will result in the complaint being denied.

## APPENDIX E - FORMAL RESOLUTION – STUDENT CODE OF CONDUCT COMPLAINTS REVIEW PANEL

The Student Code of Conduct Complaints Review Panel process provides a confidential forum for the Complainant and Respondent to present their arguments before a decision-making panel made up of college representatives. The panel will consider the arguments, including information received from witnesses or other relevant information, and then determine responsibility which may include a finding of no responsibility or responsibility. When a finding of responsibility is made, sanctions may apply, as appropriate.

### A. Conduct Complaints Review Panel Referral

Complaints that are not initiated under the informal or sole decision-maker processes shall be referred to the Complaints Review Panel by the Vice-President, Student Life and Leadership, or Designate, in accordance with this Code.

### B. Notification of Conduct Complaints Review Panel Hearings

The Student Code of Conduct Complaints Review Panel will normally hear the case within 20 business days from the day the Vice-President, Student Life and Leadership, or Designate, notifies the respondent of the complaint. The Vice-President, Student Life and Leadership, or Designate, will be responsible for notifying the parties of the date, time, and place of the hearing.

### C. Process

1. The purpose of the Student Code of Conduct Complaints Review Panel is to provide a fair evaluation of the complaint and to determine whether the Respondent is responsible for violating College regulations and to assign sanctions, as appropriate, in the case where a Respondent is found responsible.
2. Student Code of Conduct Complaints Review Panel hearings are held in private (i.e., restricted to parties that have a direct role or interest in the hearing, e.g., Complainant and Respondent, or parties who are acting as Advisor(s)). At the discretion of the panel, other parties may be admitted to the hearing for training purposes; to act as a moral support for those who have a direct interest in the hearing; or for other reasonable considerations.
3. After the Complainant and Respondent have each had an opportunity to view the other's statements or responses, the Vice-President, Student Life and Leadership, or Designate, will submit all documentation and supporting evidence to the Student Code Conduct Complaints Review Panel. The Student Code of Conduct Complaints Review Panel will have five business days to review the information before scheduling a hearing.
4. Normally, the Complainant and Respondent will receive at least three business days' notice of the date, time, and location of the Student Code of Conduct Complaints Panel hearing. Where there are circumstances that warrant more urgent handling, the notice period may be shortened at the discretion of the Vice-President, Student Life and Leadership, or Designate, after consultation with the Chair of the Student Code of Conduct Complaints Review Panel. For further clarity, the decision to shorten the notice period can only be made in circumstances where an individual's or the community's interests are threatened or otherwise at risk. The Vice-President, Student Life and Leadership, or Designate, will send.

the hearing notice to the Complainant and Respondent either by Loyalist College email, campus mail, or Express Post. The Complainant and Respondent are responsible for notifying their witnesses, if any.

5. To ensure due process, including fairness of the process, the Student Code of Conduct Complaints Review Panel shall observe the following procedural guidelines:
  - i. The hearing will proceed in stages with the Complainant and the Complainant's witnesses presenting to the Student Code of Conduct Complaints Review Panel first. The Respondent and the Respondent's witnesses will present themselves before the Student Code of Conduct Complaints Review Panel following the presentation by the Complainant and the Complainant's witnesses.
    - a. Following the Respondent's presentation, and at the discretion of the Student Code of Conduct Complaints Review Panel, the Complainant or the Complainant's witnesses may be asked to present again. Equally, the Respondent or the Respondent's witnesses can be asked to present for a second time.
    - b. Witnesses for either the Complainant or the Respondent shall not be present in the hearing room prior to or after presenting their information or responding to questions by the Student Code of Conduct Complaints Review Panel members. This is to avoid the potential of a witness being influenced by another's presentation.
    - c. Neither the Complainant nor the Respondent shall have the right to question witnesses during the hearing. All questioning will be by the Student Code of Conduct Complaints Review Panel members.
  - ii. In the event of a counter-complaint, where the Complainant and the Respondent have both registered complaints against the other, the Student Code of Conduct Complaints Review Panel shall hear both complaints simultaneously.
  - iii. The Respondent will be given an opportunity to admit or deny responsibility, in whole or in part.
  - iv. Both the Complainant and the Respondent will have the opportunity to make suggestions to the Student Code of Conduct Complaints Review Panel as to the remedies or sanctions, if any, they believe are appropriate in all the circumstances.

#### D. Hearing Operations

1. The Student Code of Conduct Complaints Review Panel Chair will be responsible for chairing hearings.
2. Panel members will select one member to serve as the Recording Secretary for the hearing. Such selection to be made on a simple majority vote of Panel members.
3. In circumstances when a hearing continues over time and a Panel member becomes unavailable, the remaining Panel members may complete the proceeding. If the missing

Panel member is the Student Code of Conduct Complaints Review Panel Chair, the remaining Panel members will select a new Chair for the hearing. Such selection to be made on a simple majority vote of remaining panel members.

#### E. Decision

1. In making decisions, the Student Code of Conduct Complaints Review Panel will operate based on consensus. Where consensus cannot be reached, a vote will be taken. A majority vote will determine responsibility or no responsibility. In the event of a tie, the Student Code of Conduct Complaints Review Panel Chair will cast a deciding vote.
2. The Student Code of Conduct Complaints Review Panel decision will normally be communicated, in writing, either by Loyalist College email, campus mail, or Express Post to both the Complainant and the Respondent within five business days of the decision being made. This communication will include:
  - a. a summary of the complaint and a finding with regards to responsibility, including the reasons for the decision.
  - b. a description of the outcomes/sanctions, if any, that are to be imposed.
  - c. a timeframe and process for any applicable follow-up.
  - d. an explanation of the appeals process; and
  - e. a reminder that the proceedings are to be considered confidential and matters discussed throughout the process are not to be discussed outside the meetings held in accordance with the Code.

#### F. Standard Of Proof

The standard of proof required to determine there has been a breach of this Code will be on a balance of probabilities, meaning the decision maker has determined that the evidence shows it is more likely than not that the alleged events or harm occurred and that such events or harm constitute a breach of this Code. Failure to meet this standard will result in the complaint being denied.

#### G. Student Responsibilities for Hearings

It is a student's responsibility in relation to a hearing to:

1. Notify witnesses of the date, time, and location of the hearing. Only witnesses whose names or statements were included in the original submission of documents and information to the Student Code of Conduct Complaints Review Panel may normally participate in the hearing.
2. Advise the Student Code of Conduct Complaints Review Panel, through the Vice-President, Student Life and Leadership, or Designate, in writing through Loyalist College email, campus mail, or Express Post, whether they will be bringing an advisor to the hearing. The name, title, and contact details of the Advisor must be provided to the Vice-President, Student Life and Leadership, or Designate, at least 24 hours in advance of any hearing or meeting related to the hearing, unless this requirement is waived by the Vice-President, Student Life and Leadership, or Designate. This information will be shared with all relevant parties.
3. Respondents are expected to attend hearings in person, or virtually, even if they have an Advisor. Failure to attend a hearing does not preclude the Student Code of Conduct

Complaints Review Panel proceeding in the absence of the respondent and deciding based on the information available at the time of the hearing.

4. Select an Advisor, if wanted, who can attend the hearing as scheduled. Failure of an Advisor to attend will not prevent a hearing from proceeding in the absence of any such Advisor.
5. Provide the Student Code of Conduct Complaints Review Panel, through the Vice-President, Student Life and Leadership, or Designate, with their current contact information. If a student, either Complainant or Respondent, fails to receive notice under this Code by reason of the student's own failure to provide current contact information, such notice shall be deemed as being given notwithstanding the student's failure to receive same.

#### H. Reasonable Apprehension of Bias/Conflict of Interest

Students have the right, before the merits of a complaint are heard, to challenge the suitability of any decision-maker hearing the complaint if there is a reasonable apprehension of bias or perceived conflict-of-interest. If such a challenge is made, the entire Student Code of Conduct Complaints Review Panel, absent the decision-maker whose impartiality is being questioned, will determine if the charge of reasonable apprehension of bias or conflict-of-interest is valid. Such a decision shall be final.

If no reasonable apprehension of bias or conflict-of-interest is found, the hearing shall proceed with all panel members as originally determined. If a reasonable apprehension of bias or conflict-of-interest is found, the hearing will be rescheduled, and a new Panel member provided. Or, if all parties agree, the hearing will proceed minus the participation of the Panel member against whom a reasonable apprehension of bias or conflict of interest has been found.

#### I. Postponement

1. A hearing may be postponed, at the discretion of the Student Code of Conduct Complaints Review Panel, if it has independent reasons to do so or upon the request of one of the parties, provided the party satisfies the Panel that the postponement is necessary for a fair hearing to be held. When deciding whether to grant a postponement, the Complaints Review Panel shall consider the following factors:
  - i. the timeliness of the request.
  - ii. the adverse impact, if any, on other parties to the hearing.
  - iii. whether postponements of the hearing have been previously granted.
  - iv. the consent, lack thereof, of the parties; and
  - v. any other relevant factors.
2. The party seeking the postponement must submit their request, in writing, no later than 24 hours before the time of the hearing, to the Complaints Review Panel through the Vice-President, Student Life and Leadership, or Designate. The request must include:
  - i. the reason(s) for the request; and
  - ii. any additional information that may help the Panel to make its decision.

The Vice-President, Student Life and Leadership, or Designate, will forward the request to the Student Conduct Complaints Review Panel members and to the Respondent. The Respondent shall have the opportunity to respond to the request through the Vice-President, Student Life and Leadership, or Designate, in writing and upon receiving the request, to register their

support or opposition to the request. Any response will be forwarded to the Student Code of Conduct Complaints Review Panel and to the Complainant. Failure to respond does not preclude the panel from considering the request. The decision of the Panel will be communicated through the Vice-President, Student Life and Leadership, or Designate, to the Complainant and Respondent.

3. Where possible, the Student Code of Conduct Complaints Review Panel will consider the request in advance of the original hearing date. Where this is not possible, the Panel may consider the request as a preliminary matter to the hearing, on the date of the original hearing. In such cases, both parties should be ready to proceed as originally scheduled. Should the Complaints Review Panel decide the matter is to be postponed, then the parties will be informed, in writing, and the hearing will be rescheduled as needed. If the Complaints Review Panel's decision is to reject the application for postponement, the hearing will proceed as originally scheduled.

NOTE: Consent of the parties does not preclude the Panel from deciding to proceed with the hearing as originally scheduled.

#### J. Student Code of Conduct Complaints Review Panel Composition

1. The full membership of the Student Code of Conduct Complaints Review Panel consists of two students, two faculty members and two staff members (one administrative staff member and one support staff member) appointed by the Vice-President, Student Life and Leadership.
2. Student Code of Conduct Complaints Review Panel Terms of Service:
  - i. Student members of the Student Code of Conduct Complaints Review Panel shall serve for a minimum of one year and a maximum of two years, normally from September-June of each year. Student members can be reappointed for one further term of two years. Further re-appointment is not possible until at least one year has passed from the date of last service.
  - ii. Faculty members of the Student Code of Conduct Complaints Review Panel will serve for a minimum of two years and a maximum of four years, normally from September-June of each year. Further re-appointment is not possible until at least one year has passed from the date of last service.
  - iii. Staff members of the Student Code of Conduct Complaints Review Panel will serve for a minimum of two years and a maximum of four years, normally from September-June of each year. Further re-appointment is not possible until at least two years have passed from the date of last service.
3. The Student Code of Conduct Complaints Review Panel will select one member to serve as the Complaints Review Panel Chair. The Chair will serve as a liaison between the Student Code of Conduct Complaints Review Panel and the Vice-President, Student Life and Leadership's, or Designate's, office.
4. Unless otherwise stipulated, the Student Code of Conduct Complaints Review Panel will meet at the call of the Vice-President, Student Life and Leadership, or Designate, as appropriate.

## APPENDIX F - FORMAL RESOLUTION – STUDENT CODE OF CONDUCT APPEALS PANEL

### A. Grounds For Appeal

1. A right to appeal is not automatic but must be based on grounds as outlined below. The Complainant or the Respondent may only appeal a decision made under this Code on one or more of the following grounds:
  - i. A significant error occurred where the procedures outlined in this Code were not followed correctly. Such errors must be substantive in nature and ones which could have affected the outcome of a complaint. Mere clerical errors will not normally constitute a significant error.
  - ii. clear evidence of bias or significant conflict-of-interest on the part of a decision-maker.
  - iii. The outcome is patently unreasonable based on the evidence provided; or
  - iv. there is significant new evidence that was not available at the time of the decision, and which has the potential to change the original decision. Failure to present evidence that was available at the time of the original review but not presented does not constitute new evidence.

NOTE: Mere disagreement with a decision does not constitute a valid ground for appeal.

2. The grounds for appeal, including all supporting information, must be described and delivered, in writing, and by email to [conductcomplaints@loyalistcollege.com](mailto:conductcomplaints@loyalistcollege.com) within five business days following the date the original decision was issued. The Vice-President, Student Life and Leadership, or Designate, shall forward the materials to the College Appeals Panel, with copies to the Respondent, as necessary.
3. All appeals under this Code will be directed to the Student Code of Conduct Appeals Panel for review.
4. Decisions of the Appeals Panel are final, and no further appeal shall be heard or permitted.

### B. Initial Assessment of the Appeals Materials

1. The Student Code of Conduct Appeals Panel will do an initial assessment of the submitted materials to determine if sufficient grounds have been provided to hold an Appeals Panel hearing.
2. If it is determined the grounds for an appeal are not present, the appeal will be dismissed. The decision of the Appeals Panel is final and cannot be further appealed.
3. If the appeal is granted, the Appeals Panel will conduct a hearing. Unless there are exceptional circumstances, the appeal will be heard within 10 business days of the date of the appeal's submission. The Appeals Panel shall give the Appellant and Respondent at least three business days notice of the date, time, and place of a hearing, and may be conducted as the following:
  - i. Oral hearing – the parties may have the opportunity to present their case, in person or virtually (where necessary), to the Appeals Panel members.

- ii. Written Submission hearing – the parties may have the opportunity to present their case solely in writing and the Appeals Panel members will review and render a decision.
  - a. Hearings will follow the general procedural guidelines as outlined in **Appendix E – Formal Resolution – Student Code of Conduct - Complaints Review Panel** and as modified for alignment with the structure and purpose of the Appeals Panel.
  - b. It is not the purpose of an appeal hearing to re-hear the case. The scope of the hearing will be limited to the Appellant making a case that the ground(s) of appeal has/have been met and the Respondent’s response, if any.
  - c. It is at the discretion of the Appeals Panel whether any parties beyond the Appellant or Respondent shall be invited to participate in a hearing.
- iii. The decision to hold an oral hearing or to have the hearing solely based on written submissions, or a combination of oral and written, shall be at the sole discretion of the Appeals Panel.

## C. The Decision

The Student Code of Conduct Appeals Panel will render a written decision no more than five business days from the conclusion of the hearing. The Appeals Panel has the authority to do the following:

- I. Affirm or modify the Student Code of Conduct Complaints Review Panel’s decision, including affirming, reducing, or increasing the sanctions assigned by the Student Code of Conduct Complaints Review Panel.
- II. Order the Student Code of Conduct Complaints Review Panel to conduct a new hearing or reconsider some aspect(s) of the original decision.

The decision(s) of the Appeals Panel will be delivered to the Appellant, the Respondent, and the Vice-President, Student Life and Leadership, or Designate, either by Loyalist College e-mail, campus mail, or Express Post. The decision will be filed with the Vice-President, Student Life and Leadership’s office. The Appeals Panel’s decision is final and not subject to further appeal.

If a new hearing is granted, then the subsequent decision of the Student Code of Conduct Complaints Review Panel will be final and not subject to further appeal.

## D. Suspension Of Sanctions

- 1. Only monetary sanctions are automatically suspended pending the outcome of an appeal. Non-monetary sanctions shall remain in force and effect pending the outcome of the appeal.
- 2. For appeals of Student Code of Conduct Complaints Review Panel decisions, the Appellant may submit a written request to the Vice-President, Student Life and Leadership, or Designate, to stay (i.e., suspend) the enforcement of the sanctions pending the outcome of the appeal.

3. For appeals of Sole Decision-Maker decisions, the Appellant may submit a written request to the Vice-President, Student Life and Leadership, or Designate, to stay (i.e., suspend) the enforcement of the sanctions pending the outcome of the appeal. If the Vice-President, Student Life and Leadership, or Designate, is the original decision-maker, the request to stay the enforcement of sanctions shall be made to the Senior Vice-President Academic.

#### E. Student Code of Conduct Appeals Panel Composition

1. The full membership of the Student Code of Conduct Appeals panel shall consist of one student; one faculty member; and one staff member (administrative or support staff) appointed by the Vice-President, Student Life and Leadership, or Designate. The Appeals Panel shall be formed on an appeal-by-appeal basis. The Appeals Panels should be formed on an ad hoc basis (i.e., the Appeals Panel should be formed to address appeals on an as-needed basis rather than members being appointed for a set term).
2. An Appeals Panel will normally consist of all members being present. Should any member not be able to attend, the Vice-President, Student Life and Leadership, or Designate, shall appoint an ad hoc member from the same constituency of the missing panel member.
3. No member of the Appeals Panel will have served on the Student Code of Conduct Complaints Review Panel that heard the original case.
4. Students have the right, before the merits of a complaint are heard, to challenge the suitability of any decision-maker hearing the appeal if there is a reasonable apprehension of bias or perceived conflict-of-interest. If such a challenge is made, the entire Appeals Panel, absent the decision-maker whose impartiality is being questioned, will determine if the charge of reasonable apprehension of bias or conflict-of-interest is valid. Such decision shall be final. If no reasonable apprehension of bias or conflict-of-interest is found, the hearing shall proceed with all panel members as originally determined. If a reasonable apprehension of bias or conflict-of-interest is found, the hearing will be rescheduled, and a new Panel member provided. Or, if all parties agree, the hearing will proceed minus the participation of the Panel member against whom a reasonable apprehension of bias or conflict-of-interest has been found.

## APPENDIX G – PROCESS OUTSIDE THE REGULAR ACADEMIC YEAR

For complaints that arise after the end of classes; end of exams; between terms, or outside the regular academic year (normally defined as the period from the first day of classes in the fall term to the end of exams in the summer term – excluding periods when the College is closed or classes are suspended); or at a time when the Student Code of Conduct Complaints Review Panel is unable to meet, the Vice-President, Student Life and Leadership, or Designate, will, as appropriate, work to resolve the matter according to the Sole Decision-Maker process.

In these cases, the usual timeline(s) for response and resolution may require adjustment due to student or staff absences, holidays, availability of witnesses, etc. In cases where the complaint can be referred to the Student Code of Conduct Complaints Review Panel for resolution at the start of a new academic term or year without any disadvantage to the Complainant or Respondent, the Vice-President, Student Life and Leadership, or Designate, shall defer the complaint to that term or year.

## APPENDIX H – EMERGENCY MEASURES

1. Loyalist College reserves the right to intervene in cases where a student's behavior is reasonably seen as affecting others' use and enjoyment of college programs, privileges, rights, and facilities. These circumstances include, but are not limited to, those where there are reasonable grounds to believe the safety of others is endangered due to a high potential of physical harm; there is a potential of damage to college property; or the continued presence of the student would be unduly disruptive to individuals within the Loyalist community or unduly disruptive to the Loyalist community overall.
2. In such cases, the Vice-President, Student Life and Leadership, or Designate, may invoke emergency measures by immediately imposing a range of restrictions, up to and including temporary suspension from the College. In cases where a conflict-of-interest or a reasonable apprehension of bias may be perceived on the part of the Vice-President, or Designate, the Vice-President, Student Life and Leadership, or Designate, shall refer the matter to the Senior Vice-President Academic.
3. The Vice-President, Student Life and Leadership, or Designate, may limit a student's access to the College until a comprehensive threat assessment can be conducted by qualified professionals.
4. Normally, a formal hearing before the Student Code of Conduct Complaints Review Panel or a Sole Decision-Maker, as appropriate, will be held within 10 business days of notice to the student of the emergency measures' decision. During this time, the student may only enter residence or campus under escort where appropriate permission(s) have been sought and granted. Other interim conditions may include, but are not limited to, restrictions on a student's movement on-campus; no contact/communication orders; or suspension of student privileges; notification of external authorities (e.g., the police).
5. The Vice-President, Student Life and Leadership, or Designate, may extend emergency measures until the Student Code of Conduct Complaints Review Panel or the Sole Decision-Maker can reasonably hear the complaint. Normally, this will occur for a period not exceeding 30 business days from the date of the original imposition of emergency measures.
6. Any emergency measures imposed are not to be considered as evidence of guilt but, rather, as interim measures to deal with a reasonable perception of potential harm until the matter(s) can be fully resolved under this Code.
7. If the College is made aware that criminal proceedings have been initiated against a student, and the student's activity negatively impacts or may negatively impact campus safety or other College interests, the Vice-President, Student Life and Leadership, or Designate, will determine if there are grounds for pursuing emergency measures under this Code.

## APPENDIX I – SAMPLE LEVELS OF BREACH

| Level                                                                                                                                                                                                         | Behavior:<br>Examples                                                                                                                                                                                                                                                                                    | Type of Response: Examples                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                 | Procedure                                                                                                                                                                                                                                                                                                                                                                                                                                              |
|---------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|----------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|----------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|--------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|
| <b>Level I</b> – Behaviors which interfere with the legitimate rights of any Loyalist College Community Member to pursue academic study or student life in a safe, respectful, and productive environment.    | <p>Examples may include, but are not limited to:</p> <ul style="list-style-type: none"> <li>- Verbal abuse</li> <li>- Smoking tobacco in non-designated areas</li> <li>- Use of cannabis on college property</li> <li>- Substance impairment leading to disruptive behavior</li> </ul>                   | <p>Depending on severity, the sanctions may be, but are not limited to:</p> <ul style="list-style-type: none"> <li>- Alcohol probation</li> <li>- Apology</li> <li>- Behavior Contract</li> <li>- Fines</li> <li>- No communication or contact order.</li> <li>- Reduced privileges</li> <li>- Written warning, to be included in student's non-academic file</li> </ul>                                                                                                                                                   | <p>Behaviors in Level 1 are decided by the relevant College representative. Appeals of any such decision are to be made to the representative's College Supervisor and any decision by the College Supervisor shall be deemed as final and not subject to further appeal.</p> <p>All incidents must be reported to the Vice-President, Student Life and Leadership office and may form the basis of a complaint under the Student Code of Conduct.</p> |
| <b>Level II</b> – Behaviors which endanger the safety or security of Loyalist College community members or property, or that may be harmful to the physical or psychological well-being of community members. | <p>Examples may include, but are not limited to:</p> <ul style="list-style-type: none"> <li>- Bullying and harassing conduct</li> <li>- Damage to Loyalist College or community member's property.</li> <li>- Threatening behavior</li> <li>- Aggressive outbursts, either verbal or physical</li> </ul> | <p>Depending on severity, the sanctions may be, but are not limited to:</p> <ul style="list-style-type: none"> <li>- Alcohol probation</li> <li>- Apology</li> <li>- Ban from Residence/Campus</li> <li>- Behavior Contract</li> <li>- Bond</li> <li>- Community Service hours</li> <li>- Educational assignment</li> <li>- Fines</li> <li>- Interim measures</li> <li>- No communication or contact order.</li> <li>- Reduced Privileges</li> <li>- Referral</li> <li>- Restitution</li> <li>- Written Warning</li> </ul> | <p>Informal Resolution procedure or Formal Resolution Procedure.</p> <p>All incidents must be reported to the Vice-President, Student Life and Leadership office and may form the basis of a complaint under the Student Code of Conduct.</p>                                                                                                                                                                                                          |

|                                                                                                                                                                                                                                                                                                                                                                                                                                                      |                                                                                                                                                                                                                                                                                                                                                                         |                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                            |                                                                                                                                                                                                                                                                                     |
|------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|-------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|-------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|
| <p><b>Level III</b> – Behavior that is illegal and for which municipal, provincial, or federal laws may apply.</p>                                                                                                                                                                                                                                                                                                                                   | <p>Examples may include, but are not limited to:</p> <ul style="list-style-type: none"> <li>- Physical assaults against another person (e.g., pushing, kicking, punching, hitting, etc.)</li> <li>- Threat to injure self or others (verbal or written)</li> <li>- Weapons possession including replicas</li> <li>- Use or selling of prescribed medicine(s)</li> </ul> | <p>Depending on severity, the sanctions may be, but are not limited to:</p> <ul style="list-style-type: none"> <li>- Administrative Move/Relocation</li> <li>- Alcohol Probation</li> <li>- Apology</li> <li>- Ban from residence/campus</li> <li>- Behavior Contract</li> <li>- Bond</li> <li>- Community Service hours</li> <li>- Educational Assignment</li> <li>- Expulsion from Residence or the College</li> <li>- Fines</li> <li>- Interim Measures</li> <li>- No communication or contact order.</li> <li>- Non-academic suspension</li> <li>- Reduced privileges</li> <li>- Referral</li> <li>- Restitution</li> <li>- Written Warning</li> </ul> | <p>Formal Resolution Procedure.</p> <p>All incidents must be reported to the Vice-President, Student Life and Leadership office and may form the basis of a complaint under the Student Code of Conduct.</p>                                                                        |
| <p><b>Level IV – Emergency Measures</b></p> <p>Serious behavior that is reasonably seen as posing a threat to the safety of others due to a high potential for physical harm to other members of the Loyalist community; high potential of damage to College property; or the continued presence of the student would be unduly disruptive to individuals within the Loyalist community or unduly disruptive to the Loyalist community, overall.</p> | <p>Examples may include, but are not limited to:</p> <ul style="list-style-type: none"> <li>- Potential for serious bodily harm or death</li> <li>- Use of a weapon</li> <li>- Behavior is reasonably seen as being unduly disruptive</li> </ul>                                                                                                                        | <p>Depending on severity, the sanctions may be, but are not limited to:</p> <ul style="list-style-type: none"> <li>- Administrative Move/Relocation</li> <li>- Emergency Measures, including suspension from the College</li> <li>- Expulsion from Residence or the College</li> <li>- Fines</li> <li>- Interim Measures</li> <li>- No communication or contact order</li> <li>- Non-academic suspension</li> <li>- Reduced privileges</li> <li>- Referral</li> <li>- Restitution</li> <li>- Violence Threat Risk Assessment</li> <li>- Written Warning</li> </ul>                                                                                         | <p>Formal Resolution Procedure under the Student Code of Conduct.</p> <p>All incidents must be reported to the Vice-President, Student Life and Leadership office who will be responsible for informing the College Executive of the risk and the steps taken to mitigate same.</p> |

## APPENDIX J – RECORDS AND RECORDS RETENTION

Records of charges and sanctions, other than suspension or expulsion, will not be placed in a student's academic record. Records of informal resolutions will be kept as part of student's non-academic file until their graduation, after which such records will be destroyed.

Records of formal resolutions, including charges and sanctions, will be maintained as confidential records in the Office of the Vice-President, Student Life and Leadership, for up to seven (7) years after the student(s)' graduation, after which the records shall be destroyed. In cases where an individual ceases to be a student, all records of formal resolution including Sole Decision-Maker; Student Code of Conduct - Complaints Review Panel, or College Appeals Panel shall be kept for a period of seven (7) years, after which such records will be destroyed.

As per the regulations under this Code, records of previous breaches of this Code, where relevant, may be utilized to impose progressive disciplinary measures based on previous behavior.

## APPENDIX K – GUIDELINES FOR NATURAL JUSTICE

1. The burden of proof in administrative hearings under this Code shall be on a balance of probabilities which is informally interpreted as what is most likely to have happened. If there is a belief that it is more likely than not that the incident occurred, the finding shall be that the complaint is upheld. If there is a belief that it is less likely that the incident occurred, the finding shall be that the complaint is denied.
2. The process should proceed as quickly as possible providing each party's right to due process is not negatively affected.
3. Each party must be given sufficient notice as outlined in this Code.
4. The student(s) must be informed of the case against them and be given the opportunity to prepare a response.
5. Both the Complainant and the Respondent have the right to be heard.
6. Each party may have an Advisor present who, normally, will be a member of the College community. An Advisor may be legal counsel outside the College. Advisors are there to support their respective party and shall have no active role (i.e., not be permitted to ask, or answer questions during any hearing and shall be present in a support capacity only). Students must inform the party conducting the hearing, in writing, including the contact details, and according to the timelines and format set out in this Code, if they plan to bring an Advisor.
7. Complainant(s) and Respondent(s) may provide witnesses during proceedings, as appropriate. Students must inform the party conducting the hearing, in writing, including the contact details, and according to the timelines and format set out in this Code, if they plan to bring a witness. Witnesses must normally appear but failure to appear does not stop the proceeding from moving forward. It is the responsibility of the party calling the witness(es) to ensure their witness(es) are notified of the time, date, and place of the meeting. The Panel hearing the complaint may also compel witnesses to attend. In this instance, it shall be the responsibility of the party hearing the complaint to ensure witnesses are aware of the time, date, and location of the hearing.
8. It is important to recognize procedures under this Code are administrative in nature and are not meant to mimic a court of law. Consequently, rules of evidence or other laws that would normally apply in a court of law may not apply, e.g., Rules regarding hearsay evidence. In hearings under this Code, hearsay evidence may be admitted provided the Sole Decision-Maker or Panel hearing the matter believes it is relevant and instructive to determining a fair and reasonable outcome for all parties.
9. Evidence of past breaches, by either party to the before the relevant decision-maker, shall not be raised unless directly relevant to the matter under review.
10. At all levels, decisions must be made promptly and reasons for any decision are to be given in writing.
11. No one can hear a complaint or participate in a decision under this Code where a reasonable apprehension of bias is, or is reasonably believed to be, present.

## APPENDIX L – RE-ENTRY PROCESS

The establishment of a Re-Entry Plan is applicable to those students who have been suspended or expelled and are seeking readmission to the College. The Re-Entry Plan references a written agreement between the student and the College that specifies the required actions which must be taken by the student in return for re-admission to the College.

Students seeking re-entry to the College following suspension or expulsion are required to contact the Vice-President, Student Life and Leadership, or Designate.

A meeting will be arranged between the student, the Vice-President, Student Life and Leadership, or Designate and the Director, Student Success (or Designate) to explore the student's circumstances and to determine whether the behaviors that led to the suspension or expulsion are now appropriately managed and no longer a source of concern. Consultation will be undertaken as appropriate. Final Re-Entry Plans are to be approved by the Vice-President, Student Life and Leadership, or Designate.

To support the student's ability to manage his or her behavior appropriately within the learning environment, a behavioral contract may be issued which clearly outlines the expectations for the student's behavior and the potential consequences should the student breach the terms of the behavioral contract. Behavioral contracts are reviewed and re-issued as required with the start of each subsequent semester the student attends.

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## Associated Policies

- TPO 010 - SL 001 - Library Services Policy
- TPO 010 - SL 002 - Accessibility Services Policy
- TPO 010 - SL 003 - Student Success Policy
- TPO 010 - SL 004 - Lost and Found Policy

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## Associated Procedures

- TPR 010 - SL 001 - Student Counselling Services
  - TPR 010 - SL 002 - Student Health Plan
  - TPR 010 - SL 003 - Academic Accommodation for Missed Assessment
  - TPR 010 - SL 004 - Accessibility - Accommodation Request
  - TPR 010 - SL 005 - Accessibility Services Application
  - TPR 010 - SL 006 - Class Representative Application and Duties
  - TPR 010 - SL 007 - Class Representative Feedback Form
  - TPR 010 - SL 008 - Registration to be a Volunteer or a Club Master
  - TPR 010 - SL 009 - Student Housing Support
  - TPR 010 - SL 010 - Request Form for Academic Accommodation for Missed Assessment
  - TPR 010 - SL 011 - Student Etiquette
  - TPR 010 - SL 012 - Tutoring Services
  - TPR 010 - SL 013 - TBC & LCIT Student Complaint Procedure
  - TPR 010 - SL 014 - Incident Reporting, Risk Assessment and Response Protocol
  - TPR 010 - SL 015 - Library Procedure Manual
  - TPR 010 - SL 016 - Academic Tutor Request
  - TPR 010 - SL 017 - Student Parking Violation
  - TPR 010 - SL 018 - Borrowing Recreational Equipment
  - TPR 010 - SL 019 - Sexual Assault and Sexualized Violence Procedure
  - TPR 010 - SL 020 - Front Desk Manual
  - TPR 010 - SL 021 - Student Identification Card
  - TPR 010 - SL 022 - How to Start a New Club
  - TPR 010 - SL 023 - How to Check your Balance and Make a Payment
  - TPR 010 - SL 024 - Campus Safety Escort
  - TPR 010 - SL 025 - Wellness Counsellor Referral Form
  - TPR 010 - SL 026 - Student Code of Conduct Tracking
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## Exam Rules of Engagement

Procedure Number: TPR 001 – AC 003

Issue Date: August 26, 2022

Last Review: October 3, 2023

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Overseer: TBC Senior Leadership Team

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Author's Name: Roni SRDIC

Author's Title: Director of Enrollment Services

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### 1. Statement

This procedure outlines the rules of conduct for examinations.

### 2. Exams (midterm and final assessments)

#### Before the exam

- Students must come to class for their regular time.
- Students must be seated, and all bags, phones, smart watches, or ear buds placed at the front of the room.
- Students must turn off all ringers, alarms, and other notifications on their phone before the start of the exam.
- For each exam, students must have their Loyalist College in Toronto student ID card, or a valid Canadian government-issued ID (Ontario Driver's License, Ontario Photo Card, etc.).
- Students failing to provide a physical ID card will have to request a temporary exam pass from the reception desk. Students will have to present their student ID card or Canadian government-issued ID to the front desk **no later than five (5) business days** after the scheduled exam or they will receive a 0 on the exam.
- Students who obtained a temporary exam pass will not have any additional time to complete the exam.

- ID cards MUST be on the desks and visible before the start of the exam.
- Unauthorized devices and aids are not permitted on the desks and must be placed with other belongings at the front of the room. The following devices and aids are not allowed during an exam.
  - Mobile phones, smartwatches, fitness trackers, or other wearable technology (smart glasses)
  - Audio players or recorders, tablets, laptops, notebooks
  - Bluetooth devices (such as wireless earbuds/headphones), or any other personal computing devices
  - Separate timers of any type
  - Online calculators
- If proctors see any of the devices above, students will be required to leave the exam immediately. Students will receive a grade of “0” and will be reported for academic misconduct.

### **Late Arrival**

- Students and the instructor/proctor must be present at the beginning of the scheduled class period. The instructor/proctor will use the first 30 minutes to get the class settled, make sure the desks are cleared, check the ID cards on the desks, etc., regardless of the class start time.
- As soon as the exam has started, students cannot enter the classroom to write the exam, and they will get a grade of 0.
- Only students who requested a temporary exam pass within the first 30 minutes of the scheduled class period will be allowed to enter the classroom. No student may enter if another has already left the classroom.

### **During the exam**

- Lockdown browser is mandatory.
- Students are not allowed to leave the exam in the first AND the last 15 minutes of the exam.
- Students will not have any break during the exam.
- If students leave the classroom after the start of the exam for any reason they cannot return to the classroom.
- Absolutely no talking will be tolerated during the exam, even if a student is talking to themselves.
- Anyone talking will be given a grade of 0 and reported for academic misconduct.

### **If students finish early**

- If students finish early and wish to leave the exam, they should raise their hand.

- Students should wait until the proctor allows them to leave.
- Absolutely no talking when students leave. Anyone talking will be given a grade of 0 and reported for academic misconduct.

### 3. Proctoring process

1. The course instructor is the primary proctor for all midterms, exams, and other assessments.
2. Instructor may request additional proctoring support for exams using [the proctoring assistance request form](#). The Academic Department will try to accommodate all requests to the best of their abilities.
3. Secondary proctor duties:
  - a. Secondary proctors will make sure the faculty has been informed before entering the classroom.
  - b. Any issues identified by the secondary proctor will have to be reported to the faculty first.
  - c. Secondary proctor must use discretion when discussing student issues with faculty.
4. Exams will start after reading the Exam Rules for Engagement, placing ID cards on desk, putting phones away, bags at front of room, etc.
5. Students seated and all bags/phones/smart watches/ear buds placed at the front of the room.
6. Exams are distributed face down – if paper
  - a. Alternating with different versions of exam.
  - b. Exam is not started until students are settled and the proctor is satisfied that all electronics have been removed.
7. ID cards are placed on the desks with bar code /photo facing up. The proctor reads the “exam rules.”
8. Start and end time of exam noted on white board.
9. The proctor gives a 15-minute warning before the end of the exam.
10. Exam attendance information is kept in the Academic office and database for any appeals, confirmations of attendance, etc.
11. For students who leave/finish the exam early, proctor/instructor must confirm that the student has “submitted” the exam before leaving exam.

### 4. Definition of open book exam

- Open Book exam allows for study notes and/or textbooks.
- Does not include laptop or accessing internet/web/electronic notes or online calculators.
- Lockdown browser is mandatory.

### 5. Personal laptops vs desktops in computer labs

#### **No personal laptops in classrooms with desktops**

If there are enough desktops for all students. Only use laptops at the tables with no desktops. Laptops must have a lockdown browser installed.

The following devices and aids are not allowed during an exam:

- Mobile phones, smartwatches, fitness trackers, or other wearable technology (smart glasses)
- Audio players or recorders, tablets, laptops, notebooks,
- Bluetooth devices (such as wireless earbuds/headphones), or any other personal computing devices
- Separate timers of any type
- Online calculators
- Unauthorized devices and aids are not permitted at desks and must be placed with other belongings at the front of the room.

**Absolutely no talking will be tolerated during the exam, even if a student is talking to themselves.**

## 6. Announcement

**Announcement to be read before every exam by the instructor/proctor and projected onto the screen in the classroom:**

### **EXAM RULES OF ENGAGEMENT**

As a reminder, instructor/proctor will read the exam rules below before every exam display the following Exam Rules of Engagement on the screen in the classroom:

- Place all book bags and accessories at the front of the class.
- Place your current student ID card or Canadian government-issued ID on the desk in front of you. Students failing to provide a physical ID card will not be allowed to write the exam.
- You are only allowed water in the room.
- Remove and place all phones, smart watches, ear buds away and completely out of sight and phones put on silent mode.
- If we see any of these devices, you will be required to leave the exam immediately, you will receive a grade of “0” and you will be reported for academic misconduct.
- The proctor or the instructor takes the student information and reports the Breach of Academic Integrity to the College.

### **Announcements:**

1. Type of exam:
  - a. Open book – if an option
  - b. Lockdown Browser
  - c. Paper
  - d. Other rules for this exam around use of other devices/equipment
2. **Absolutely no talking to your neighbours or to yourself during the exam**

- Anyone talking will be given a grade of “0” and will be reported for academic misconduct.
- 3. Students are not allowed to leave the exam in the first AND the last 15 minutes of the exam.
- 4. Students will not have any break during the exam.
- 5. If students leave the classroom after the start of the exam for any reason, they cannot return to the classroom.
- 6. Instructors will give specific instructions about the exam:
  - Students are not permitted to ask questions about the exam during the exam.
  - Students can ask questions during this set-up period but not during the exam.
- 7. Exam does not start until everyone stops talking and the desk and spaces are clear of items not authorized during the exam.
- 8. Leave space at the front of the room for any latecomers to limit distractions.

## **7. Message sent to students via email and posted on Moodle:**

Dear students,

Final exams are coming up. We trust you are working hard and have started studying. Please note the rules of engagement for the final exams.

You MUST:

- Arrive on time and stay in the classroom.
- Have your Loyalist Student ID card, a valid Canadian government-issued ID, or a temporary exam pass to write the exam.
- Place your ID card on table/desk in front of you before the exam starts.
- Place all book bags and accessories at the front of the class.
- Place your coat/jacket on the back of your chair.
- You must turn off all ringers, alarms, and other notifications on your phone before the start of the exam.
- Remove and place all phones, smart watches, ear buds, and all other devices, in your bag or out of sight.

You WILL:

- NOT be allowed to write the exam without an ID card.
- NOT be allowed to eat or drink anything except water during the exam.
- NOT be allowed to return to the exam room if you leave for any reason during the exam.
- NOT be allowed to leave the exam in the first and last 15 minutes of the exam.
- NOT talk to your neighbours or yourself.

## **If you are late for your exam, you will get a grade of “0”**

Any act of academic dishonesty will result in a grade of “0” for the exam. Academic dishonesty includes a variety of actions including, but not limited to, plagiarism, conflict of interest, cheating, falsification, misrepresentation and fraudulent behaviour, and copyright breaches.

Loyalist College in Toronto will penalize acts that demonstrate disregard for the standards of academic integrity:

1. First documented offence will result in a grade of zero on any material that can be demonstrated to be dishonest.
2. Second documented offence will result in a grade of zero for the course.
3. Third documented offence will result in suspension from the College for one calendar year (two academic terms).
4. Fourth documented offence will result in permanent expulsion (debarment) from the College.

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## **Associated Policies**

- TPO 002 - Faculty Recruitment and Selection
- TPO 003 - Faculty Attendance, Absenteeism, and Punctuality Policy
- TPO 006 - Violence and Discrimination Policy
- TPO 018 - Course Content Revision

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## **Associated Procedures**

- TPR 001 - AC 001 - Supplemental Opportunities
  - TPR 001 - AC 002 - Academic Appeal Procedure
  - TPR 001 - AC 004 - Standards of Teaching Practice
  - TPR 001 - AC 005 - AIP Project Advisors Scheduling
  - TPR 001 - AC 006 - Academic Intervention Procedure
  - TPR 001 - AC 007 - Breach of Academic Integrity
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## Thrive with the GuardMe Student Support Program. Your Well-being Matters!

Elevate your student experience! Get confidential support, resources, and a community that understands. Embrace your well-being!

Support is available anytime of the day or night from anywhere in the world!

### Get to know the benefits of GMSSP

- Unlimited real-time support
- Scheduled appointments
- Peer support community
- Confidential access to counsellors
- Campus and community resource referrals
- Free app with 100+ resources
- Match with a counsellor that meets your needs
- Support in 140+ languages

### Get help with any school, health, or general life concern

- Managing stress
- Depression and anxiety
- Social isolation
- Homesickness
- Mental health issues
- Coping with trauma
- Family challenges
- Academic issues
- And much more!

### Access Support

Easiest ways to access support.

Chat by downloading the Student Support App. Scan QR code.

Call anytime from anywhere in the world

**1-844-451-9700**

Within Canada & USA

Outside of Canada & USA **+1-416-380-6578**



Visit [gmssp.org](http://gmssp.org)

2023-24

# LOYALiST COLLEGE

**Global Business  
Management  
Program Manual**

We are small so  
our students can  
do big things.

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# CONTACT US

4000 Victoria Park Ave.  
Toronto, ON.  
M2H 3P4

Phone: 416-291-5155

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### PROGRAM LEARNING OBJECTIVES

# WELCOME

## TO THE GLOBAL BUSINESS MANAGEMENT PROGRAM

If you are serious about pursuing a career in global business, you've made the right choice in selecting Loyalist College. Our faculty works alongside you to aid in your success for wherever your career path may lead.

The intention of this program manual is to:

1. Explain the full range of services we offer in the Global Business Management program to support your success;
2. Highlight the program's assortment of courses and learning experiences; and,
3. Clarify our expectations of you, and your expectations of us.

### WHY CHOOSE THE GLOBAL BUSINESS MANAGEMENT PROGRAM?

In our increasingly connected world, a global career mindset, coupled with business management skills can open doors to a range of unique career opportunities both domestically and abroad. Explore international perspectives on a variety of topics and develop the skills and knowledge necessary to become an effective leader in any business environment.

### LINKS

[Academic Policies](#)

[Academic Calendar](#)

[International Students](#)

[Prior Learning Assessment & Recognition \(PLAR\)](#)

### REQUIRED LAPTOP SPECIFICATIONS

We recommend that each student have a personal laptop. Students have access to all software that is part of their program of study on their personal computer. This tool will allow you to take advantage of your learning anywhere and at any time. Below are the suggested minimum standards for your device:

#### Minimum Requirements:

RAM: 8 GB

CPU: i5 Intel processor

HDD: 512 GB HDD

#### Recommended Requirements:

RAM: 16 GB

CPU: i7 Intel processor

HDD: 256 GB SSD or 512 GB HDD

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Toronto, ON. M2H 3P4  
(416) 291-5155

## PROGRAM CONTACTS

### Administration

**Musabbir Chowdhury**

Dean of Business and Technology  
Information

[musabbir.chowdhury@tbcollege.com](mailto:musabbir.chowdhury@tbcollege.com)

**Florian Vauleon**

Director of Quality Assurance & Experiential  
Learning

[florian.vauleon@tbcollege.com](mailto:florian.vauleon@tbcollege.com)

**Alcely Barosso**

Academic Manager

[alcely.barosso@tbcollege.com](mailto:alcely.barosso@tbcollege.com)

**Scott Moore**

Program Co-ordinator

[scott.moore@tbcollege.com](mailto:scott.moore@tbcollege.com)

## HOURS OF OPERATION

### Hours of Operation during the Academic Year\*

- Monday to Friday: 7:30 am – 5 pm
- Closed on Sundays and statutory holidays and Christmas Break
- *Subject to change*

## HOW TO CONTACT US

Faculty members can be reached in person, by phone, or email through the contact information listed within the Program Contacts section of this program manual. Please note that all email communication must be sent and received through your Loyalist College email account. Students are responsible for regularly checking their Loyalist email account and Learning Management System (LMS) for communication from faculty regarding program or course-specific information.

# STUDENT SERVICES

Student Success is the central point of access to many of the services available to support your academic success. Services include program advising and guidance, accessible academic accommodations, personal counselling, peer tutoring, writing support, and culturally responsive services for Indigenous and international students. Staff can also help you navigate College policies, explore bursary and grant options, provide referrals, and partner with you in seeking solutions.

## STUDENT RESPONSIBILITIES – REGISTRATION AND ACCOUNT

**Please note:** Program and course-specific requirements are subject to change. It is each student's responsibility to ensure they are registered in the appropriate course to fulfill the requirements of their program and to be aware of all applicable progression requirements.

Students must ensure that they are registered in all courses they are attending, and that courses which they are not attending are removed from their academic record. It is the student's responsibility to ensure their registration record and course schedule is accurate prior to the registration and withdrawal deadlines noted on the [Academic Calendar](#).

Students are responsible for remaining in good financial standing and resolving all holds placed on their account.

Please contact Enrollment Services with any questions or concerns regarding course enrollment, graduation, group selection, updating academic progression, payment and fees. Enrollment Services can be reached at [registration@tbcollege.com](mailto:registration@tbcollege.com) Regular office hours are Monday to Friday 8 am to 5 pm.

## ATTENDANCE

Attendance contributes to student success. Students are encouraged to make all efforts to attend all classes and arrive at each class on time. If a student is late arriving, they should enter with minimal disruption. If a student needs to leave a class early, they should leave with minimal disruption. Loyalist College recognizes that as adult learners; students will make individual decisions regarding attending classes. Loyalist College expects that students understand and accept that there may be consequences resulting from their decision not to attend or to arrive late. Students are advised to review their individual course outlines and program manuals to be aware of faculty attendance expectations and inform faculty of known absences as required.

**All Human Rights Code related requests for accommodation will be given meaningful consideration.**

# PROGRAM POLICIES AND PROCEDURES

## RIGHTS AND RESPONSIBILITIES

### All faculty and staff have the right to:

- An educational environment free of racist or sexist stereotyping, discrimination or harassment in the classroom (either physical or virtual) and in all College service areas.
- Expect appropriate student behaviour and have the right to request that a student exhibiting disruptive and/or disrespectful behaviour leave the classroom, laboratory or practicum area.
- Expect to be informed immediately of any issues, problems or concerns related to the program.

### All faculty are required to:

- Provide written course documentation at the beginning of each course which includes outcomes, objectives, methodology, required resources, an evaluation system and penalties applied if expectations or due dates are not met.
- Provide notice in writing of any substantial changes to course requirements and the reason(s) for these changes.
- Set deadlines for assigned work, to expect assignments to be submitted at specific times and to impose equitable, established penalties when students fail to meet the deadlines or expectations.
- Carry out regularly scheduled instruction, and provide academic counselling for students at other times.

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- All College members have a responsibility to

foster a climate of respect and safety, free from violent behavior and harassment.

- Violence (physical violence, threatening actions or harassment) is not, in any way, acceptable behaviour.
- Weapons or replicas of weapons are not permitted on Loyalist College property.
- Unacceptable behaviour will result in disciplinary action or appropriate sanctions.
- More information can be found in the [Student Code of Conduct – Positive Learning & Living Environment \(AOP 209\)](#).

## ATTENDANCE

Each faculty member has different expectations regarding attendance, but we all agree that there is a direct relationship between academic success and attendance in class. You can demonstrate your commitment to your chosen profession by attending all your classes. The skills and knowledge that you will acquire in the program build upon each other. Class discussions and team projects are a key part of your learning journey. It is the student's responsibility to inform the faculty member (by email) of their absence before the beginning of class.

## CLASSROOM EXPECTATIONS

In business, time is money. You are paying to attend class and if you play an active role, you will receive the best value for your tuition. Professional attitudes are developed in class by:

- **Demonstrating respect for self, others and your environment.**
- **Turning off your cellphone.**

- **Refraining from texting.**
- **Refraining from watching movies and YouTube.**
- **Being engaged in the class and encouraging others to do the same.**

Here are some examples of inappropriate and unethical behaviour:

**Cheating:** transferring or receiving information without the permission of the faculty member for the purpose of achieving grades. This includes copying from the work of another person or permitting such copying to take place during a test or using unauthorized notes or other memory aides.

**Plagiarism:** submitting work that is substantially copied from the work of another person and representing that work as original.

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Academic dishonesty is obtaining academic grades by deceit. This includes the use of concealed notes or materials during a test/examination, acquiring information from other students by looking at their test papers, talking/

signaling other students during tests, or by using another person's work in any form without citing references appropriately.

A student found guilty of obtaining grades in this manner will automatically be assigned a zero for the test/exam. A repeat offence may result in suspension from the program.

Please see the [Academic Integrity Policy \(AOP 216\)](#) for more information.

## PRIOR LEARNING ASSESSMENT AND RECOGNITION (PLAR)

PLAR is a process that involves the identification, documentation, assessment and recognition of learning acquired through informal means. This may include work and life experience, informal education and training, independent study, volunteering, travel, hobbies and family experiences.

Students with significant life or work experience can request the opportunity to PLAR an academic course if they feel they have acquired most or all of the learning outcomes of the course from experiences elsewhere. A fee will be charged per course for assessment of prior learning (please refer to current College fee structure) and students may not PLAR more than 75% of program requirements.

Please see the [Prior Learning Assessment and Recognition, Transfer Credit, Articulation and Exemption Policy \(AOP 221\)](#) for more information.

## TRANSFER/ARTICULATION AGREEMENTS

Explore [transfer credit options and articulation agreements](#).

# PROGRAM LEARNING OBJECTIVES

## GLOBAL BUSINESS MANAGEMENT

### Two-Year Post-Graduate Certificate

At the end of the program, students will be able to:

1. Collect, process and interpret data used to support international business.
2. Develop, execute and analyze the results of a comprehensive global business plan.
3. Conduct business with diverse populations using culturally appropriate methods in compliance with relevant laws and regulations.
4. Assist in the importing and exporting functions of a business.
5. Plan, direct, execute and evaluate individual and team projects.
6. Implement strategies utilizing domestic and foreign government programs, policies, and agencies which facilitate international trade.
7. Apply financial knowledge and skill to the operation of an international business.
8. Apply leadership and teamwork skills establishing and maintaining working relationships.
9. Apply quality control and assurance programs to sourcing and supplying.
10. Apply the principles of business ethics and international corporate responsibility.
11. Develop new products and services consistent with evolving market needs.
12. Evaluate the viability of marketing a product or service in an international market or markets.
13. Develop personal professional development strategies and plans to enhance leadership and management skills.
14. Apply entrepreneurial strategies to maximize the effectiveness of international business initiatives.
15. Employ environmentally sustainable practices within the profession.

# SMALL GIVES US THE POWER TO DO BIG THINGS

In a world obsessed with big, we are small. Small gives us the power to do big things.

And things that make a big difference to our students, community, and partners.

In an impersonal world of big lecture halls and stadium seating, we know our students by name and circumstance. Small frees us to provide personal one-on-one attention, in small classes and learning environments.

Small means our students feel like they matter. That they belong. That they are no longer invisible in a world which had passed them by.

Small means that we can move mountains to help every student succeed, confident in who they are and what they are capable of becoming.

We are Loyalist College of Applied Arts and Technology.

We are small.

**LOYALIST** Of Applied Arts  
**COLLEGE** & Technology

2023-24

# LOYALiST COLLEGE

**Global Project  
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#### **Alcely Barosso**

Academic Manager  
[alcely.barosso@tbcollege.com](mailto:alcely.barosso@tbcollege.com)

#### **Waqas Halim**

Program Co-ordinator  
[waqas.halim@tbcollege.com](mailto:waqas.halim@tbcollege.com)

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## TRANSFER/ARTICULATION AGREEMENTS

Explore [transfer credit options and articulation agreements](#).

# CO-OP INFORMATION

Industry co-op allows the student to gain professional experience in the related field prior to graduation and it is organized and planned by the student with support from the faculty.

A co-op work term in semester four provides an opportunity to gain first-hand workplace experience in the industry.

## CO-OP PLACEMENT

Co-op is a work integrated experience built into post-secondary programs to allow you to get hands on experience in your field of study while applying your academic studies. The integration of formal learning practices with developmental learning opportunities helps to enhance and consolidate the knowledge, skills, abilities, and behaviours of emerging professionals. This is also an opportunity to interact and demonstrate your skills to potential employers.

## APPLIED INDUSTRY PROJECT

Under extraordinary circumstances some students are not eligible for Co-op and may be able to compete the Applied Industry Project. Students wishing to pursue the Applied Industry Project must seek approval from:

### **Florian Vauleon**

Director of Academics & Quality Assurance  
Room 109, Ext. 275  
[florian.vauleon@tbcollege.com](mailto:florian.vauleon@tbcollege.com)

Applied Industry Project involves a simulation experience involving the integration of formal learning practices with developmental learning opportunities helps to enhance and consolidate the knowledge, skills, abilities, and behaviours of emerging professionals. The industry project will be performed on the College campus under the guidance of the College faculty. Students will attend college five days weekly.

## GUIDE TO SAFETY DURING PLACEMENT

Basic steps in risk awareness:

- Identify potential risks. Talk to your faculty supervisor and placement supervisor about risk related to your field.
- Understand the guidelines/expectations from the College and placement host.
- Inform your faculty supervisor or placement supervisor of any concerns.

### **Should an incident occur:**

- Be sure to document all facts such as date, time, persons involved and the situation as you observed it.
- Inform your faculty supervisor or placement supervisor immediately.

## EXAMPLES OF SAFETY RISKS

### **Harassment**

- Sexual, age, ethnic, racial, or disability harassment of student workers or any employee is illegal.
- The employer must ensure that current full-time employees or interns do not harass student workers.
- Immediately report any harassment to your faculty supervisor.
- Resolution may include placing the student in another position.
- Harassment of others in the workplace may result in your dismissal from the program.

### **Protect Your Personal Identity**

- Protect Social Insurance Number, cellphone numbers and all other personal identification.

## **Sexual Assault**

There are several ways to reduce the risk of becoming a victim of sexual assault:

- Set limits; don't send the wrong message.
- Use your better judgment about situations to avoid.
- Be clear and responsible in your communication with others.
- If necessary, be forceful, firm and assertive in your communication with others.
- Be aware of nonverbal cues that can alert you to a problem. Remember, silence is not consent.
- Don't assume the other person knows what you do or do not want.
- Use the buddy system.
- Avoid secluded places.
- Devise an action plan in advance for what you will do if confronted with a situation of possible sexual assault. Remove yourself from the situation at the first sign that you are feeling unsafe.
- Familiarize yourself with the idea that you might have to be aggressive or yell to remove yourself from a possible sexual assault situation.

## **Travel**

- Consider dangerous intersections, streets, or stretches of highway to and from the site
- Notice parking garages or poorly-lit parking areas
- When using your car or a vehicle provided to you by your placement site, find out all policies regarding travel such as:
  - Reimbursement of funds personally expended.
  - Transporting clients.
  - Transporting sensitive or easily-damaged materials.
  - Transporting potentially hazardous materials.

## **Physical Hazards**

- Working outdoors – sun, snow and ice and other extreme weather, pollution, power-lines, pipelines, electromagnetic radiation, or gas leaks.

- Working indoors – any type of machinery, or unsuitable working conditions such as extreme temperatures, asbestos, sick building odors, buildings with structural concerns, or blocked fire escapes

## **Biological Hazards**

- Animals you may work with (deceased or living).
- Poisonous plants.
- Diseased birds or fish.

If in the medical field, check to see how bio-hazardous waste is disposed (e.g. sharp container).

## **Chemical Hazards**

- Water supply.
- Toner powders from laser printer cartridges or photocopies that may cause eye or lung irritation.
- Chemicals in a laboratory setting getting in eyes, open sores, or lungs.

# PROGRAM LEARNING OBJECTIVES

## GLOBAL PROJECT MANAGEMENT

### Two-Year Post-Graduate Certificate

At the end of the program, students will be able to:

1. Manage project goals, constraints, deliverables, performance criteria, quality control needs, and resource requirements as defined by international project stakeholders.
2. Align and adapt management and leadership strategies and styles when working on projects according to internal organizational culture and best practices in a Canadian business environment.
3. Facilitate communication, negotiation, and collaboration with international stakeholders to ensure the successful completion of projects.
4. Ensure compliance of ethical and professional standards in a Canadian business environment when managing projects.
5. Manage relationships and resolve conflict to establish motivation and promote positive organizational change.
6. Integrate inclusive practices to support equity and participation of diverse stakeholders when managing projects.
7. Use technology tools for communication, collaboration, planning, information support and decision-making purposes for planning and managing global projects.
8. Analyse financial information to promote operational effectiveness and to support the scope, planning, procurement, risk and cost management of projects.
9. Develop and manage a comprehensive project plan for global projects, programs and portfolios using technology and software systems to meet stakeholder requirements.

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And things that make a big difference to our students, community, and partners.

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**COLLEGE** & Technology

2023-24

# LOYALiST COLLEGE

Hospitality  
Management –  
Canadian Hotel  
and Resorts  
Program Manual

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### CO-OP INFORMATION

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### PROGRAM LEARNING OBJECTIVES

# WELCOME

## TO THE HOSPITALITY MANAGEMENT – CANADIAN HOTELS & RESORTS PROGRAM

Prepare for an exciting and rewarding career in the growing hospitality industry in Canada and beyond with a combination of customer service, leadership and management skills.

Through a variety of dynamic courses and workplace experiences, students will gain a global perspective on a variety of topics in the hospitality industry and examine their own interests in this increasingly connected world.

### WHY CHOOSE HOSPITALITY MANAGEMENT – CANADIAN HOTELS & RESORTS?

Hospitality professionals find career opportunities in various sectors of the growing hospitality industry, including:

- Traveller accommodations, including hotels, motels, resorts, and bed and breakfast establishments
- Nursing and residential care facilities
- Guest services
- Sales and marketing
- Housekeeping management
- Restaurant management
- Front desk supervision or management
- Entrepreneurship

### IS IT FOR YOU?

This may be a great career path if you are:

- An effective communicator
- Skilled at time management
- Energetic and enjoy working in a fast-paced environment
- A team-player and natural leader
- Flexible and adaptable to change

### LINKS

[Academic Policies](#)

[Academic Calendar](#)

[International Students](#)

[Prior Learning Assessment & Recognition \(PLAR\)](#)

### REQUIRED LAPTOP SPECIFICATIONS

We recommend that each student have a personal laptop. Students have access to all software that is part of their program of study on their personal computer. This tool will allow you to take advantage of your learning anywhere and at any time. Below are the suggested minimum standards for your device:

#### Minimum Requirements:

RAM: 8 GB

CPU: i5 Intel processor

HDD: 512 GB HDD

#### Recommended Requirements:

RAM: 16 GB

CPU: i7 Intel processor

HDD: 256 GB SSD or 512 GB HDD

To access Moodle, recover your password, connect to the network, or accessing Microsoft Office, please contact IT Support at [itsupport@tbcollege.com](mailto:itsupport@tbcollege.com).

# PROGRAM CONTACTS

## CONTACT US

4000 Victoria Park Ave  
Toronto, ON. M2H 3P4  
(416) 291-5155

## PROGRAM CONTACTS

### Administration

#### **Musabbir Chowdhury**

Dean of Business and Technology  
Information  
[musabbir.chowdhury@tbcollege.com](mailto:musabbir.chowdhury@tbcollege.com)

#### **Florian Vauleon**

Director of Quality Assurance & Experiential  
Learning  
[florian.vauleon@tbcollege.com](mailto:florian.vauleon@tbcollege.com)

#### **Alcely Barosso**

Academic Manager  
[alcely.barosso@tbcollege.com](mailto:alcely.barosso@tbcollege.com)

#### **Ajinkya Narkar**

Program Co-ordinator  
[ajinkya.narkar@tbcollege.com](mailto:ajinkya.narkar@tbcollege.com)

## HOURS OF OPERATION

### Student Access Lab in the Library

- Monday to Saturday: 8 am – 9 pm
- Closed on Sundays and statutory holidays

## HOW TO CONTACT US

College staff can be reached in person, by phone, or email through the contact information listed within the Program Contacts section of this program manual. Please note that all email communication must be sent and received through your Loyalist College email account.

Students are responsible for regularly checking their Loyalist email account and Learning Management System (LMS) for communication from faculty regarding program or course-specific information.

# STUDENT SERVICES

Student Success is the central point of access to many of the services available to support your academic success. Services include program advising and guidance, accessible academic accommodations, personal counselling, peer tutoring, writing support, and culturally responsive services for Indigenous and international students. Staff can also help you navigate College policies, explore bursary and grant options, provide referrals, and partner with you in seeking solutions.

## STUDENT RESPONSIBILITIES – REGISTRATION AND ACCOUNT

**Please note:** Program and course-specific requirements are subject to change. It is each student's responsibility to ensure they are registered in the appropriate course to fulfill the requirements of their program and to be aware of all applicable progression requirements.

Students must ensure that they are registered in all courses they are attending, and that courses which they are not attending are removed from their academic record. It is the student's responsibility to ensure their registration record and course schedule is accurate prior to the registration and withdrawal deadlines noted on the [Academic Calendar](#).

Students are responsible for remaining in good financial standing and resolving all holds placed on their account.

Please contact Enrollment Services with any questions or concerns regarding course enrollment, graduation, group selection, updating academic progression, payment and fees. Enrollment Services can be reached at [registration@tbcollege.com](mailto:registration@tbcollege.com) Regular office hours are Monday to Friday 8 am to 5 pm.

**All Human Rights Code related requests for accommodation will be given meaningful consideration.**

# PROGRAM POLICIES AND PROCEDURES

## RIGHTS AND RESPONSIBILITIES

### All faculty and staff have the right to:

- An educational environment free of racist or sexist stereotyping, discrimination or harassment in the classroom (either physical or virtual) and in all College service areas.
- Expect appropriate student behaviour and have the right to request that a student exhibiting disruptive and/or disrespectful behaviour leave the classroom, laboratory or practicum area.
- Expect to be informed immediately of any issues, problems or concerns related to the program.

### All faculty are required to:

- Provide written course documentation at the beginning of each course which includes outcomes, objectives, methodology, required resources, an evaluation system and penalties applied if expectations or due dates are not met.
- Provide notice in writing of any substantial changes to course requirements and the reason(s) for these changes.
- Set deadlines for assigned work, to expect assignments to be submitted at specific times and to impose equitable, established penalties when students fail to meet the deadlines or expectations.
- Carry out regularly scheduled instruction, and provide academic counselling for students at other times.

## LOYALIST'S VIOLENCE PREVENTION POLICY

- All College members have a responsibility to

foster a climate of respect and safety, free from violent behavior and harassment.

- Violence (physical violence, threatening actions or harassment) is not, in any way, acceptable behaviour.
- Weapons or replicas of weapons are not permitted on Loyalist College property.
- Unacceptable behaviour will result in disciplinary action or appropriate sanctions.
- More information can be found in the [Student Code of Conduct – Positive Learning & Living Environment \(AOP 209\)](#).

## ATTENDANCE

Each faculty member has different expectations regarding attendance, but we all agree that there is a direct relationship between academic success and attendance in class. You can demonstrate your commitment to your chosen profession by attending all your classes. The skills and knowledge that you will acquire in the program build upon each other. Class discussions and team projects are a key part of your learning journey. It is the student's responsibility to inform the faculty member (by email) of their absence before the beginning of class.

## CLASSROOM EXPECTATIONS

In business, time is money. You are paying to attend class and if you play an active role, you will receive the best value for your tuition. Professional attitudes are developed in class by:

- **Demonstrating respect for self, others and your environment.**
- **Turning off your cellphone.**

- **Refraining from texting.**
- **Refraining from watching movies and YouTube.**
- **Being engaged in the class and encouraging others to do the same.**

Here are some examples of inappropriate and unethical behaviour:

**Cheating:** transferring or receiving information without the permission of the faculty member for the purpose of achieving grades. This includes copying from the work of another person or permitting such copying to take place during a test or using unauthorized notes or other memory aides.

**Plagiarism:** submitting work that is substantially copied from the work of another person and representing that work as original.

**Falsification:** modifying an examination paper, record, or assignment for the purpose of obtaining additional credits or a higher grade.

**Misrepresentation:** knowingly giving false information about facts or actions in order to gain admission to the College or to fulfill academic requirements.

**Fraudulent Behaviour:** knowingly misleading another person for purposes of gain and thereby causing actual harm to another person or assisting in such activity.

## PLAGIARISM AND ACADEMIC DISHONESTY

Plagiarism is the act of collecting and passing off the writing, passages or ideas of another author as your own. Students are plagiarizing if they fail to give credit, through referencing, to the person or work that originated the idea or reference.

Following a discussion with faculty, a mandatory failing grade will be issued on the assignment. A failing grade is the minimum penalty, but the College may reserve the right to impose a full range of sanctions including suspension or expulsion.

Academic dishonesty is obtaining academic grades by deceit. This includes the use of concealed notes or materials during a test/examination, acquiring information from other students by looking at their test papers, talking/

signaling other students during tests, or by using another person's work in any form without citing references appropriately.

A student found guilty of obtaining grades in this manner will automatically be assigned a zero for the test/exam. A repeat offence may result in suspension from the program.

Please see the [Academic Integrity Policy \(AOP 216\)](#) for more information.

## PRIOR LEARNING ASSESSMENT AND RECOGNITION (PLAR)

PLAR is a process that involves the identification, documentation, assessment and recognition of learning acquired through informal means. This may include work and life experience, informal education and training, independent study, volunteering, travel, hobbies and family experiences.

Students with significant life or work experience can request the opportunity to PLAR an academic course if they feel they have acquired most or all of the learning outcomes of the course from experiences elsewhere. A fee will be charged per course for assessment of prior learning (please refer to current College fee structure) and students may not PLAR more than 75% of program requirements.

Please see the [Prior Learning Assessment and Recognition, Transfer Credit, Articulation and Exemption Policy \(AOP 221\)](#) for more information.

## TRANSFER/ARTICULATION AGREEMENTS

Explore [transfer credit options and articulation agreements](#).

# CO-OP INFORMATION

Industry co-op allows the student to gain professional experience in the related field prior to graduation and it is organized and planned by the student with support from the faculty.

A co-op work term in semester four provides an opportunity to gain first-hand workplace experience in the industry.

## CO-OP PLACEMENT

Co-op is a work integrated experience built into post-secondary programs to allow you to get hands on experience in your field of study while applying your academic studies. The integration of formal learning practices with developmental learning opportunities helps to enhance and consolidate the knowledge, skills, abilities, and behaviours of emerging professionals. This is also an opportunity to interact and demonstrate your skills to potential employers.

## APPLIED INDUSTRY PROJECT

Under extraordinary circumstances some students are not eligible for Co-op and may be able to compete the Applied Industry Project. Students wishing to pursue the Applied Industry Project must seek approval from:

### **Florian Vauleon**

Director of Academics & Quality Assurance  
Room 109, Ext. 275  
[florian.vauleon@tbcollege.com](mailto:florian.vauleon@tbcollege.com)

Applied Industry Project involves a simulation experience involving the integration of formal learning practices with developmental learning opportunities helps to enhance and consolidate the knowledge, skills, abilities, and behaviours of emerging professionals. The industry project will be performed on the College campus under the guidance of the College faculty. Students will attend college five days weekly.

## GUIDE TO SAFETY DURING PLACEMENT

Basic steps in risk awareness:

- Identify potential risks. Talk to your faculty supervisor and placement supervisor about risk related to your field.
- Understand the guidelines/expectations from the College and placement host.
- Inform your faculty supervisor or placement supervisor of any concerns.

### **Should an incident occur:**

- Be sure to document all facts such as date, time, persons involved and the situation as you observed it.
- Inform your faculty supervisor or placement supervisor immediately.

## EXAMPLES OF SAFETY RISKS

### **Harassment**

- Sexual, age, ethnic, racial, or disability harassment of student workers or any employee is illegal.
- The employer must ensure that current full-time employees or interns do not harass student workers.
- Immediately report any harassment to your faculty supervisor.
- Resolution may include placing the student in another position.
- Harassment of others in the workplace may result in your dismissal from the program.

### **Protect Your Personal Identity**

- Protect Social Insurance Number, cellphone numbers and all other personal identification.

## **Sexual Assault**

There are several ways to reduce the risk of becoming a victim of sexual assault:

- Set limits; don't send the wrong message.
- Use your better judgment about situations to avoid.
- Be clear and responsible in your communication with others.
- If necessary, be forceful, firm and assertive in your communication with others.
- Be aware of nonverbal cues that can alert you to a problem. Remember, silence is not consent.
- Don't assume the other person knows what you do or do not want.
- Use the buddy system.
- Avoid secluded places.
- Devise an action plan in advance for what you will do if confronted with a situation of possible sexual assault. Remove yourself from the situation at the first sign that you are feeling unsafe.
- Familiarize yourself with the idea that you might have to be aggressive or yell to remove yourself from a possible sexual assault situation.

## **Travel**

- Consider dangerous intersections, streets, or stretches of highway to and from the site.
- Notice parking garages or poorly-lit parking areas.
- When using your car or a vehicle provided to you by your placement site, find out all policies regarding travel such as:
  - Reimbursement of funds personally expended.
  - Transporting clients.
  - Transporting sensitive or easily-damaged materials.
  - Transporting potentially hazardous materials.

## **Physical Hazards**

- Working outdoors – sun, snow and ice and other extreme weather, pollution, power-lines, pipelines, electromagnetic radiation, or gas leaks.

- Working indoors – any type of machinery, or unsuitable working conditions such as extreme temperatures, asbestos, sick building odors, buildings with structural concerns, or blocked fire escapes.

## **Biological Hazards**

- Animals you may work with (deceased or living).
- Poisonous plants.
- Diseased birds or fish.

If in the medical field, check to see how bio-hazardous waste is disposed (e.g. sharp container).

## **Chemical Hazards**

- Water supply.
- Toner powders from laser printer cartridges or photocopies that may cause eye or lung irritation.
- Chemicals in a laboratory setting getting in eyes, open sores, or lungs.

# PROGRAM LEARNING OBJECTIVES

## HOSPITALITY MANAGEMENT – CANADIAN HOTEL AND RESORTS

### Two-Year Post-Graduate Certificate

At the end of the program, students will be able to:

1. Support business development by taking into account economic, political, social, global, and intercultural factors that influence the development of services, marketing strategies, customer retention, and sales programs.
2. Use qualitative and quantitative metrics to recommend services marketing and sales strategies in a global context.
3. Make financial decisions that are evidence based and compliant with jurisdictional practices.
4. Recommend strategies to maintain efficient, safe, secure, accessible and healthy hospitality and tourism operations that reduce risk and comply with jurisdictional legislation and legal obligation.
5. Support business development through the implementation of corporate sustainability, corporate social responsibility, and ethics principles.
6. Evaluate existing business and marketing programs to generate recommendations for local and global initiatives that support the strategic alignment of the organization's business plan.
7. Use project management principles, tools, and techniques to define timelines and project deliverables for all members of cross-functional, intercultural, and multi-disciplinary teams.
8. Support the development of a service delivery model and implementation plan to account for practices within global settings.
9. Optimize negotiation and communication frameworks to win support within various organizations across jurisdictions and cultural settings.
10. Prepare verbal, written and digital materials for the procurement of local and global services and commodities.

# SMALL GIVES US THE POWER TO DO BIG THINGS

In a world obsessed with big, we are small. Small gives us the power to do big things.

And things that make a big difference to our students, community, and partners.

In an impersonal world of big lecture halls and stadium seating, we know our students by name and circumstance. Small frees us to provide personal one-on-one attention, in small classes and learning environments.

Small means our students feel like they matter. That they belong. That they are no longer invisible in a world which had passed them by.

Small means that we can move mountains to help every student succeed, confident in who they are and what they are capable of becoming.

We are Loyalist College of Applied Arts and Technology.

We are small.

**LOYALIST** Of Applied Arts  
**COLLEGE** & Technology